

CCOOLLLLEECCTTIIVVEE
AAGGRREEEEEMMEENNTT
BETWEEN
THE LAURENTIAN UNIVERSITY
FACULTY ASSOCIATION
AND
THE BOARD OF GOVERNORS OF
LAURENTIAN UNIVERSITY
1 JULY 2008 TO 30 JUNE 2011

Collective Agreement 2008-11

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INTRODUCTION

ARTICLE 1.10 – TITLE

1.10.1 The official title of this Collective Agreement shall be

"The Collective Agreement between the Laurentian

University Faculty Association and the Board of

Governors of Laurentian University". Hereinafter, this title shall be referred to as the Collective Agreement.

ARTICLE 1.15 – OFFICIAL LANGUAGES

1.15.1 Both the English and French versions of the

Collective Agreement shall be official and definitive versions. Both Parties may use either the English or the French version in any proceedings arising out of the Collective Agreement, and shall apply the version of the Collective Agreement in which formal grievance/arbitration proceedings were initiated.

1.15.2 The Parties agree to cooperate to have the

Collective Agreement translated within ninety (90) days from the version negotiated at the table into the other official language of Canada. The Parties will share equally in the cost of the translation.

ARTICLE 1.20 – PURPOSE OF THE COLLECTIVE

AGREEMENT

1.20.1 It is the purpose of this Collective Agreement:

(a) To set forth terms and conditions relating to employment, remuneration and benefits.

(b) To maintain a harmonious relationship between the Union and the Employer by providing amicable means for settling differences which may arise between them from time to time.

(c) To encourage the efficient and responsible conduct of the life and work of the University.

(d) To foster a working environment which motivates Members to achieve the objects and purposes of the University.

ARTICLE 1.25 – OBJECTS AND PURPOSES OF THE

UNIVERSITY

1.25.1 The objects and purposes of the University, as set out in the Act, are:

(a) The advancement of learning and the dissemination of knowledge; and

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(b) The intellectual, social, moral and physical development of its members and the betterment of society.

1.25.2 The Parties agree to cooperate in the pursuit of these objects and purposes.

ARTICLE 1.30 – DEFINITIONS

1.30.1 For the purpose of this Collective Agreement the following words shall bear the definition indicated herein except as otherwise provided in this Collective Agreement:

(a) Laurentian University of Sudbury Act shall mean the Laurentian University of Sudbury Act, being Chapter 151 of the Statutes of Ontario for the year 1960 as amended by Chapter 154, 1961-62.

(b) University shall mean Laurentian University of Sudbury.

(c) Employer or Board shall mean the Board of Governors of Laurentian University, or its designate, as provided for in the Laurentian University of Sudbury Act.

(d) Union or LUFA shall mean the Laurentian University Faculty Association, certified to be the exclusive Bargaining Agent for the full- time and Sessional faculty of the University pursuant to the various relevant decisions of the Ontario Labour Relations Board.

(e) Parties shall mean the Board of Governors of Laurentian University of Sudbury and the Laurentian University Faculty Association.

(f) Senate shall mean the Senate of Laurentian University of Sudbury as constituted in the Laurentian University of Sudbury Act.

(g) President shall mean the President of Laurentian University of Sudbury or the President's designate.

(h) Vice-President, Academic shall mean the Vice-President, Academic (Anglophone Affairs) or Vice-President, Academic (Francophone Affairs) as appropriate or their respective designates.

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(i) Dean shall mean the Dean of a Faculty duly appointed or the Dean's designate.

(j) University Librarian shall mean the officer in charge of the University Library and Archives.

(k) Faculty shall mean any body identified as such by the Senate of Laurentian University of Sudbury, and with the approval of the

Employer in accordance with the Laurentian University of Sudbury Act.

(l) Chair/Director shall mean the Chair/Director of any teaching department / professional school / library department.

(m) Member or Employee shall mean a Member of the Bargaining Unit for whom the Union is certified as the exclusive bargaining agent except where the context requires otherwise.

(n) Full-time faculty Members shall mean academic Employees appointed through tenured, probationary, or limited-term appointments to perform duties of (a)

Teaching, including supervision / Professional

Librarianship / Archives Management, (b)

Scholarly Activity, and (c) University

Governance and Administrative Duties consistent with Article 5.15 – Rights,

Responsibilities and Duties of Academics.

(o) Unless specified in relevant Articles within the

Collective Agreement, the terms Professional

Librarians and professional librarianship shall mean Professional Librarians and Archivists, and professional librarianship and archival management, respectively.

(p) Sessional Member shall mean a Member hitherto a Member of the Bargaining Unit designated by the March 28, 1994 Ontario

Labour Relations Board Certificate and now a

Member of this Merged Bargaining Unit.

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(q) Adjunct faculty members shall mean those persons outside the university whose scholarly or professional accomplishments merit association with the university. Adjunct faculty members are appointed for a defined period, with defined privileges and voluntary responsibilities in scholarly activity. Adjunct appointments do not have ranks or carry the right to vote in Department/School decision-making.

(r) Academic Year shall mean the twelve (12) month period commencing July 1 and ending June 30 of any given year and includes the Fall, Winter, and Spring Terms as per the University Calendar, even where the Spring Term extends beyond June 30.

(s) Session shall mean either or both Terms of the Winter Session (from September to December or from January to April) or the Spring Session (from April to July) as per the Laurentian University Calendar.

(t) Course credits shall mean the number of credits assigned to a course by the University Senate and as indicated in the Laurentian University Calendar.

(u) Course credits that contribute toward Sessional Seniority shall mean credits arising from courses for which the Sessional Lecturer's name appears on the Laurentian University course masters, grade reports, teaching evaluations, or letters of appointment and excludes courses offered by the Centre for Continuing Education, except for non-distance education courses that are offered on a Laurentian campus.

(v) Immediate Family shall mean a spouse, sibling, parent or child whether related by blood, adoption, marriage or common-law relationship.

(w) Conflict of interest shall mean a situation where an individual stands to benefit from a decision being made with respect to a person who is a member of the individual's immediate family, or with whom the individual has any relationship of an intimate and/or financial and/or commercial nature either current or past, including any student-supervisor relationship or any other past or present relationship, which conflicts or appears to conflict with the individual's responsibility to the University and includes

Collective Agreement 2008-11 an actual, apparent and/or perceived conflict of interest.

ARTICLE 1.35 – COPIES

1.35.1 The Employer shall, within thirty (30) days after the respective bargaining committees have approved the translation of the Collective Agreement, provide at no charge, a copy of this Collective Agreement in both official languages to each Member of the

Union, and upon request to individuals who were employed as Sessional Lecturers during the previous three (3) years.

1.35.2 The Employer shall also issue, at no charge, a copy of the Collective Agreement to each new appointee, whose appointment falls within the Bargaining Unit, no later than with the offer of appointment.

1.35.3 The cost of producing any additional copies shall be borne by the Party that requests them.

RELATIONS BETWEEN THE UNION AND THE EMPLOYER

ARTICLE 2.10 – RECOGNITION OF THE EMPLOYER

2.10.1 Composition

Laurentian University of Sudbury is incorporated under the Statutes of the Province of Ontario, 1960, Chapter 151 as amended by 1961-62, Chapter 154.

2.10.2 Rights

The Union recognises that the Employer has retained and shall possess and exercise all rights and functions, powers, privileges and authority that the Employer possessed under the Act of Incorporation prior to the signing of this Collective Agreement with the Union, excepting only those that are clearly and specifically relinquished or restricted in this Collective Agreement, or modified by statute. The Employer undertakes that all rights and functions, powers, privileges and authority shall be exercised in a manner consistent with the provisions of this Collective Agreement.

ARTICLE 2.15 – RECOGNITION OF THE BARGAINING UNIT

2.15.1 The Employer recognises the Union as the exclusive Bargaining Agent for the Bargaining Unit(s) defined in the Ontario Labour Relations Board Certificates of July 9, 1979, March 28, 1994, and October 31, 1995 (which are attached as appendixes to this Memorandum of Agreement) and any amendments to these certificates.

ARTICLE 2.20 – EMPLOYMENT OF NON-MEMBERS

2.20.1 The Employer agrees that, except as otherwise provided for in this Article, it will not employ Non-Members to teach in the programs of/or offer professional library service in the University.

Membership in the Bargaining Unit is defined in Article 2.15 – Recognition of the Bargaining Unit.

2.20.2 Notwithstanding the generality of clause 2.20.1 above, nothing in this Collective Agreement is intended to prevent the Employer from assigning a teaching load to individuals that are precluded from membership in the Bargaining Unit by virtue of their position as described in the Ontario Labour Relations

Board Certificates designated in Article 2.15 –

Recognition of the Bargaining Unit. The Union will exercise reason in entering into Memoranda of Agreement to allow the assignment of occasional teaching loads to qualified individuals who hold

Collective Agreement 2008-11 senior administrative posts within the University and whose official functions could reasonably be deemed to be inconsistent with Union Membership.

2.20.3 As per the Ontario Labour Relations Board

Certificate, Visiting and Exchange professors/librarians may work outside the Bargaining Unit.

2.20.4 Notwithstanding clause 2.20.3 above, Non-Members of the Bargaining Unit must not participate in decisions by the Department/School on personnel matters except as specified in this Collective Agreement.

ARTICLE 2.25 – SENIOR ACADEMIC ADMINISTRATORS

2.25.1 Selection

While retaining the right to appoint Senior Academic

Administrators, including the President, the Employer recognises the usefulness and desirability of consultation with Members, Units and Divisions in their selection, and shall follow the selection and appointment procedures that have been approved by the Board of Governors and the Senate. In instances where an outside applicant is being considered for a senior academic appointment, the applicant will normally be offered an appointment according to their qualifications at a rank consistent with the criteria listed under Article 5.20 – Appointment and Renewal.

2.25.2 Removal

The Employer shall consider all serious complaints against Senior Academic Administrators and take appropriate action, including the possibility of removal from office. It is understood that if a majority of Members of the Bargaining Unit within the

Administrator's purview indicate dissatisfaction with that Administrator, the University will view this as one example of a serious complaint.

2.25.3 Re-entry into the Bargaining Unit

(a) Any Senior Academic Administrators, who are excluded from the Bargaining Unit by virtue of their office, shall upon resignation/retirement/removal from that office or upon being made redundant or in the event of closure of the office return to take-up

Membership in the Bargaining Unit.

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(b) No Member shall be displaced from the Department/School by the entry or re-entry of former Senior Academic Administrators. If there is no vacancy in the Department/School concerned, the additional allocation shall not be at the expense of another Department/School allocation.

(c) For all purposes relating to this Collective Agreement, membership in the Bargaining Unit of a Senior Academic Administrator shall be reckoned as if they had not been outside the Bargaining Unit during their term of office.

(d) Senior Academic Administrators returning to the Bargaining Unit shall be considered as Members teaching for the first time (as per paragraph 5.40.8 (d) of Article 5.40 – Academic Workload) and shall be assigned teaching/professional library loads in keeping with the practice of their respective Department/School(s).

2.25.4 Acting or Substitute Senior Academic Administrators

(a) The University may from time to time appoint members of the Bargaining Unit to act or substitute for short periods of time in the place of Senior Academic Administrators.

Members so serving shall not undertake or be required to undertake any personnel action.

(b) For longer periods, i.e. two (2) months or more, when there is a need for an appointee to substitute or act with full authority and responsibility of office, a Member who so acts shall cease to be a Member of the Bargaining Unit for the period of substituting or acting and shall receive a pro-rated stipend for the position.

2.25.5 Relationship between Senior Academic Administrators and Departments/Schools.

Senior Academic Administrators shall be considered full Members of Departments/Schools in which they teach/offer professional library service, except that they must not participate in decisions by the Department/School on personnel matters.

ARTICLE 2.30 – EXISTING PRACTICES

2.30.1 Prior to modifying or discontinuing any working conditions not covered by the Collective Agreement but possessed by all Members of the Bargaining Unit or by a group thereof, the Employer agrees to give notice of such change or discontinuance to the Union.

2.30.2 The Union shall be afforded the opportunity to make a representation to the Employer through the Joint Consultative Committee for the Administration of the Collective Agreement prior to the implementation of any change as defined in clause 2.30.1 above. After such representation, the Employer has the right to proceed providing the change or discontinuance is urgent and reasonable.

ARTICLE 2.35 – MODIFICATIONS TO THE LEGAL STATUS OF THE UNIVERSITY

2.35.1 Amendment to The Act

Any future proposals by the Employer to amend the Laurentian University of Sudbury Act, 1960 shall be presented to the Legislative Assembly of the Province of Ontario, after consultation with the Union.

2.35.2 Amalgamation, Consolidation, Merger or Expansion of The University

(a) In the event of a merger or amalgamation or a transfer of jurisdiction, the provisions of the Labour Relations Act, 1995 of Ontario shall apply, particularly sections 62 and 63.

(b) This Collective Agreement shall bind the transferees or assignees of the University or of the Union.

ARTICLE 2.40 – RIGHTS AND PRIVILEGES OF THE UNION

2.40.1 (a) The Employer agrees to provide the Union with the use of a serviced office, in an academic area of the University.

(b) The Employer agrees to provide to the Union room L-303 (not including L-305) as a common room for use by Members, Senior Administrators and their guests.

2.40.2 The Union shall have access to the internal postal service of the University. Normal practice of charging for external mail will apply.

2.40.3 The Employer shall permit the Union to use University premises as meeting rooms on the same basis as University organisations.

2.40.4 The Employer will allow the Union to use University printing, computer, and audio-visual facilities at the same rate as University users, subject to availability.

2.40.5 The Employer agrees to continue to extend a monthly account, due when rendered, to which charges incurred by the Union shall be debited.

2.40.6 The Union may request, prior to May 8 of the preceding academic year, that Members be relieved by the appropriate Dean/University Librarian of up to twelve (12) credits of a teaching workload, or its equivalent in the case of the Library, during the course of an academic year. Such requests shall not be unreasonably refused. In any one academic year no more than thirty-six (36) credits of reductions will be granted in total.

If, on the recommendation of the Dean/University

Librarian concerned in consultation with the

Department/School, a replacement is required to take on the duties of which a Member has been relieved, the Union will reimburse the Employer for a maximum of one (1) sessional payment for each six

(6) credit equivalent reduction that it has requested based on the rate of pay for Sessional Members without establishment status as specified in Article

4.55 – Rates of Pay for Sessional Members.

If a replacement is not required, the Union will still reimburse the Employer for a maximum of one (1) sessional payment for each six (6) credit equivalent reduction that it has requested based on the rate of pay for Sessional Members without establishment status as specified in Article 4.55 – Rates of Pay for

Sessional Members and, in this case, the funds will be transferred by the Employer to the

Department(s)/School(s) affected by the workload reductions to be used by the Department/School as it deems appropriate in accordance with generally accepted university policy.

Funds will be transferred by the Union to the

Employer within thirty (30) working days of being informed about the disposition of the funds. If the funds are to cover a replacement, the name of the instructor, plus the course to be taught, or its equivalent in the case of the library, shall be supplied to the Union.

2.40.7 The Union shall have the right at any time to call upon the assistance of representatives of the Canadian Association of University Teachers and the Ontario Confederation of University Faculty Associations. Such representatives and any other duly designated representatives or counsel for the Union shall have access to Laurentian University premises to consult with Members, Union officials or the Employer. These representatives designated by the Union shall participate in discussions or negotiations with representatives of the Employer when their authority has been communicated to the Employer by the Union.

2.40.8 The President of the Union, or someone designated by the President of the Union, and a second Member designated by the President of the Union, shall continue to be non-voting members of the Board of Governors.

2.40.9 The President of the Union, or someone designated by the President of the Union, shall continue to be a non-voting member of the Finance Committee of the Board of Governors.

2.40.10 The Employer agrees to continue current practices with respect to release time for Union activities provided these practices are known and reasonable.

2.40.11 The Union shall maintain its current representation of one (1) member on the University Advisory Committee on Security Services.

2.40.12 The President of the Union or someone designated by the President, and two (2) additional Members designated by the President of the Union, shall continue to be voting members of the University Pension Committee. Given the importance of pensions, on substantive matters, the Union's Board has the right to ratify the recommendations of its representatives.

ARTICLE 2.45 – DUES CHECK-OFF

2.45.1 No Member shall be required to join the Union as a condition of employment. Except as hereinafter specified, the Employer shall deduct once monthly during the term of this Collective Agreement from the salary of each Member of the Bargaining Unit monthly dues or other assessments for general Union purposes uniformly and regularly payable by a Member of the Union authorised in accordance with the Constitution and by-laws of the Union and certified in writing to the Employer by the Union.

2.45.2 At the commencement of the Collective Agreement, the Union shall advise the Employer in writing of the amount of its regular monthly membership dues.

Thereafter the Union shall advise the University in writing of any change in the amount of regular monthly membership dues, such notice to be given at least thirty (30) days prior to the effective date of such change. The Union shall limit the change in membership dues to no more than three (3) times per year.

2.45.3 Except as hereinafter specified, the amounts so deducted shall be remitted to the Union by the fifteenth (15th) of the month following the month in which the deductions are made together with a list specifying the names of those Members of the

Bargaining Unit from whose salaries the aforementioned deductions have been made and the individual amount of each member's deduction. The

Employer shall with the list aforesaid provide the names of all Members who have ceased to be employees of the University.

2.45.4 The Employer shall deduct from the salary of each

Member of the Bargaining Unit who obtains an order from the Ontario Labour Relations Board under section 47 of the Labour Relations Act, 1995 of

Ontario (directing that the said Member is not required to pay monthly dues or other assessments to the Union because of her/his religious conviction or belief) an amount equal to the monthly dues or other assessments for general Union purposes uniformly and regularly payable by a Member of the

Union and shall remit said amount on behalf of the said Member to the University's Scholarship Funds.

2.45.5 In the event the Union wrongfully receives dues hereunder on account of an employee who is not a Member of the Union, or if on account of a Member of the Union but in excess of the amount required, the Union agrees to reimburse or credit the employee as the case may be for the amount so received. The

Union shall indemnify and save harmless the

University against any action arising out of the wrongful deductions of money for Union dues resulting from the Union's instructions and the refusal of the Union to reimburse the employee, within sixty (60) days of the lodging of her/his claim.

2.45.6 At the time that Income Tax T4 slips are provided to each Member by the University, the University shall indicate on the T4 slips or separately in writing to each Member the deductions from her/his salary under this Article.

ARTICLE 2.50 – INFORMATION

2.50.1 The Parties recognise that their mutual goals stated in Article 1.20 – Purpose of the Collective Agreement

Collective Agreement 2008-11 can only be realised if both Parties have access to necessary information required for effective collective bargaining and the proper administration of this Collective Agreement. Both Parties agree to use professional discretion in dealing with this information. This information shall be provided in hard copy and, where feasible, electronically.

2.50.2 To that end the Employer undertakes to provide the Union with the following, at the times indicated:

- (a) In October and February of each year, an electronic and hard copy list of each full-time Member of the Bargaining Unit which includes the name, gender, language, department/school, faculty/library, campus, rank (if applicable), actual salary, nominal salary, whether tenured/permanent, probationary or limited term. For Members designated as 'On Leave', the list shall indicate the type of leave that the Member is on.
- (b) In October, February, and May of each year, a list showing the name, salary, establishment status, and courses taught that contribute to the Sessional Seniority of each Member of the Bargaining Unit who is employed during the current academic session.
- (c) In October of each year a list of all limited term appointments and the reasons for the appointment categorised according to paragraphs 5.20.10 (a) to (e) of Article 5.20 – Appointment and Renewal.
- (d) In October, February and May of each year a list showing the name, courses taught on overload/professional library service rendered and amount of money paid to each full-time Member of the Bargaining Unit during the current academic session.
- (e) In October, February and May of each year a list showing the name, courses taught on overload/professional library service rendered and amount of money paid to each non-member during the current academic session.
- (f) In October of each year a list including the names of all full-time Members with course or

Collective Agreement 2008-11 workload release during the current academic year including the amount and reason for the release granted.

(g) In October of each year a statement of the number of full-time Members of the Bargaining Unit that did not expend all of the professional allowance available to them as provided in Article 6.45 – Professional

Development Expenditures, and the total amount of funds left unexpended as of June 30 of the previous year.

(h) A copy of the letters of appointment of all new full-time Faculty Members who accept employment with the University subsequent to the signing of this Collective Agreement by both Parties shall be supplied to the Union within fifteen (15) days of receipt of the said executed letters of appointment.

(i) A copy of the letters of appointment of all Sessional Lecturers who accept employment with the University subsequent to the ratification of this Collective Agreement by both Parties. Such letters of appointment shall be supplied to the Union within fifteen (15) days of receipt of said executed letters of appointment.

(j) A copy of the contracts issued to all full-time Faculty Members who have been granted sabbatical leave or any other kind of leave. Such contracts shall be supplied to the Union within fifteen (15) days after acceptance by the Member.

(k) A copy of patent and copyright contracts as per Article 6.30 – Patents and Article 6.35 – Copyright.

(l) In October of each year, the total salary allocation and median salary for:

(i) Senior administration;

(ii) Part-time employees outside the Bargaining Unit by Department/School;

(iii) Any other teaching or research employees outside the Bargaining Unit;

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(iv) Library employees outside the Bargaining Unit.

(m) A copy of the course master and updates to the course master when they become available.

(n) A copy of the University's annual audited financial statements and supporting schedules, following approval of these by the Board of Governors.

(o) A copy of employment equity data including the number of women and men applying for each advertised position, the gender, highest degree and years of experience for each applicant chosen for the interview list. Such information will be forwarded to the Union by September 30 of each year.

(p) A copy of advertisements for faculty positions shall be sent to the Union once they have been approved by the Office of the Vice President, Academic.

(q) A copy of any mailings forwarded by the Employer to Members, to be sent to the Union at the same time as the general mailing.

(r) A copy of all minutes, actuarial reports and benefit reports of the Pension and Benefits Committees.

(s) Thirty (30) days after the signing of this Collective Agreement, a copy of all present articulation agreements between the Employer and all public and private education institutions.

(t) A copy of all new articulation agreements between the Employer and all public and private education institutions within thirty (30) days of the signing of the said agreements.

2.50.3 The Union agrees to provide the Employer with:

(a) Copies of any mailings made by the Union to all its Members, to be sent to the Employer at the same time as the general mailing.

(b) Copies of any statements or representations made or to be made publicly by the Union.

(c) An up-to-date copy of the constitution of the Union.

(d) An up-to-date list of the Executive of the Union.

2.50.4 Each Member, who has not previously done so, shall when requested supply the Personnel Office with one

(1) copy of her/his birth certificate (or other equivalent documentation attesting to the date of birth).

2.50.5 It is understood that this section shall not be construed to require either Party to supply any information that is confidential with respect to matters relating to labour relations.

2.50.6 Each Party agrees to inform the other Party when statistical information concerning Members is released as required by law or in response to a request from a government body or agency, and further, to inform the other Party of the nature of the information requested or released. Except when required by law, the Employer agrees not to release any individually identifiable statistical data in aggregate form concerning Members to any person, body, agency, and institution without the written consent of the Union.

2.50.7 One (1) individual shall be chosen by each Party to coordinate the exchange of information and to act as liaison between the two Parties.

2.50.8 Nothing in this Article is meant to preclude either side of this Collective Agreement from making reasonable requests for additional information from time to time.

Both Parties agree to fulfil such requests.

ARTICLE 2.55 – CORRESPONDENCE

2.55.1 In conformity with section 113 of the Ontario Labour

Relations Act, 1995, except where otherwise expressly provided in this Collective Agreement, notices required to be given under the provisions of this Collective Agreement shall be in writing and shall be sufficient either if addressed to the appropriate recipient and sent by campus mail or Canada Post, or if delivered to the appropriate recipient personally with a signed receipt required.

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2.55.2 Notices to and official correspondence with the Union shall be addressed to the attention of the President of the Union or the President of the Union's designate.

2.55.3 Notices to and official correspondence with the Employer shall be addressed to the Vice-President, Academic.

ARTICLE 2.60 – JOINT CONSULTATIVE COMMITTEE FOR THE ADMINISTRATION OF THE COLLECTIVE AGREEMENT

2.60.1 The President of the Union or the President of the Union's designate and the Vice-President, Academic or the Vice-President, Academic's designate shall act as liaison between the two Parties as required by this

Collective Agreement as well as coordinate and exchange information as per Article 2.50 – Information.

2.60.2 When either Party deems it advisable, its representative may be accompanied by one (1) or more advisers.

2.60.3 The Parties are authorised from time to time to enter into Memoranda of Agreement with regard to the Collective Agreement. The Parties may from time to time authorise other representatives, in addition to the Vice-President, Academic and the President of the Union, to sign these Memoranda of Agreement.

2.60.4 The Parties agree to form a Joint Consultative Committee for the Administration of the Collective Agreement, composed of three (3) representatives of each Party as follows: the President of the Union and the Vice-President, Academic or their respective designates; one (1) officer of LUFA and one (1) Dean appointed by the Vice-President, Academic; and one (1) appointee from each Party.

2.60.5 The Committee shall attempt:

(a) To maintain and develop a spirit of cooperation and mutual respect between the Parties.

(b) To facilitate better working relationships between the Employer and the Union and its Members.

(c) To discuss, review, and make recommendations to the Parties on matters of concern to either Party.

2.60.6 The Committee shall meet once in November and once in February and at other times when deemed useful or necessary by mutual agreement of the Parties.

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2.60.7 The Committee shall be chaired in alternation by a representative of the Employer and a representative of the Union. The chair shall be responsible for preparing and distributing the agendas and preparing minutes of meetings.

2.60.8 The Committee shall determine its own procedures subject to the provision that a quorum shall consist of at least two (2) representatives of each Party.

2.60.9 The Committee shall not have the power to add to or to modify the terms of this Collective Agreement.

WORKING CONDITIONS

ARTICLE 3.10 – ACADEMIC FREEDOM

3.10.1 In addition to their legal rights as citizens, Members have the right to academic freedom. Academic freedom is the right to search for truth, knowledge and understanding and to express freely what one believes. The University as an institution and the community of its scholars have a duty to protect and defend the search for knowledge and truth by all that enquire, teach, offer professional library service and learn under its auspices. They shall be free to carry out research and to publish its results, free to teach, to discuss and to criticise both the University and the wider society it serves subject to the provisions of

Article 3.15 – No Discrimination, Harassment or Bullying.

3.10.2 Academic freedom entails the obligation to base all research and teaching on a responsible search for truth and knowledge. It requires the fulfilment of responsibilities to other members of the teaching and learning community. It requires the acknowledgement of the work of others and the acceptance of responsibility for one's own beliefs and utterances. Academic freedom does not confer legal immunity.

3.10.3 The Parties agree to safeguard, as far as reasonably possible, the privacy of information, whether on paper or in electronic form, that is exclusively personal to and in the possession of, individual Members.

ARTICLE 3.15 – NO DISCRIMINATION, HARASSMENT OR BULLYING

3.15.1 The Employer recognizes the need to provide an environment free from discrimination and harassment, including bullying. To that end, the

Employer has established a Human Rights Office, headed by a Human Rights Advisor. The Union acknowledges the Employer's Policy on a

Respectful Workplace and Learning Environment.

This policy will be used by the Employer in dealing with all incidents of alleged discrimination, harassment, or bullying at Laurentian University.

3.15.2 The Union shall observe and assist in the implementation of rules adopted to protect employees and the University Community against discrimination and harassment (including bullying).

3.15.3 (a) The Parties agree that there shall be no discrimination, harassment, bullying, interference, restriction or coercion exercised or practiced with respect to any Member in regard to salaries, rank, appointment, promotion, tenure, reappointment, dismissal, leaves, benefits, or any other matter arising from this Collective Agreement, by reason of age (except for retirement as provided for in this Collective Agreement or by legislation), race, language (except where the lack of language competence would clearly prevent carrying out the required duties), creed, colour, ancestry, ethnic or cultural background, national origin, political or religious affiliation or belief, sex, sexual orientation, marital status, family relationship, personal or social life style or behaviour, clerical or lay status, disability (except where the physical, emotional or mental condition would clearly prevent the carrying out of the required duties).

(b) The Parties agree, however, that no Members or person acting as an officer of the University shall take part in formal discussions or vote with respect to the determination of any term or condition of employment of a member of her/his immediate family as defined in Article

1.30 – Definitions.

3.15.4 The choice of the most competent person for the post as described in an advertisement formally approved by the Vice-President, Academic in consultation with the Department/School will not constitute discrimination.

3.15.5 In the case of the evaluation of applicants for appointment, renewal, tenure and promotion, the criteria adopted must not systematically discriminate against members of designated groups and shall be periodically reviewed to ensure that work done predominantly by members of designated groups is not undervalued.

3.15.6 There shall be no discrimination with respect to any

Member arising from membership or activity in the

Union, or from a failure to join or participate in the

Union.

3.15.7 This Article shall not preclude any action that has as its object the equitable representation of designated employment equity target groups throughout the academic community.

ARTICLE 3.20 – WORKING ENVIRONMENT

3.20.1 The Employer acknowledges its responsibility to provide and maintain facilities, services and general working conditions, which support the effective discharge by full-time Members of their responsibilities as specified in Article 5.15 – Rights,

Responsibilities and Duties of Academics. The

Employer will determine by consideration of the financial resources of the University, the manner in which and the level at which facilities and services are provided to Members. Additionally, the

Employer will provide, in a fair and equitable manner, at least a securable individual office for each full-time Member and securable group offices for Sessional Members, ergonomically appropriate office furniture, appropriate lighting and ventilation, and will maintain reasonable levels of working space, secretarial and other support services, including telephones, computing, printing, duplicating, library services, technical services, teaching and research assistance and laboratory space if required.

All moving expenses to relocate Members within the University shall be paid by the Employer.

3.20.2 The Employer acknowledges the importance of providing well-designed, healthy and attractive physical working spaces and of Members playing a substantive role in decisions affecting their working environment, particularly offices, classrooms, studios, research and laboratory spaces. To this end, the Parties agree to establish a Joint Committee on Working Space within ninety (90) days of the signing of the Collective Agreement.

Each Party shall name three (3) members of the

Committee; as well, the Parties shall jointly agree to a Chair who shall be non-voting except in the case of a tie vote.

The purpose of the Committee shall be:

(a) to hear concerns about substandard working spaces and to recommend solutions

(b) to recommend ergonomic standards in offices, through creating model offices and developing design standards including but not limited to furniture, equipment, lighting, and ventilation; and to continue and ensure

Collective Agreement 2008-11 implementation of the program for provision of Ergonomic Work Stations as initiated in the 2005-08 Collective Agreement (Article

1.23.2) and as funded according to clause

3.20.3 below

(c) to recommend design standards for any renovation or new construction of offices, classrooms, studios, research and laboratory spaces

(d) to recommend policies that contribute to the fair and equitable distribution of space and improve the quality of Laurentian's working environment.

3.20.3 The Employer shall establish a budget of thirty-five thousand dollars (\$35,000) per year, or such other greater sum as the two Parties may mutually agree during the life of this Collective Agreement for the provision of such furniture, work stations and equipment according to the recommendations of the Working Space Committee. In addition, funds unexpended for the Provision of Ergonomic Work

Stations from the thirty-five thousand dollars

(\$35,000) per year provided over the three (3) years of the 2005-08 Collective Agreement shall continue to be available.

For the purposes of this Article,

"furniture, work stations and equipment" shall be deemed to include, but not to be limited to, chairs, desks, computer tables, lighting, foot rest, and such computer peripherals as the keyboard, mouse, screen-glare guard, and wrist support bar, all of a high standard.

3.20.4 On an annual basis all Members, including retirees, upon request, will be supplied with a photo identification library card at no cost to them except if they require a replacement for a lost card. The charge for replacement will be fifteen dollars (\$15) per card.

3.20.5 In their offices and once every four (4) years,

Members shall be supplied with "a standard computer" as determined by the Computer Allocation Committee, which shall be networked, attached to a network printer, and maintained without charge to the Members and Departments/Schools for the full four

(4) years. The Computer Allocation Committee shall consist of two (2) members selected by the Union and two (2) members selected by the Employer. The

Committee shall also review and update the plan for continued implementation of this policy, including the availability and maintenance of computers for

Sessional Members, which shall be a minimum of one

(1) standard computer for every group office for

Sessional Members.

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3.20.6 Full-time Members shall be offered a securable individual office located in reasonable proximity to the Department's/School's main office. A Member's office shall not be entered except by authorized University staff.

3.20.7 All full-time Members teaching in the School of Human Kinetics shall be granted free lockers outside the general area and membership service without fee. All Sessional Members teaching activity courses and experientially based courses in the School of Human Kinetics shall be granted the same privilege during the session(s) in which they are employed.

ARTICLE 3.25 – HEALTH, SAFETY AND SECURITY

3.25.1 The Employer recognises a responsibility to provide an environment intended to protect the health, safety and security of employees as they carry out their responsibilities. To that end, the Parties agree that they are bound by the Occupational Health and

Safety Act R.S.O 1990 as revised and in effect July

1, 2008. The Employer agrees to maintain a Joint

Health and Safety Committee, which will independently consider matters concerning the health and safety of employees and students. This

Committee shall include two (2) representatives of all unionized groups in the University (including

LUFA), as well as one (1) representative of the

Science/Engineering Safety Committee and one (1)

Employer representative with power to co-opt other members.

The Committee's work will include an examination of procedures and physical facilities brought to its attention, as these relate to health, safety and security.

3.25.2 The Union shall observe and assist in the implementation of rules adopted to protect the health and safety of employees and to maintain the security of persons and premises.

3.25.3 Members who have reason to believe that a work situation is likely to endanger them have the right to refuse unsafe work pursuant to and in accordance with the provisions of the Ontario Occupational Health and Safety Act.

ARTICLE 3.30 – BILINGUALISM

3.30.1 The University is committed to the fulfillment of its role as bilingual institution of higher learning, in accordance with the Laurentian University of

Sudbury Act. The Employer and the Union pledge themselves to the maintenance and promotion of both official languages, French and English, as well

Collective Agreement 2008-11 as both cultures.

Notwithstanding the above, the Employer and the

Union acknowledge the distinct role and the important contribution of Aboriginal languages and cultures in particular programs at Laurentian

University. Further, the Employer and the Union recognize that in the University as a whole

Aboriginal faculty are underrepresented and agree as per Article 5.30 – Aboriginal Equity Initiative to establish an

Aboriginal equity initiative, and to waive the requirement for French/English bilingualism and recognize as bilingualism the knowledge and/or demonstrated study of an

Aboriginal language and one (1) of the two (2) official languages of Laurentian University.

3.30.2 In accordance with the commitment stated in clause

3.30.1 above, the Employer recognizes the right of all Members to communicate directly (verbally and in writing) in the official language of their choice with all University Departments, Schools, Research and Administrative services for all official transactions.

3.30.3 The two Parties shall have the right to be heard in either official language and to require the translation of any official materials. Members have the right to express themselves in the official language of their choice.

3.30.4 The two Parties agree to make every effort to provide a translation of non-official documents where either Party requires such.

3.30.5 (a) A Joint Committee of two (2) representatives chosen by the Employer and two (2) representatives chosen by the Union, distributed equitably between the two (2) official languages, shall prepare the guidelines and requirements for competency required to enable each Member to meet the bilingualism requirements stated in her/his

Letter of Appointment, in accordance with clause 5.20.8 of Article 5.20 – Appointment and Renewal. The recommendations of the

Joint Committee shall be approved by the

Employer and the Union. The Joint

Committee shall convene before January 1,

2009 and present its recommendations before July 1, 2009.

(b) The Employer agrees to provide language training at no cost in the course of the entire year at beginner, intermediate and advanced levels in order to enable Members to a) meet the requirements of bilingualism stated in

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Collective Agreement 2008-11 their Letter of Appointment in accordance with clause 5.20.8 of Article 5.20 – Appointment and Renewal and b) maintain and improve their skills.

(c) The Employer shall inform all new Members about language requirements for both official languages on an annual basis until tenure is granted, in order to allow Members to prepare themselves adequately to meet the language requirements for the granting of tenure.

3.30.6 A Member's course syllabuses, course notes and presentations (regardless of their format), whether distributed, projected or transmitted in any and all media, shall be written in the course's language of instruction. The Member shall ensure that a terminology index is available to students if certain required readings are not in the language of instruction.

ARTICLE 3.35 – CONFLICT OF INTEREST

3.35.1 No individual shall knowingly participate in any academic or administrative decision, including decisions regarding commercial contracts or transactions, that benefits the individual, affects or benefits a person from whom the individual stands to derive a financial benefit or affects or benefits a person in a situation as defined in Article 1.30 –

Definitions.

3.35.2 In the event the affected individual determines that a conflict exists of sufficient seriousness to compromise the integrity of the decision-making process, the affected individual shall declare the nature and extent of the interest as soon as possible and no later than the meeting(s) at which the matter is to be considered and the individual in conflict shall:

- (a) withdraw from the meeting where the matter is being discussed;
- (b) refrain from taking part in any other discussion of the matter; and
- (c) refrain from voting on the matter.

In the event there is a disagreement as to whether a conflict of interest exists, the Vice-President, Academic or her/his designate will decide the matter and the remedy will follow, accordingly. Decisions of the Vice-President, Academic or her/his designate can be challenged through the grievance procedure.

SESSIONAL MEMBERS

ARTICLE 4.10 – APPOINTMENT PROVISIONS FOR
SESSIONAL MEMBERS

4.10.1 The Parties recognise that the University's mission is best served by a largely full-time faculty and that it is not generally desirable to make sessional appointments a substitute for full-time faculty.

4.10.2 At the same time, the Parties recognise that sessional faculty add a significant level of diversity, expertise and practical experience to the University, and their value must be recognised in the governance and decision-making processes and generally in the on-going life of the University.

4.10.3 Teaching/professional librarianship duties comprise the only assigned function for Sessional Lecturers.

ARTICLE 4.15 – APPOINTMENT AND RENEWAL FOR
SESSIONAL MEMBERS

Appointment of Sessional Members of the Bargaining Unit

4.15.1 Appointments of Sessional Lecturers are made by the Vice-President, Academic or her/his designate on behalf of the Employer and on the recommendation of the Dean/University Librarian and the Department/School concerned. The recommendation may be made by the

Department/School as a whole, or by a committee consisting of no fewer than three (3) Members.

4.15.2 Sessional appointments and other extra-departmental assignments of courses shall be made from rosters of names of potential instructors maintained by the Departments/Schools responsible for the particular course. This will enable appointments to be made expeditiously and at the same time in a way that honours Sessional Members' seniority and other rights.

4.15.3 Sessional Members on the University roster shall be notified of the courses expected to be offered in their Department(s)/School(s) in all sessions of the upcoming year. This shall be done by April 15.

Such notice must specify clearly the course, courses, or type of course to which it applies.

Sessional Members interested in teaching any of the available courses shall send a letter of application to the Chair/Director of the

Department/School by May 15.

4.15.4 A letter of application, a current curriculum vitae, a current teaching dossier and any relevant supporting documentation shall be filed with the Department/School by the above dates. Notice may be given simply to bring forward a letter of application from previous sessions, but curriculum vitae and teaching dossiers must be kept up to date.

4.15.5 Sessional Members may have their names added to the rosters after the above dates. In such cases seniority and other rights shall not be enforceable.

4.15.6 Departments/Schools shall not be precluded from advertising or otherwise soliciting applications to their rosters, either before or after the above dates.

4.15.7 When courses cannot be made part of full-time

Members' normal teaching loads they shall be offered by the Department/School in the form of overload appointments or sessional contracts.

Full-time Members, previous and current Sessional

Members, Retirees, and other qualified applicants may apply for these contracts. In awarding them, the Chair/Director of the Department/School, in consultation with the appropriate Dean/University

Librarian shall follow the criteria for establishment and seniority listed in clauses 4.15.12 to 4.15.21 below, and for overloads in paragraph 5.40.6 (b) of

Article 5.40 – Academic Workload.

4.15.8 During October of each year the Employer will circulate to all Departments/Schools, the Union and the Library a list of courses taught on an overload basis by full-time Members of faculty or by

Sessional Members during the two (2) previous academic years. The list will also be posted on the

Laurentian University Human Resources website.

Departments/Schools will be requested to post these lists on their respective websites. All courses listed will be deemed to have been posted.

4.15.9 When a Sessional appointment will be required for any other course, an advertisement shall be posted on a bulletin board by the Department/School with a copy sent to the Union and to the Library. The list will also be posted on the

Laurentian University

Human Resources website and the

Department/School website. The rosters shall remain open until ten (10) working days after the posting on the bulletin board by the

Department/School. Any outstanding course may

Collective Agreement 2008-11 be advertised locally.

4.15.10 Full-time Members wishing to teach courses for which Departments/Schools other than their own are responsible shall be governed by the same procedures and dates as Sessional Members.

Article 5.40 – Academic Workload and Article 8.35 –

Overloads also govern such assignments.

4.15.11 In exceptional circumstances where appointments must be made shortly before, or even after, the commencement of instruction, and where time does not allow full compliance with the above procedures (e.g., in cases of illness of a Member originally scheduled to teach; opening of a new section of a course(s); unanticipated commencements of

Leaves of Absence, etc.) the ten (10) day period referred to above shall be waived, but the Employer undertakes that reasonable efforts will be made not to violate the appointment rights and seniority protection of Members intended by the foregoing.

The Employer shall inform the Union of each appointment made under this clause and the circumstances thereof forthwith. Any individual so appointed shall provide a letter of application and a current curriculum vitae.

Establishment of Sessional Members

4.15.12 Sessional Members shall be deemed to have

Establishment status with respect of a particular course once they have been appointed to teach it for their third (3rd) academic year. Such sessional contracts need not be in consecutive academic years, but in no case shall exceed the previous six

(6) academic years.

4.15.13 Retirees shall be deemed to have Establishment status with respect to a particular course either when they have taught a course for the third (3rd) year on sessional contracts or when they have taught a course as part of their regular workload twice and have been hired at least once to teach a course on a sessional contract. Such sessional contracts or teaching need not be in consecutive academic years, but in no case shall exceed the previous six (6) academic years.

4.15.14 The names of Established Sessional Lecturers shall be printed in the departmental faculty listings of the next edition of the Laurentian University Calendar following a year in which an appointment is held.

4.15.15 A Sessional Member shall accrue seniority credits with respect to a particular course. For the purposes of this Article, a distinction is made between courses offered in English and in French, and seniority credits shall accrue separately for each language version of what would otherwise be considered the same course. Where a course is replaced by a renamed, renumbered, or revised version of what is essentially the same course, or is replaced by a course that performs the same function in the Department's/School's curriculum, seniority status shall apply to such a new course.

4.15.16 Sessional Members shall accrue seniority credit each time they teach a course. Members teaching a particular course more than once in an academic year, shall accrue seniority credit each time they teach the course. This shall include one (1) term courses and shall include the spring session or other extra sessions of that academic year.

4.15.17 Sessional Members with Establishment and with highest seniority shall have first right of reappointment, subject to notice of those rights with respect to a particular term, as specified above.

Seniority entitlement shall, during the Fall, Winter, and Spring sessions, be limited to one section per term for each course in which a Member holds seniority. (Such rights are also governed by limitations described in clause 4.25.3 of Article 4.25 – Workload Provisions for Sessional Members.)

4.15.18 Years of Seniority shall be the number of years in which a Member qualifies for seniority dated back to 1984. The onus shall be on the Member to establish her/his years of seniority prior to the above roster dates pertinent to the relevant session.

Evidence might include, but is not limited to, any of the following in which clear identification is made: letters of appointment, pay records, University and

Continuing Education calendars, course evaluations, grade sheets, administrative letters referring to the course. When requested, the

Dean/University Librarian with authority for the course in question shall issue a written statement agreeing to reasonably established seniority claims.

4.15.19 Seniority shall be retained during academic years in which a Sessional Lecturer is not offered reappointment, but shall not be increased during those academic years. Seniority shall not however be able to be exercised if the Sessional Lecturer has not been offered reappointment over three (3)

Collective Agreement 2008-11 consecutive academic years.

4.15.20 However, Seniority shall not be exercised if a Sessional Lecturer has removed her/his name from a roster, or has declined an offer of appointment, for a second (2nd) consecutive academic year.

4.15.21 Notwithstanding the foregoing, Sessional Lecturers may request leave from a roster for up to two (2) consecutive years for parenting, adoption, full or part-time graduate studies or as per Article 7.40 –

Leaves of Absence Without Pay. Such application shall be made on a one (1) year-at-a-time basis and shall not be unreasonably refused. In such cases seniority shall accrue in respect of the years of leave.

Written Offer of Appointment of Sessional Members

4.15.22 The Parties agree that Offers of Appointment shall be sent to Sessional Lecturers as soon as possible before classes commence. Except for situations covered by clause 4.15.11 above, the Employer shall endeavour to mail Offers of Appointment by the following dates: July 15 for the Fall Term,

November 15 for the Winter Term, and March 15 for the Spring Term.

Each Offer of Appointment shall specify the course number(s), the number of credits, terms and conditions of employment including salary, benefits, sessional seniority, and cancellation conditions if applicable.

4.15.23 A copy of the current Collective Agreement shall be sent with any offer of employment, except where the applicant would already have received a copy.

4.15.24 A copy of each accepted Offer of Appointment shall be sent to the Union forthwith.

Grievance of Appointment Decision of Sessional Members

4.15.25 In the event that an unsuccessful applicant for a sessional teaching position believes that someone else was appointed to the position in violation of the provisions of this Collective Agreement, she/he may request within one (1) month of the decision a review of the appointment with the view of establishing whether the Employer acted in accordance with the provisions of this Collective

Agreement when not appointing the unsuccessful applicant.

4.15.26 Such a request for review shall be directed to the Dean/University Librarian and/or the Union and shall involve initially an informal stage in which the Dean/University Librarian and a Grievance Officer appointed by the Union have an opportunity to review the available information. If agreement cannot be reached at the informal stage, the matter shall be dealt with according to the grievance procedures set out in Article 11.10 – Grievance Procedure.

ARTICLE 4.20 – PERMANENT APPOINTMENTS FOR SESSIONAL MEMBERS

4.20.1 Definition: A Permanent Sessional Lecturer with a continuing appointment who is responsible for undergraduate teaching / clinical education or supervision / language teaching / skills teaching / coaching / writing assistance and other related duties as determined by the Employer. Nothing in this definition precludes the Employer from working with the Boards of the three (3) federated universities to create such a position funded jointly by the partners.

4.20.2 Qualifications: At least a Master's degree or appropriate professional qualifications and with proven competence in teaching.

4.20.3 Appointments: Any new Permanent Sessional Lecturer position must be advertised internally before being advertised externally and must go through the normal hiring process for the appointment of full-time Members. Sessional Members with Establishment in at least twelve (12) credits or four (4) three (3) credit courses shall have first consideration for appointment as Permanent Sessional Lecturer.

In the event there is no qualified internal applicant as determined by the Department/School, the University may advertise externally. A Member appointed to a Permanent Sessional Lecturer position without establishment in at least twelve (12) credits at Laurentian University shall have a probationary status of three (3) years. The evaluation of an applicant on probation shall follow the normal assessment process for full-time Members as set out in Article 5.50 – Assessment of a Member's Performance, but shall be restricted to the teaching responsibilities.

4.20.4 Workload: The normal maximum teaching workload is twenty-four (24) credits of which a maximum of nine (9) may be assigned in the Spring Session.

There are no obligations or expectations with respect to research or service but nothing precludes

Collective Agreement 2008-11 a Permanent Sessional Lecturer from participating in either activity voluntarily.

4.20.5 Transfer to Regular Faculty Ranks A Permanent

Sessional Lecturer may be appointed to a regular faculty position without advertising under the following conditions:

(a) The Vice-President, Academic has authorized a position for the Department/School.

(b) The Chair/Director of the Department/School has made available an application file for viewing by all Members of the Department/School and has arranged interviews and open meetings with the candidate and Members in the Department/School, on campus or through telecommunications technology.

(c) A majority of the full-time Members of the

Department/School by vote have approved of the recommendation, including the term of the appointment where applicable

4.20.6 The salary of each Permanent Sessional Lecturer on July 1 shall be composed of the base salary of each Member as of June 30 of that year as modified by the following items:

(a) A scale increase as set in paragraph 8.10.1

(a) of Article 8.10 – Salary Structure for the respective year;

(b) A Progress-Through-The-Ranks increment as set in paragraph 8.10.1 (b) of Article 8.10 – Salary Structure for the respective year;

(c) Catch-up as set in paragraph 8.10.1 (e) of Article 8.10 – Salary Structure for the respective year;

(d) A merit award shall be awarded according to Article 8.25 – Merit Increments;

The salary structure for 2008-09, 2009-10 and 2010-11 shall be the floor of Lecturer/General

Librarian as set in Article 8.10 – Salary Structure for the respective year.

4.20.7 Starting Salary and Benefits: Based on qualifications and university teaching experience, starting at the floor of Lecturer and with increments as set out in Article 8.10 – Salary Structure, plus all regular benefits as per Article 8.45 – Benefits,

Collective Agreement 2008-11 vacation as per Article 7.15 – Vacation and working conditions as per Article 3.20 – Working Conditions.

The starting salary of an applicant with previous teaching experience shall be based on one (1) increment for each year of full-time equivalent at the university level previously taught. The position shall not contain ranks or promotion. Permanent Sessional Lecturer shall be entitled to the professional development allowance as per Article

6.45 – Professional Development Expenditures.

4.20.8 Article 3.10 – Academic Freedom, Article 5.75 –

Disciplinary Measures, except clause 5.75.7, and

Article 5.80 – Dismissal Procedures shall apply to

Permanent Sessional Lecturers.

4.20.9 Should a Permanent Sessional Lecturer be declared redundant the Member will be entitled to severance pay equal to one (1) month of salary for each year of service, with a minimum of three (3) months and up to a maximum of eighteen (18) months.

4.20.10 The University may appoint a maximum of thirty

(30) Permanent Sessional Lecturers.

4.20.11 The Employer agrees to no further appointments to the Alternate Stream. The remaining Alternate Stream appointments shall be covered by the terms of the 2005-08 Collective Agreement.

4.20.12 Financial Exigency Article 10.15 – Financial

Exigency shall apply to Permanent Sessional

Lecturers. Within a Department/School, a

Permanent Sessional Lecturer shall not be terminated in preference to a non-tenured Member.

When there are more than one Permanent Sessional

Lecturers in a Department/School, the more senior

Member, in terms of service determined from the date at which permanency at the University became effective shall be retained unless, after applying the criteria in Article 10.15 – Financial Exigency, there is a clear and substantial reason for doing otherwise.

ARTICLE 4.25 – WORKLOAD PROVISIONS FOR SESSIONAL MEMBERS

4.25.1 (a) If, once a contract has been executed, the workload of a Sessional Lecturer must be altered, the agreement of the Member must be obtained.

(b) Once a contract has been executed with a Sessional Lecturer, such a contract shall not be cancelled in order to have the duties performed by a Faculty Member with a full- time appointment.

(c) Cancellation prior to its commencement of a course for which a contract with a Sessional Lecturer has been executed can occur only in accordance with cancellation clause provisions contained in the contract.

(d) Cancellation clauses shall be used only where there is good reason to believe that enrolment levels may be vulnerable. In the event of a cancellation the Employer shall:

(i) Attempt to find work of equivalent value for which the Sessional Member is qualified; and failing this

(ii) Shall pay a cancellation fee of fifteen percent (15%) of the agreed salary as outlined in the Letter of Appointment for courses taught during the Fall and

Winter Terms; or

(iii) Shall pay a fixed amount of two hundred and fifty dollars (\$250) per three (3) credit course, to be stated in the Letter of Appointment, for courses taught during the Spring Session.

Sessional Lecturers shall accrue Sessional

Seniority for all cancelled courses once they have achieved establishment. Cancelled courses shall not count toward establishment.

4.25.2 The contracts issued to Sessional Librarians shall identify in reasonable detail the hours during which the work is to be performed. These hours cannot be changed without the consent of the Member. The librarian pay equivalent shall be deemed to be (____) hours per course credit of pay (the figure used here to be agreed by the Parties prior to any use of this provision).

4.25.3 The workload of a Sessional Member shall normally not exceed twelve (12) credits per Fall/Winter session (September to April) and nine (9) credits per

Spring session (May to August). The credits taught by

Sessional Members in off-campus courses shall not be included in these totals.

ARTICLE 4.30 – TEACHING RIGHTS AND
RESPONSIBILITIES FOR SESSIONAL MEMBERS

4.30.1 Sessional Lecturers shall be covered by the general provisions regarding teaching and professional librarianship in clauses 5.15.5 to 5.15.18 of Article

5.15 – Rights, Responsibilities and Duties of

Academics except for specific clauses within this section that clearly apply only to full-time faculty.

4.30.2 The Chair/Director of the Department/School shall structure the procedures required by this responsibility in a reasonable manner.

4.30.3 The Chair/Director of the Department/School shall make procedures regarding Sessional Members a matter of record.

4.30.4 In all cases where a personnel action affecting

Sessional Members is required, the action shall be an action of the full Department/School Council, even where general supervision is delegated to the

Chair/Director, to a coordinator, or to a committee.

4.30.5 Sessional Members shall have the right to attend

Departmental/School meetings. In terms of voting rights, Sessional Members shall have the right of up to two (2) voting representatives as elected annually by the Sessional Members teaching in the respective Department/School. The number of sessional voting representatives shall be determined by the number of full-time Members in the Department/School as follows:

One (1) to Nine (9): One (1) Sessional voting representative

Ten (10) and over: Two (2) Sessional voting representatives

4.30.6 The Dean/University Librarian shall make copies of course evaluations of Sessional Members available to the Members of the Department/School responsible for the appointment or renewal of

Sessional Members. Student course evaluations shall not be the sole means of determining the quality of the Sessional Member's teaching performance.

The Sessional Member's entire teaching dossier shall be considered.

ARTICLE 4.35 – ANNUAL REPORT FOR SESSIONAL MEMBERS

4.35.1 Sessional Members shall submit brief annual reports to their Departments/Schools. These reports shall include a current curriculum vitae as well as a current teaching dossier as defined in Article 5.50 –

Assessment of a Member's Performance. At their discretion, Sessional Members may also include material related to their scholarly or creativity activity, professional development, university governance, outside professional activities, and service to the community.

4.35.2 Departments/Schools shall make copies of these reports available to the Dean/University Librarian on request.

ARTICLE 4.40 – WITHDRAWAL OF SENIORITY FOR SESSIONAL MEMBERS

4.40.1 The rights established by the provisions for seniority as described above may be altered or revoked in the event that the teaching performance of a Sessional

Member is found to be unsatisfactory. Action that may affect the seniority rights of a Sessional Member may be initiated at the request of the Chair/Director of the Department/School or the Dean/University

Librarian and will normally occur only after an informal investigation establishes reasonable grounds for a formal procedure. There is an expectation that the Sessional Member will be made aware during the informal stage of an investigation of the concerns regarding her/his teaching performance and will be given an opportunity to give reasons why a formal procedure should not be initiated. The

Member will be advised of her/his right to Union representation.

4.40.2 If, after an informal investigation, the Chair/Director of the Department/School and the Dean/University Librarian are of the view that a formal procedure is warranted, an investigation shall be conducted by the Departmental/School Council or a specially formed committee that reports back to the Council. The

Union shall be advised that this procedure will be invoked. Department/Schools shall have reasonable flexibility in the constitution of such a committee. In all cases the investigating body must have at least four (4) members who shall attend all meetings convened. Membership shall include the

Chair/Director of the Department/School, at least one

(1) other full-time Member of the Department/School, at least one (1) Sessional Member from the

Department/School (if there is one willing to serve), and a nominee of the Sessional Member under investigation (such nominee must be a full-time or

Sessional Member teaching in the

Department/School during the current academic year).

4.40.3 The Member under investigation shall have the right to a full and reasonable statement of the Department's/School's reasons for initiating the investigation. The Member shall have the right to examine all evidence under consideration at least ten

(10) working days before any final determination is made and make counter-representation on it in writing or in person or both. The Member shall have the right to be accompanied by a colleague.

4.40.4 The investigating committee shall present its findings to the Department/School Council stating the reasons for its conclusions in reasonable detail. The decision of the Council, which may differ from that of the Committee, shall be forwarded to the

Dean/University Librarian for action.

4.40.5 The Council's determination may request that the

Member be cautioned or that the Employer's seniority obligation to the Sessional Member be revoked or that the Member be placed on probation for the duration of one (1) course and that a further determination be made at the conclusion of that course.

4.40.6 The Dean/University Librarian may accept the recommendation, reject it, or refer it back to the Department/School for further consideration.

4.40.7 If the Dean/University Librarian decides on revocation of seniority rights, she/he shall advise the Member and the Union in writing, stating reasons.

The Member shall have the right to request an appeal within ten (10) working days of the receipt of that communication.

The appeal shall be heard by a special FPC/FFPC, which shall consist of the regular FPC/FFPC, augmented by one (1) Sessional

Lecturer nominated by the Union who will not vote.

The Sessional Lecturer shall have the right to be heard, to be accompanied by a colleague, to examine any evidence with at least ten (10) days notice and to present counter-representation on it.

The appeal body shall determine the case by simple majority. No further arbitration or appeal shall be open to the Member or the Employer.

4.40.8 Where an appeal is determined in favour of a

Sessional Member, and where the course has been, or comes to be, scheduled for the following academic

Collective Agreement 2008-11 year, the Sessional Member, subject to seniority, shall be assigned to, and paid for such a course or courses. Any other Sessional Member assigned in anticipation of a determination against a Sessional Member against whom withdrawal of seniority is anticipated shall be entitled to compensation.

4.40.9 Withdrawal of Seniority actions must first be initiated

(as per clause 4.40.1 above) by June 1 in order to be effective for the subsequent academic year.

ARTICLE 4.45 – PHYSICAL AND MENTAL ILLNESS FOR SESSIONAL MEMBERS

4.45.1 In the event of illness, a Sessional Lecturer shall be granted leave with full pay up to two (2) weeks in each term. If requested, the Sessional Lecturer shall provide a medical certificate to substantiate the claim. For longer illnesses no deduction of pay shall be made in cases where no substitute teaching costs accrue to the Employer.

ARTICLE 4.50 – FAMILY RESPONSIBILITY FOR SESSIONAL MEMBERS

4.50.1 The Ontario Employment Standards Act, 2000 provides specific rights and responsibilities with respect to leaves related to family responsibilities.

These provisions will apply to Sessional Lecturers.

ARTICLE 4.55 – RATES OF PAY FOR SESSIONAL MEMBERS

4.55.1 Sessional Lecturers shall be paid as follows for each three (3) credit course which commences after the date shown below; other courses will be pro- rated as per their credit weighting.

(a) Sessional Members without Establishment

Base Four Four Total pay percent percent rate of

(4%) in (4%) in pay lieu of lieu of vaca- benefits tion

July 1,

2008 \$5,288 \$212 \$212 \$5,712

July 1,

2009 \$5,595 \$224 \$224 \$6,043

July 1,

2010 \$5,875 \$235 \$235 \$6,345

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(b) Sessional Members with Establishment and Retirees

Base Four Total pay percent percent rate of (4%) in (4%) in pay lieu of lieu of vaca- benefits tion

July 1,

2008 \$5,596 \$224 \$224 \$6,043

July 1,

2009 \$5,876 \$235 \$235 \$6,346

July 1,

2010 \$6,169 \$247 \$247 \$6,663

Sessional Members are also entitled to the assignment of teaching assistants and/or markers at a level consistent with assignment of such assistance to full-time Members.

4.55.2 When scheduled Continuing Education Courses may otherwise have to be cancelled, Members may, if they choose, agree to teach a course for an amount less than the overload stipend. This amount shall be equal to at least the stipend for the course divided by twelve (12) and multiplied by the number of students enrolled in the course at the time the course starts. A copy of the agreement shall be sent to the Union at the same time as it is offered to the Member.

4.55.3 The Parties agree that Sessional Members who have establishment for one (1) course, according to Article 4.15 – Appointment and Renewal for Sessional

Members, shall be paid at the establishment rate for any other course they may teach. However, such pay does not confer establishment for that particular course.

4.55.4 The Parties agree that compensation for Sessional Members teaching a "teachable" course in the

School of Education or a "didactique" course at l'École des sciences de l'éducation shall be pro-rated at six hundred dollars (\$600) per student up to the maximum of the rate of pay for a Sessional Member with establishment for such a course.

4.55.5 The Parties agree that the rates of pay for Sessional Members teaching activity courses in the School of Human Kinetics shall be the following:

(a) Sessional Members teaching activity courses in the School of Human Kinetics

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Base Four Four Total pay percent percent rate of
(4%) in (4%) in pay lieu of lieu of vaca- benefits tion

July 1,

2008 \$3,100 \$124 \$124 \$3,348

July 1,

2009 \$3,200 \$128 \$128 \$3,456

July 1,

2010 \$3,300 \$132 \$132 \$3,564

(b) Sessional Members teaching activity courses in the School of Human Kinetics with Establishment

Base Four Four Total pay percent percent rate of
(4%) in (4%) in pay lieu of lieu of vaca- benefits tion

July 1,

2008 \$3,300 \$132 \$132 \$3,564

July 1,

2009 \$3,400 \$136 \$136 \$3,672

July 1,

2010 \$3,500 \$140 \$140 \$3,780

4.55.6 The Parties agree that the rates of pay for Sessional
Members teaching Applied Music courses shall be the following:

(a) Sessional Members teaching Applied Music courses without Establishment

Hourly Four Four Total base per- per- hourly rate cent cent rate of
(4%) in (4%) in pay lieu of lieu of vaca- bene- tion fits

July 1,

2008 \$ 52.50 \$ 2.10 \$ 2.10 \$ 56.70

July 1,

2009 \$ 55.15 \$ 2.21 \$ 2.21 \$ 59.57

July 1,

2010 \$ 57.90 \$ 2.32 \$ 2.32 \$ 62.54

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(b) Sessional Members teaching Applied Music courses with Establishment

Hourly Four Four Total base per- per- hourly rate cent cent rate of

(4%) in (4%) in pay lieu of lieu of vaca- bene- tion fits

July 1,

2008 \$ 55.25 \$ 2.21 \$ 2.21 \$ 59.67

July 1,

2009 \$ 58.01 \$ 2.32 \$ 2.32 \$ 62.65

July 1,

2010 \$ 60.91 \$ 2.44 \$ 2.44 \$ 65.79

(c) The above rates shall apply to Sessional

Members assigned the duties of sitting on music juries, supervising master classes, and directing ensembles.

Establishment:

On the appointment of a Sessional Member to teach an Applied Music course for a third (3rd) year, the Member shall have establishment as per Article

4.15 – Appointment and Renewal for Sessional

Members.

Remuneration for Ensemble Directors:

For large ensembles of Laurentian University

(Laurentian University Choir and Laurentian

University Symphonic Wind Ensemble), the total pay will be calculated at three (3) hours per week for twenty-four (24) weeks based on the above hourly rates.

For all other ensembles, the total pay will be calculated at two (2) hours per week for twenty-four (24) weeks based on the above hourly rates.

ARTICLE 4.60 – PHYSICAL EDUCATION FACILITIES FOR
SESSIONAL MEMBERS

4.60.1 Sessional Members and their spouse and dependants as defined for full-time Members are eligible for Physical Education Centre membership and lockerette for the academic year in which they are employed, subject to the payment of the annual service fee and lockerette rental fee as established by the Division of Physical Education.

ARTICLE 4.65 – EXEMPTION FROM TUITION FEES FOR
SESSIONAL MEMBERS

4.65.1 Sessional Lecturers shall be entitled to exemption from tuition fees for credit courses taken at Laurentian University. The exemption available shall equal the number of credits taught by the Sessional Member. It can be accumulated over a maximum of five (5) years.

ARTICLE 4.70 – PROFESSIONAL DEVELOPMENT
EXPENDITURES FOR SESSIONAL MEMBERS

4.70.1 In order to further the objectives of the University, the creation and dissemination of knowledge, the activities of each Sessional Lecturer shall be supported by professional expenditures. Each Sessional Lecturer shall receive one hundred and twenty five dollars (\$125) for professional development expenditures (in accordance with

Article 6.45 – Professional Development

Expenditures) for each three (3) credit course taught. Any unused portion of the maximum allowed for professional development expenditures can be carried forward for two (2) years.

ACADEMIC CAREER

ARTICLE 5.10 – ACADEMIC QUALIFICATIONS GUIDELINES

5.10.1 For the purpose of this Collective Agreement the following definitions shall apply:

(a) "Doctoral degree" shall mean an earned

Ph.D. or other degree formally recognised as equivalent to an earned Ph.D.

(b) "Relevant experience" shall mean any combination of teaching and scholarly activity as defined in Article 5.15 – Rights,

Responsibilities and Duties of Academics and/or equivalent professional experience.

(c) "Professional designation" shall mean a diploma earned as a result of additional experience/training and qualifying examinations such as, but not limited to C.A.,

R.I.A., C.G.A., and C.R.E.D.I.F., or others agreed to by the Parties.

(d) When considering librarians, professional service or, where appropriate, library supervision shall be substituted for "teaching".

In interpreting these guidelines, the following shall apply:

(a) Article 5.10 – Academic Qualifications

Guidelines

(b) Article 5.15 – Rights, Responsibilities and

Duties of Academics

(c) Article 5.50 – Assessment of a Member's

Performance

(d) For those persons appointed prior to July 1,

2002, Article 2.20 of the 1999-2002 Collective

Agreement shall apply.

5.10.2 Academic Qualifications Guidelines for Appointment or

Promotion of Members of the Teaching Faculty.

(a) For the rank of Lecturer

(i) A Master's degree or equivalent degree; or

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(ii) A Baccalaureate degree and an appropriate professional designation.

(b) For the rank of Assistant Professor

(i) A Doctoral degree; or

(ii) A Master's degree or equivalent and satisfactory performance of the Member's responsibilities and duties over a five (5) year period as per Article 8.20 – Procedures For the

Award/Denial of a Progress-Through-

The-Ranks Increment and demonstrated evidence of scholarly activity as per Article 5.15 – Rights, Responsibilities and Duties of

Academics; or

(iii) In the Department of Law and Justice, eight (8) years of full-time university education (or the equivalent) during which time the Member must have obtained a LL.B. and an appropriate Master's degree.

(c) For the rank of Associate Professor

(i) A Doctoral degree; and

(ii) Teaching, the quality of which is satisfactory as determined solely by the method of teaching evaluation mandated by the Collective Agreement; and

(iii) Evidence of scholarly activity (as per Article 5.15 – Rights, Responsibilities and Duties of Academics) that is of good quality; and

(iv) At the time the promotion to Associate becomes effective, at least five (5) years of full-time teaching and/or research in a university or an institution of equivalent level or at least five (5) years of professional experience judged to be relevant for teaching at the university level.

(v) The requirement for scholarly activity as stipulated under (iii) may be replaced in exceptional cases by a consistently demonstrated quality of teaching and tutorial activity that clearly indicates outstanding qualities as a teacher as

Collective Agreement 2008-11 established by whatever is the generally accepted method of evaluation.

(d) For the rank of Full Professor

(i) A Doctoral degree; and

(ii) Teaching, the quality of which is satisfactory as determined solely by the method of teaching evaluation mandated by the Collective Agreement; and

(iii) Shown evidence of scholarly activity

(per Article 5.15 – Rights,

Responsibilities and Duties of

Academics) throughout the Member's career and after her/his promotion to

Associate Professor that ranks as a recognised contribution to the scholarly field or professional activity concerned.

This work must be judged by four (4) external referees, who shall normally be

Full Professors in an academic institution, and at least two (2) of these referees may be nominated by the applicant; and

(iv) Normally, at the time that the promotion to Full Professor becomes effective, at least ten (10) years of full-time teaching and/or research in a university or in an institution of equivalent level, or has accumulated at least ten (10) years of professional experience judged to be relevant for teaching at the University level;

Alternative to the requirements for promotion to

Full Professor:

The requirement for scholarly activity stipulated under (iii) may be replaced in extraordinary circumstances by a requirement that the

Member has consistently shown clearly outstanding qualities as a teacher and has scholarly activity of good quality.

5.10.3 Academic Qualifications Guidelines for Appointment or

Promotion of Professional Librarians and Archivists.

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(a) For the rank of General Librarian or General Archivist

(i) A Master's degree, in Library or Archival Studies.

(b) For the rank of Assistant Librarian or Assistant Archivist

(i) A Doctoral degree, it being understood that unless this Doctoral degree is in the field of Library Science or Archival Studies, it shall be accompanied by a

Master's degree or equivalent qualifications in Library Science or Archival Studies; or

(ii) A Master's degree in Library Science or

Archival Studies and professional service and library or archival supervisory skills relevant to academic librarianship or archival management, the quality of which is established as clearly satisfactory by whatever is the generally accepted method of evaluation over a period of four (4) years; and demonstrated evidence of scholarly activity as per Article 5.15 – Rights, Responsibilities and Duties of

Academics.

(c) For the rank of Associate Librarian or Associate Archivist

(i) An appropriate Doctoral degree, it being understood that unless this Doctoral degree is in the field of Library

Science or Archival Studies, it shall be accompanied by a Master's degree or equivalent qualifications in Library Science or Archival Studies; or

In exceptional cases, a Master's degree in Library Science or Archival Studies and professional service and library or archival supervisory skills relevant to academic librarianship or archival management, the quality of which is established as clearly satisfactory by whatever is the generally accepted method of evaluation over a period of four (4) years; and demonstrated evidence of scholarly activity as per

Article 5.15 – Rights, Responsibilities and Duties of Academics since last promotion; and

(ii) At the time the promotion to Associate becomes effective, at least five (5) years of full-time professional service relevant to academic librarianship or archival management.

(d) For the rank of Full Librarian or Full Archivist

(i) An appropriate Doctoral degree, it being understood that unless this

Doctoral degree is in the field of Library

Science or Archival Studies, it shall be accompanied by a Master's degree or equivalent qualifications in Library

Science or Archival Studies; or

In exceptional cases, a Master's degree in Library Science or Archival Studies and professional service and library or archival supervisory skills relevant to academic librarianship or archival management, the quality of which is established as clearly satisfactory by whatever is the generally accepted method of evaluation over a period of four (4) years; and demonstrated evidence of scholarly activity as per

Article 5.15 – Rights, Responsibilities and Duties of Academics since last promotion; and

(ii) Have demonstrated outstanding professional performance and, in addition, have shown evidence of on-going scholarly activity of good quality (as per Article 5.15 – Rights,

Responsibilities and Duties of

Academics) throughout the Member's career and after her/his promotion to

Associate Librarian or Associate

Archivist. This work must be judged by four (4) external referees, two (2) of whom may be nominated by the applicant; and

(iii) Have normally accumulated, at the time the promotion to Full Librarian or Full

Archivist becomes effective, at least ten

(10) years of full-time professional service relevant to academic librarianship or archival management.

5.10.4 Bilingualism

(a) The Employer may, in consultation with the Departments/Schools:

(i) Stipulate in advertising for and in appointing Members, that a bilingual applicant is preferred or required;

(ii) Require the appointment of applicants capable of working in either or both of the official languages in order to improve the balance between courses offered in English and courses offered in French within any

Department/School or Faculty;

(iii) Require the appointment of applicants capable of working in either or both of the official languages in the Library;

(iv) Consider bilingualism as a desired qualification for those Members who are selected to take on specific responsibilities.

(b) Letters of appointment shall clearly indicate any bilingual requirements which are to be a condition of being granted tenure and any assistance that the Employer might agree to provide to the Members for them to meet these requirements.

(c) A Member's performance in both French and

English will be taken into consideration in such matters as promotion and tenure.

5.10.5 A Member who has consistently demonstrated clearly outstanding performance in the areas of teaching/professional librarianship, research, and/or university governance and administrative duties may, in extraordinary circumstances, be promoted to the next rank without fulfilling the years of experience criterion as stipulated in paragraphs

5.10.2 (b), (c) and

(d) and paragraphs 5.10.3 (b), (c) and (d) above. The burden of proof of outstanding performance rests with the applicant.

ARTICLE 5.15 – RIGHTS, RESPONSIBILITIES AND DUTIES

OF ACADEMICS

5.15.1 The full-time Members of the Bargaining Unit have rights, duties and responsibilities which derive from their positions as teachers/professional librarians and scholars working within the University community, and which reflect the reasonable expectations of the

Members, the University community and the contractual expectations of the Employer. In this Article, the term Members refers to full-time Members unless otherwise specified.

5.15.2 Members have the right to engage in the following activities:

Priority One –

A) Teaching / Professional Librarianship /
Archives Management

B) Scholarly Activity

Priority Two –

C) University Governance and Administrative
Duties

Priority Three –

D) Outside Professional Activities

E) Service to the Community

Priority Four –

F) Other Paid Activity (consistent with clause

5.15.38)

5.15.3 Members have responsibilities relating to items A), B) and C) and are expected to participate actively in items A), B) and C), although not necessarily in all three (3) in any one (1) given year. A Member's responsibilities related to item A) shall consist of those teaching or library duties which are assigned by the

Dean/University Librarian as per Article 5.40 –

Academic Workload. A Member's responsibilities related to items B) and C) are inherent in a Member's status as an academic and thus flow naturally therefrom. Certain specific duties related to item B) and C) may also be assigned by the Dean/University

Librarian on an ad hoc basis in order to ensure a good and proper functioning of the University. A Member's responsibilities relating to item D), E) and F) are

Collective Agreement 2008-11 undertaken voluntarily by the Member.

5.15.4 Some specific features of academic responsibilities are set out in the following sections:

Priority One –

A) Part One - Teaching

5.15.5 Members have an obligation to develop and maintain their scholarly competence and effectiveness as teachers within the area of their expertise. They shall inform their students regarding their methods of evaluation, which have been approved by the

Department/School and the Dean, consistent with

Senate policies. They shall also inform their students regarding their instructional methods and seek approval of the Department/School and of the Dean for substantial changes in instructional methods involving significant increases in costs or alterations in the established policy of the Department/School, e.g. conversion of a lecture course to a reading course.

5.15.6 While it is recognized that whenever possible there shall be adequate consultation with the Member and the Department/School as to the assignment of teaching duties, once such teaching duties have been assigned in a fair and equitable manner by the Dean, it is the responsibility of the Member to teach the assigned courses to students registered in them at the time and place designated by the Dean in a manner which reflects the area of the content of the course approved by the Department/School consistent with the University calendar. A Member shall not delegate her/his teaching duties to another person, the occasional guest lecture excepted. Assignment of teaching duties shall be consistent with Article 5.40 –

Academic Workload. Teaching responsibilities include being available for reasonable consultation with students at their teaching locale subject to Article 5.40

– Academic Workload.

5.15.7 A Member shall not be required to co-teach a course without the Member's consent.

5.15.8 Members shall comply with all properly established regulations of the University, which are not at variance with this Collective Agreement. Members shall accept responsibility for participation in the effective operation of the University, including responsibilities for academic counselling, registration, and the supervision of examinations as appropriately assigned

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Collective Agreement 2008-11 by the Department/School, the Dean or the Registrar's office consistent with Senate policy. During examinations, only the head invigilator shall be a faculty Member. The head invigilator shall be selected randomly from the LUFA full-time faculty membership and the names of those who serve shall be removed from the pool of potential head invigilators until all remaining Members have served. The names of those Members not scheduling any of their final examinations through the Registrar's Office will not be included in the pool for the examination period concerned.

5.15.9 It is the responsibility of Members to deal ethically and fairly with students and their academic colleagues in relation to their own teaching. Ethical and fair dealing with students and colleagues includes respecting the

Laurentian Policy on A Respectful Workplace and Learning Environment. It is also the responsibility of

Members to foster a free exchange of ideas including a discussion of differing views, to avoid discrimination, to respect the principles of confidentiality in a manner consistent with the performance of their academic role, and to acknowledge their indebtedness to students and their academic colleagues in relation to their own teaching.

5.15.10 Each Member shall have freedom of discussion.

However, in the exercise of this freedom in the classroom, reasonable restraint shall be used in introducing matters unrelated to her/his subject or discipline.

5.15.11 Members shall be free to organise and to structure classroom and laboratory activities and to adopt reasonable means to maintain a learning environment, which is both productive and orderly. They shall have the right to rule on the use by students of electronic devices such as recording devices, calculating devices, and lap-top computers in the classroom, laboratory or learning situation. Notwithstanding

Members right to rule, students designated by the

Special Needs Office shall have access to electronic devices as determined by the Special Needs Office.

Members shall be informed of any such authorizations and, if necessary, can consult with the Special Needs Office for possible alterations.

5.15.12 Members shall not alter or cancel scheduled instruction except with prior permission of the Chair/Director in any but exceptional circumstances.

Such permission shall not be unreasonably refused.

Both Parties agree that every reasonable effort will be made to notify the students affected. Timetable changes of a permanent nature require the prior permission of the Dean. Absences are governed by

Article 7.20 – Absence - General.

5.15.13 Members shall have fourteen (14) calendar days following the final exam to submit their final grades or fourteen (14) calendar days following the last class for those courses that do not hold final exams.

A) Part Two - Professional Librarianship /
Archives Management

5.15.14 Members have an obligation to develop and to maintain their scholarly competence and effectiveness as librarians within the area of their expertise.

5.15.15 While it is recognised that whenever possible there shall be adequate consultation between the Member and the University Librarian as to the assignment of duties, once such duties have been assigned in a fair and equitable manner by the University Librarian, it is the responsibility of the Members to perform their duties at the time and place designated by the

University Librarian. Assignment of professional library
/ archives management duties shall be consistent with
Article 5.40 – Academic Workload.

5.15.16 It is the responsibility of Members to deal ethically and fairly with those to whom they render professional service. Ethical and fair dealing with clients and colleagues includes respecting the Laurentian Policy on A Respectful Workplace and Learning

Environment. It is also the responsibility of Members to foster a free exchange of ideas, to avoid discrimination, to respect the principles of confidentiality in a manner consistent with the performance of their academic role, and to acknowledge their indebtedness to their academic colleagues in relation to their own professional activities.

5.15.17 Members shall have the right and responsibility to adopt reasonable means to maintain an orderly and productive learning environment in the library / archives.

5.15.18 Members, if involved in scheduled work-related activities, shall not alter or cancel such scheduled activities except with prior permission of the University

Librarian in any but exceptional circumstances. Such permission shall not be unreasonably refused. Both Parties agree that every reasonable effort will be made to notify the person affected. Absences are governed by Article 7.20 – Absence - General.

B) Scholarly Activity

5.15.19 Members shall have the right and responsibility to devote a reasonable proportion of their time to scholarly activity.

5.15.20 It is understood that for the purposes of this Collective Agreement the term "scholarly activity" means:

- (a) Research directed towards a contribution to knowledge, and the dissemination of its results; and/or
- (b) Participation in those academic activities that contribute to the enhancement, creation and dissemination of knowledge; and/or
- (c) Creative and professional activities which contribute to one's discipline.

5.15.21 Scholarly activity may involve, although not necessarily be limited to the following, but in each case the Member must demonstrate that the activity is of good quality and is consistent with the contribution to knowledge described in clause 5.15.2 above. It is understood that this list does not imply an order of priority. It is also understood that the following forms of scholarly activity are not necessarily to be given equal weight and application for each discipline when a Member is being evaluated for an annual increment, merit increment, tenure or promotion. In such evaluations, where the evidence does not rest on externally reviewed publications, other evidence of scholarly activity must be considered, but the burden of proof rests upon the applicant.

- (a) The writing or editing and publication of books, textbooks, journals and of articles.
- (b) The earning of additional appropriate academic and/or professional qualifications.
- (c) Research carried out on research contracts.
- (d) The writing of case studies.
- (e) The development of teaching/library materials, of an innovative sort which have a wider application than the Member's own teaching/library activities.
- (f) The compilation and publication of scholarly bibliographies, or literary work.
- (g) The translation and publication of scholarly or literary work.

(h) Literary and artistic works, including recordings and public performances.

(i) Demonstrated leadership in the area of professional education, including workshops.

(j) Creative application of existing knowledge through such activities as consulting or workshops.

5.15.22 The Parties agree that scholarly activity does not normally include research directly related to the immediate and normal preparation for teaching activity.

5.15.23 Where appropriate in their published work, the

Members shall indicate affiliation with the University and acknowledge their indebtedness to students and their academic colleagues in relation to their own research.

5.15.24 The Parties encourage all Members of the Bargaining

Unit to deposit one (1) signed copy of their published material in the University Library. The University agrees to pay for reasonable expenses incurred by a

Member in making such material available to the Library.

5.15.25 Members have the right to participate in the activities of professional or learned societies and the like, providing such activities do not conflict with the reasonable fulfilment of assigned duties.

Priority Two –

C) University Governance and Administrative

Duties

5.15.26 To the extent consistent with their teaching/library and scholarly responsibilities, Members shall contribute to the governance of the University through membership on appropriate bodies. It is understood that for the purposes of this Article, service to the Union will be considered equivalent to service on Department/School or Senate Committees.

5.15.27 While exercising university governance and administrative responsibilities, Members shall deal ethically with other university employees and students so that objectivity, fairness, and absence of discrimination are maintained in all deliberations including assessment of performance of any employee or student. Members shall not infringe on the academic freedom of academic colleagues or

Collective Agreement 2008-11 students or breach confidentiality in this regard.

5.15.28 In order to ensure equality of opportunity to participate in university governance, the Employer agrees to circulate notice of openings on all university bodies above the Department / School / Library level to eligible Members at least two (2) weeks prior to the time that the vacancies must be filled. As a university body, the Union agrees to circulate notice of vacancies, at least two (2) weeks prior to the time that these vacancies must be filled.

5.15.29 Because bilingualism is necessary for effective participation in university governance, the Parties agree that for Members on probationary appointment, formal language training as per Article

3.30 – Bilingualism shall constitute activities of

“University Governance and Administrative Duties” as per this Article.

Priority Three –

D) Outside Professional Activities

5.15.30 The Parties encourage Members to participate in outside professional activities.

5.15.31 The scope and nature of any professional activities of a substantial nature, whether paid or unpaid shall be reported in writing to the Dean/University Librarian as part of the annual report of Members.

Notwithstanding the above, contractual activities that would involve Members spending a total of more than one half (1/2) day a week on a regular basis between

Monday and Friday during a term in which they teach or perform professional library duties shall be reported in writing to the Dean/University Librarian prior to the signing of the contract or beginning of the work. The

Dean/University Librarian may require the Members not to undertake an activity or to moderate such an activity on the grounds that the time involved would or does interfere with the Member's academic obligations as defined in this

Collective Agreement. A reasonable period of time shall be allowed for the Members to comply. The appropriateness of the decisions of the

Dean/University Librarian on these matters is subject to grievance and arbitration.

5.15.32 When undertaking outside professional activities,

Members retain the rights and responsibilities associated with academic freedom.

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5.15.33 When a Member's outside professional activities involve the use of the University's facilities, supplies or services, permission for their use shall be approved in writing or through email by the appropriate University Administrator. Such permission shall not be unreasonably refused. These services shall normally be paid for at the prevailing internal University user rate, unless the University Administrator agrees in writing to waive all or part of the fee(s).

E) Service to the Community

5.15.34 The Parties encourage Members to offer service to the community.

5.15.35 The rights and responsibilities of Members who offer service to the community shall be the same as for those Members who participate in outside professional activities, as modified by clause 5.15.36 below.

5.15.36 When a Member's service to the community involves the use of the University's facilities, supplies or services, permission for their use shall be approved in writing or through email by the appropriate University Administrator. Such permission shall not be unreasonably refused. These services shall normally be paid for at the prevailing external University user rate, unless the University Administrator agrees in writing to waive all or part of the fee(s).

Priority Four –

F) Other Paid Activity

5.15.37 Faculty Members have the right to engage in other paid activity

5.15.38 All such activities shall be governed by clause 5.15.31 above, except the annual report where such reporting shall be optional to the Member.

ARTICLE 5.20 – APPOINTMENT AND RENEWAL

Appointment of Full-time Members of the Bargaining Unit–

5.20.1 New appointments that fall within the Bargaining Unit shall normally be advertised:

(a) Within the University and

(b) Outside the University

In suitable national and discipline publications such as University Affairs, CAUT Bulletin and other publications that may be especially directed to

Collective Agreement 2008-11 professionals who belong to any of the four (4) designated employment equity groups. Advertisements shall contain a clause stating that Laurentian University is committed to employment equity.

5.20.2 (a) Appointments shall be made by the Vice-President, Academic on behalf of the Employer and on the recommendation of the Dean/University Librarian and the written recommendation of the majority of the Members of the Department/School concerned after scheduled, minuted meeting(s) with Department/School Members. Individual Members may choose to vote in person, by email or by facsimile. Proxy voting is not permitted.

(b) The letter of appointment shall indicate the Department/School to which the Member will be assigned.

(c) In the event that an appointee has duties and responsibilities in more than one Department/School or program, then one Department/School shall be declared to be the Member's Department/School. Wherever in this Collective Agreement recommendations or evaluations of a Member's performance are required from a Department/School, in addition to the recommendation or evaluation from the assigned Department/School, the other Department(s)/School(s) or program(s) shall also submit their recommendation or evaluation; these recommendations shall carry a weight approximately proportional to the duties and responsibilities of the Member in each program/Department/School.

(d) Advertisements for all vacant positions shall refer to the Union website where applicants can access the Collective Agreement.

5.20.3 If a number of applicants have been judged to be substantially equal in qualifications and appropriateness of academic specialization, priority shall be given to Canadian citizens, permanent residents, and persons on minister's permits.

5.20.4 (a) Where selection has to take place among equally qualified applicants, relevant criteria for appointment shall include teaching/professional, scholarly potential and employment equity goals.

(b) In disciplines where it is difficult to attract qualified faculty, and/or in order to achieve employment equity goals, the Employer and the Union will work together to devise and implement innovative appointment arrangements in order to combine appointments with the opportunity to complete Doctoral degrees.

(c) All Department/School search committees for new faculty appointments shall include at least one (1) woman. Where the

Department/School has no women Members, the Dean/University Librarian, in consultation with the Department/School, shall appoint a woman Member from another

Department/School to the search committee.

(d) Search committees shall be proactive in the recruitment of applicants from the four (4) employment equity groups outlined in Article

5.25 – Employment Equity. If the tentative short list of applicants does not include at least one (1) member of an equity group, the search committee shall submit an explanation. If the

Dean/University Librarian is not satisfied with the explanation, the Dean/University Librarian may change the short list. If the short list contains fewer than three (3) names, this change can only be an additional name.

Alternatively, the Dean/University Librarian shall work together with the

Department/School to substitute one (1) of the short-listed names.

5.20.5 Appointments shall be made only to the ranks referred to in this Collective Agreement, viz, Lecturer,

Assistant Professor, Associate Professor, Full

Professor, and the corresponding library ranks

(General Librarian/Archivist, Assistant

Librarian/Archivist, Associate Librarian/Archivist, Full

Librarian/Archivist).

5.20.6 Appointments shall be made only to the status categories referred to in this Collective Agreement, viz, limited term, probationary and tenured. From time to time the Parties may agree to other categories.

5.20.7 Candidates from within the Bargaining Unit shall be entitled to consideration for all advertised posts.

5.20.8 All letters of appointment shall normally be signed no later than the start of a teaching term in which a Member must first teach, i.e. by September 1, January

1 and May 1. Letters of appointment shall follow the format outlined in Appendix O – Standard Letter of Employment and Offer of Employment. No letter of appointment shall contain any conditions not consistent with this Collective Agreement. A copy of the letter of appointment, or revisions thereof, shall be forwarded to the Union at the same time as the original is sent to the applicant. The applicant's telephone/fax numbers and email address, as well as any other means of contacting the applicant will be included if the applicant has provided them.

5.20.9 Upon appointment new Members shall provide the

Vice-President, Academic copies of their birth certificate, or equivalent document, and certified copies of their academic degrees and, if required for the position, their professional qualifications.

Limited Term Appointments –

5.20.10 Limited Term appointments are appointments that carry no implication of renewal or continuation beyond the stated term and no implication that the appointee shall be considered for tenure. Limited term appointees must be assigned to an academic

Department/School and shall be considered

Members unless excluded by Article 2.15 –

Recognition of the Bargaining Unit. Limited term appointments are utilised:

(a) To bring distinguished visitors to the University.

(b) For exchange appointments.

(c) To provide replacements for Members on leave.

(d) To respond to specific academic needs which the Employer, for academic and/or budgetary reasons, does not wish to result in an appointment in the probationary stream. This shall be done in consultation with the Union who shall not unreasonably withhold its agreement.

(e) For appointments to programs with provisional funding or of a trial nature.

5.20.11 Where appointments must be made urgently, the

Vice-President, Academic may, with the agreement of the Parties, authorise exceptions to the procedures in clauses 5.20.1 and 5.20.4 above.

Such agreement shall not be unreasonably withheld.

5.20.12 The Vice-President, Academic has the discretion, after consultation with the Department/School and the Dean/University Librarian, to re-appoint the holder of a term appointment without further advertisement. Should the Employer choose to re- advertise the post, the incumbent may apply, but retains no right of preference over other acceptable applicants. The normal procedures for appointment will apply.

5.20.13 Term appointees may not apply for promotion in the final year of their term appointment, unless they had been prevented from applying in the year immediately preceding. A term appointee reappointed to a further term appointment or a term appointee reappointed to a probationary position shall be reappointed to the same rank that she/he held in the previous appointment. A Member so reappointed may, subsequent to reappointment, also apply for a promotion as per Article 5.65 – Promotion

Procedures. If the Member is granted a promotion, the said promotion shall be retroactive to the date of the Member's reappointment.

5.20.14 Term appointments shall be limited to a total of three

(3) years, except by agreement of the Parties. In cases where the limited term appointment is a replacement for an academic administrator, the appointment may be for a term up to five (5) years.

The initial term may be for less than a full academic year, but reappointment shall normally be for a full twelve (12) month period. The term limits (three (3) or five (5)) shall apply whether or not the term appointments are consecutive or intermittent.

5.20.15 Non-renewal of term appointments shall not be subject to grievance.

5.20.16 For the duration of this Collective Agreement, the

Employer agrees that the total number of limited term appointments will not exceed fifteen percent (15%) of the total number of faculty members except with the agreement of the Parties.

Probationary Appointments/Tenure Appointments –

5.20.17 Probationary appointments are defined as appointments lasting up to a maximum of five (5) years, during which time the Employer and the

Employee are afforded an opportunity for mutual appraisal.

5.20.18 Probation does not imply that the Employer will grant tenure at the end of the probationary period; it does imply that the Employer will give serious consideration to awarding tenure.

5.20.19 Should a Member holding a term appointment wish to apply for a probationary appointment, the Member's application shall be considered in the normal way along with all other applications for the position. Should such a Member be appointed to the probationary position, at the Member's discretion, the Member's probationary period may be reduced by up to the number of years that the Member has served in limited term appointment(s) to a maximum of three (3) years.

5.20.20 Faculty appointed on probation will serve a maximum probationary period based on the academic rank at which the appointment is made.

Faculty appointed at the rank of Lecturer/General

Librarian or Assistant Professor/Librarian will serve a five (5) year probationary period. Faculty appointed at the rank of Associate Professor/Librarian and Full

Professor/Librarian will serve a three (3) year probationary period. Where a Member is appointed at the rank of Full Professor/Librarian the Employer may grant tenure on appointment. Under exceptional circumstances and upon recommendation of both the Department/School and the Vice-President,

Academic, where a Member is appointed at the rank of Associate Professor/Librarian the University may grant tenure on appointment, provided that the new

Member is tenured at another recognised university.

5.20.21 An Associate Professor/Librarian or Full

Professor/Librarian who has at least three (3) years service to the University, who has applied for a probationary appointment, shall be considered for such an appointment on the basis of the criteria listed in Article 5.60 – Tenure Evaluation

Procedures. Should such a Member be appointed to the position, it shall be a final probationary appointment of one (1) year with tenure evaluation to begin by September 30 of that year.

5.20.22 In the case of persons appointed at the rank of Lecturer/General Librarian and Assistant

Professor/Librarian, the initial probationary appointment shall be for a period of three (3) years.

(a) In their initial letter of appointment by the

Vice-President, Academic and in their annual evaluation letters by the Deans/University

Librarian, all Members on initial probationary contract shall be notified that they shall begin to undergo a renewal evaluation by the

FPC/FFPC/LPC no later than September 30 of the final year in their initial probationary contract.

(b) Subject to satisfactory performance as outlined in paragraph 5.20.22 (c) below, the initial probationary appointment will be followed by a further two (2) year probationary appointment with a tenure evaluation to take place in the final year of that second appointment or as per Article 5.60 – Tenure

Evaluation Procedures.

(c) The decision whether or not to offer a second two (2) year probationary appointment shall be reached on the basis of a judgement of satisfactory performance under procedures set out under Article 5.45 – Annual Report for

Members, Article 5.60 – Tenure Evaluation

Procedures and Article 8.20 – Procedures for the Award/Denial for a Progress-Through-the-Ranks Increment;

(d) In assessing the applicant's progress toward meeting the requirements for tenure outlined in paragraphs 5.60.3 (d) and (e) of Article

5.60 – Tenure Evaluation Procedures, the

FPC/FFPC/LPC shall comment on each aspect of these criteria. The FPC/FFPC/LPC should also comment on the rate of progress shown during the initial probationary period. If the performance is found unsatisfactory the FPC/FFPC/LPC may recommend that the applicant not be offered a final probationary appointment.

5.20.23 In the case of persons appointed at the rank of

Associate Professor/Librarian and Full

Professor/Librarian, the initial appointment shall be a three (3) year probationary appointment with a tenure evaluation to take place in the final year of the appointment, except as modified in clause 5.20.20 above.

5.20.24 The tenure evaluation is to be conducted in accordance with the procedures set out in Article

5.60 – Tenure Evaluation Procedures, and will result in a decision either to award tenure or to allow the appointment to lapse.

Adjunct Appointments –

5.20.25 When it is appropriate for scholarly or professional reasons, a person may be appointed to a position as Adjunct Professor by the Vice-President, Academic upon recommendation by Departments/Schools and Deans for a period with defined privileges and voluntary responsibilities in scholarly activity. Each month at Senate, the Vice-President, Academic shall table as a separate Information item a list of any newly appointed Adjunct faculty members including their names, Department/School affiliations, periods of appointment along with a justification for each appointment, highest degree held, year obtained, current institution and rank (position), at that institution. All Adjunct faculty members shall also be included in the faculty listing on Department/School websites.

5.20.26 Adjunct appointments shall also become Sessional

Members if they carry any of the duties consistent with this Collective Agreement. Such Members shall be paid for thesis supervision as per Article 5.40 –

Academic Workload. However, Adjunct faculty members may collaborate in scholarly activities with Members without becoming Sessional Members.

5.20.27 There shall be no new appointments to the currently designated Affiliate Professor category. Professors currently designated as Affiliate Professors are eligible to be transferred to the Adjunct status at the expiry of their current term of appointment.

Cross Appointments –

5.20.28 When it is appropriate for academic teaching/scholarly or professional reasons, Members may be appointed to more than one (1)

Department/School of the University such that the salary of the Member is charged to one (1) fiscal

Department/School, but she/he is named to another

Department/School in which she/he has a sustained academic teaching/scholarly or professional interest.

Such appointments shall be called cross appointments.

5.20.29 A cross appointment shall only be made with the consent of the Members of all Departments/Schools concerned.

5.20.30 A cross appointment shall be made by the Employer for a fixed period not exceeding five (5) years, and may be renewed or altered with the consent of the Member and on the recommendations of the Department(s)/School(s) concerned. The termination or alteration of a cross appointment, except for cause, shall not in itself jeopardize the Member's appointment with the University in the Department/School of primary responsibility, as specified in clause 5.20.33 below. Notwithstanding any of the foregoing, a cross appointment will terminate upon the termination of the appointment in the Department/School of primary responsibility as specified in clause 5.20.33 below.

5.20.31 The sources and level of administrative and academic teaching/scholarly support available to the Member with a cross appointment shall be mutually agreed by the Member and the Department/School concerned and shall be confirmed in writing by the Chair/Director. In the event that the cross-appointed Member is recommended by either Department/School to teach in the Department/School to which she/he has been cross appointed, the teaching assignment will be issued by the primary Dean of the Member and only with the agreement of the other Dean (if applicable) and after consultation with both Chair(s)/Director(s).

5.20.32 In the case of a cross appointment, the assessment procedures and criteria to be used by the cross- appointed Department/School in considering the Member for renewal, tenure and promotion shall be those of the Department/School of primary responsibility as specified in paragraphs 5.50.6 (b),

5.50.6 (c), 5.50.6 (d), 5.50.6(e), 5.50.6 (f), 5.50.6 (g) and 5.50.6 (i) of Article 5.50 – Assessment of a Member's Performance only and are subject to clause 5.20.33 below.

5.20.33 The Chair/Director and the eligible Members of the cross-appointed Departments/Schools shall be consulted formally during the renewal, tenure and promotion process. This consultation shall not involve examination of the academic dossier but shall be limited to a written assessment concerning the contributions the applicant has made to the cross-appointed Department/School in the areas outlined in Article 5.15 – Rights, Responsibilities and Duties of Academics and shall be weighed by the FPC/FFPC/LPC pursuant to paragraph 5.50.6 (k) of Article 5.50 – Assessment of a Member's Performance. Members who are eligible to vote and participate in the assessment of applications shall do so in their own Department/School of primary responsibility. In cases where an eligible Member of the applicants cross-appointed Department/School acts as an assessor in the applicant's Department/School of primary responsibility pursuant

Collective Agreement 2008-11 to paragraph 5.50.6 (j) of Article 5.50 – Assessment of a Member's Performance, the eligible Member shall not be permitted to vote or participate in the assessment of the applicant by the applicant's cross-appointed Department/School given that in no case shall an eligible Member be permitted to vote and participate in the assessment in more than one instance.

5.20.34 The letter of cross appointment shall state the privileges and sharing, if any, of duties and responsibilities between or among

Departments/Schools.

5.20.35 Members holding a cross appointment shall be eligible to attend meetings of all

Departments/Schools to which they are appointed, but may vote, be elected to or appointed to committees only in their Academic

Department/School of primary responsibility.

5.20.36 Qualified persons from the Northern Ontario School of Medicine may be cross-appointed to

Departments/Schools within Laurentian University subject to the approval of the Department/School.

Such persons shall be Members of the Union if they carry any of the duties consistent with this Collective Agreement. Such Members shall be paid for thesis supervision according to Article 5.40 – Academic Workload.

Spousal Hiring Appointments –

5.20.37 When an applicant has been recommended by a

Department/School for a probationary or tenured appointment and has a spouse or partner who may be qualified for an academic position, a

Department/School appropriate to the discipline of the spouse or partner may recommend a one (1) to three (3) year term appointment without advertising under the following conditions:

(a) The Vice-President, Academic has confirmed the availability of a position within the Department/School in question;

(b) The Chair/Director has made available an application file for viewing by all Members of that Department/School and has arranged interviews and open meetings with the applicant and the Members in the Department/School, on campus or through

Telecommunications Technology;

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(c) A majority of the full-time Members of the Department/School by vote have approved of the recommendation, including the term of the appointment when applicable;

(d) The appointment has been approved by the Vice President, Academic after review of the application file and the Department/School recommendation;

(e) The decision of the Vice-President, Academic is not subject to grievance.

5.20.38 Notwithstanding the provisions of clause 5.20.14 above, an appointment made under the provisions may be extended, subject to Department/School approval, for a period of up to five (5) years in total.

5.20.39 At any time, the total number of spousal appointments shall not exceed ten (10).

Appointments and Accreditations to the Faculty of

Graduate Studies –

5.20.40 All Members with a PhD or equivalent qualification are eligible to teach graduate courses or conjoint graduate-senior undergraduate courses. However, to supervise graduate theses Members must be appointed to the Faculty of Graduate Studies.

Members may apply at any time to the Dean of Graduate Studies for appointment to the Faculty of

Graduate Studies. The requirements for appointment shall be publicly available to all

Members. All applications for appointment will be evaluated in accordance with the Policy of the Council of the Faculty of Graduate Studies.

ARTICLE 5.25 – EMPLOYMENT EQUITY

5.25.1 The Parties support the principle of employment equity as defined by Provincial and Federal Laws and the Senate/Board of Governors approved Policy on Employment Equity.

5.25.2 Employment Equity

(a) The Parties pledge themselves to work to increase the proportion of faculty Members who are members of the four (4) designated employment equity groups (women, native people, persons with disabilities and members of visible minorities) to an equitable level in each discipline.

(b) To determine an equitable proportion of members of the four (4) designated employment equity groups for each discipline, the Parties shall consider among other factors the number of Doctoral applicants in Canadian universities as revealed by Statistics Canada data.

5.25.3 The Vice-President, Academic shall support employment equity by:

(a) promoting awareness of the University's commitment to non-discrimination and to the promotion of equity in the employment status of Members in the designated employment equity groups;

(b) ensuring proper training on equitable employment practices for all Departments/Schools hiring new members;

(c) providing annual reports to the Employer and the Union on:

(i) the total number of applicants and the number of self-identified applicants by employment equity group for each vacant position for which a search has been conducted,

(ii) the composition by employment equity group of the Members in each

Department/School, by rank and status of appointment, as voluntarily reported by Members,

(iii) the percentage of employment equity groups by discipline in graduate degree programs in Canada, if available,

(iv) other matters deemed necessary to monitor the effectiveness of this

Article.

5.25.4 In order to increase awareness of the University's employment equity goals and to support non- discriminatory interview and hiring practices, full-time

Members shall make every reasonable effort to attend the training sessions on equitable employment practices offered by the University for their respective Department/School.

ARTICLE 5.30 – ABORIGINAL EQUITY INITIATIVE

5.30.1 Following from the 2007 Report of the Aboriginal Equity Initiative Committee mandated by the 2005-08

Collective Agreement, the Employer and the Union agree that a series of active measures are required to appoint a larger number of qualified Aboriginal professors and librarians at Laurentian University, particularly outside Aboriginal-specific programs.

5.30.2 The Employer agrees to develop a “grow-our-own” program to recruit and appoint Aboriginal professors and librarians to probationary appointments, who, on the condition of agreeing to work at Laurentian as professors/librarians for a minimum of three (3) years, shall be supported in completing the academic qualifications needed for tenure (per

Article 5.10 – Academic Qualifications Guidelines).

The details of the program are to be agreed to by the

Employer and the Union in consultation with the

Office of Academic Native Affairs. Each September, the Employer shall canvas Departments/Schools with upcoming probationary appointment vacancies, and assuming the Department's/School's agreement to participate in this program, shall make every reasonable effort to appoint at least two (2)

Aboriginal candidates under the program every year beginning July 1, 2009.

ARTICLE 5.35 – NEWLY HIRED MEMBERS

5.35.1 In the year the Collective Agreement is being negotiated, all new hires whose appointments are effective July 1 or before the signing of a new

Collective Agreement shall receive all increases in salary for that year that become effective July 1, except for the PTR increment, merit increment, or any other increase explicitly excluded by the new

Collective Agreement, irrespective of the actual date of commencement of employment.

ARTICLE 5.40 – ACADEMIC WORKLOAD

5.40.1 The academic workload shall be assigned in a fair and equitable manner. To help ensure this goal, each Member of a Department/School shall receive a copy of the Chair's/Director's recommendations to the Dean/University Librarian on the Member's own workload and a summary of the recommendations on all other Members in the Department/School,

Collective Agreement 2008-11 including any recommendations for overloads, prior to the recommendations being forwarded to the

Dean/University Librarian. Each Member shall receive by June 15 a copy of the Dean's/University Librarian's decision on these recommendations.

5.40.2 The academic workload of a full-time Member during the academic year includes: (a) teaching/professional librarianship/archives management, including the supervision of graduate and undergraduate students; (b) scholarly activity, including commitments to external granting agencies; (c) University governance, administrative duties, and other contributions to the University. The normal guideline for the distribution of the workload among the three (3) main workload components is: forty percent (40%) teaching/professional librarianship/archives management, including the supervision of graduate and undergraduate students; forty percent (40%) scholarly activity, including commitments to external granting agencies; and twenty percent (20%) University governance, administrative duties, and other contributions to the University.

5.40.3 The assignment of the workload shall be communicated in reasonable detail, in writing, to the Member by June 15 by the Dean/University

Librarian. The Dean/University Librarian shall by

April 15 request the written advice of the

Department/School concerned. The Chair/Director shall submit the written advice of the

Department/School by May 1 and the

Dean/University Librarian shall normally accept the advice of the Department/School. The time-tabling of the teaching load/library assignment shall be communicated in writing to the Member by July 15 by the Dean/University Librarian after consultation with the Registrar. For the duration of this Collective Agreement the Registrar shall have final authority in time-tabling all courses.

5.40.4 The composition of the workload of Members may vary with their discipline, and will take into account the capabilities of the Members, the need to maximize their potential and any obligations placed on them within the University's operations, consistent with the terms of this Collective Agreement. In the assignment of teaching loads, the Deans, in consultation with the Departments/Schools, shall consider not only the number of courses taught by a Member, but the size and type of such courses as well as administrative and other duties. Members' workloads shall also be subject to the following maximum norms for assigned workloads.

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(a) Teaching Members: In the assignment of teaching loads by the Deans, in consultation with the academic Departments/Schools, the maximum normal teaching load per academic year shall be two (2) full courses or twelve (12) credit equivalents in the Faculty of Science and Engineering and two and one-half (2 ½) full courses or fifteen (15) credit equivalents in other Faculties.

(b) Professional Librarian and Archivist Members:

In the assignment of workloads by the

University Librarian, the normal hours of scheduled student contact shall not exceed twelve (12) per week, scheduled fairly and equitably and on the recommendation of the Department.

(c) Notwithstanding paragraph 5.40.4 (a) above,

Members on a twelve (12) month limited-term appointment may have a teaching load of three (3) credits above the normal teaching load. This above-normal teaching load shall be for a maximum of twelve (12) months only.

Any extension of the twelve (12) month limited-term appointment or any additional limited-term appointments to the Member shall be according to the normal teaching load as specified as per paragraph 5.40.4 (a) above.

5.40.5 The Dean/University Librarian may include in

Members' workloads any teaching/professional library or archival assignment related to their discipline and any on-campus administrative activity that the Dean/University Librarian considers necessary for the effective operation of the Faculty/Library or of the University program. With regard to the load for teaching/professional librarianship/professional archival work, generally prevailing past practices shall apply unless these practices have been the result of Members undertaking voluntarily unpaid overloads to maintain the integrity of programmes or service commitments in Department/Schools which have suffered complement reductions due to budgetary pressures or unless specific provisions in this contract state otherwise.

5.40.6 The determination of the workload shall be subject to the following conditions:

(a) The Dean/University Librarian, in accordance with Article 3.10 – Academic Freedom, shall not impose specific scholarly tasks other than the teaching/professional librarianship duties

Collective Agreement 2008-11 referred to in clause 5.40.5 above. Specific tasks related to the internal governance of the Department/School shall not be imposed by the Dean/University Librarian, except for the appointment of an Acting Chair/Director as in

Articles 9.15 – Selection of Chairs/Directors and 9.20 – Term of Office of Chairs/Directors.

The Dean/University Librarian may assign specific responsibilities concerning a

University-related community activity in consultation with the Member. The Member shall not unreasonably refuse.

(b) The Dean/University Librarian shall normally not impose on any individual a workload in excess of that which in the past has generally been applicable to Members within the

Faculty/Library to which the Member belongs.

The Parties agree that excessive overload teaching/professional library work is undesirable and for that reason compensation for teaching-related overloads from all sources, including courses administered through the Centre for Continuing Education, shall be limited to a maximum payable for twelve (12) credits per year with a maximum of nine (9) credits in either the Fall/Winter or the Spring/Summer sessions, the Parties further agree that the twelve (12) credit overload allowance shall be limited to three

(3) consecutive years.

Where the above limitation on total compensation to a Member involves a component from the supervision of a distance education course(s) according to clause

8.40.5 of Article 8.40 – Distance Education

Courses, the University shall make available marking assistance as required and in keeping with the degree of limitation.

(c) From time to time, the Dean/University

Librarian, in consultation with the

Department/School may request a Member to undertake additional duties over and above the normal workload. In such instances, an overload payment shall be made, as in Article

8.35 – Overloads. The Member shall not unreasonably refuse such assignments.

Members who believe they are entitled to overload payments shall apply through the

Dean/University Librarian to the Vice-

President, Academic within ten (10) working days after the assignment of the workload.

The Vice-President, Academic shall provide an answer, in writing, to the Member within ten (10) working days of her/his application. If negative, the decision shall be accompanied with reasons.

(d) In the event that a workload assignment, with regard to the courses taught or professional librarian duties or other assigned duties, is not acceptable to the Member or the Department/School, after discussion with the Dean/University Librarian, the Member or the Department/School may appeal to the Vice-President, Academic by July 15. The decision of the Vice-President, Academic shall be communicated in writing to the Member and Department/School before August 1.

(e) The credits for courses approved by Senate (Council on English Language Programmes (CELP) and Conseil des programmes en français (CPF)) shall not be altered when the Dean assigns the teaching of any of these courses to a Member.

(f) When a Member is assigned to teach two (2) or more courses at the same time and location, she/he shall receive workload credit for the course with maximum credits.

5.40.7 Once assigned, workloads shall not be altered except in cases of emergency. If a proposed workload must be altered, such alteration will be taken into consideration in the annual performance evaluation. However, alterations for reasonable program requirements and low enrolment may be made to Winter and Spring session courses by October 1.

If the Dean, for non-emergency reasons, deems it necessary to alter the workload of a Member once it has been assigned, the Dean must obtain the agreement of the Member.

Any alteration to a Member's workload, including any associated overload payments shall be communicated to each Member of the

Department/School within five (5) working days after the Member has been formally notified of the change.

Notwithstanding the provisions of this Article, when an assigned course(s) is cancelled because of zero registration in the course(s) there arises an obligation on the part of the Member to undertake additional work in order to maintain fairness and equity within the Department/School. The nature and extent of such work shall be determined in discussions between the Member, the Chair of the

Department/School and the Dean. In the event that

Collective Agreement 2008-11 the Member was scheduled to receive an overload stipend such a stipend should be reduced appropriately. In the case where additional work assigned is in the form of a course, such course shall be one the Member has taught in the last two (2) years, unless otherwise agreed to by the Member.

5.40.8 The determination of the workload for Members of the teaching faculty shall also be subject to the following conditions:

(a) A Member is entitled to one (1) term without scheduled teaching among the Fall, Winter and Spring terms as part of her/his normal workload. The scheduled teaching duties as part of a Member's normal workload shall normally be in the Fall and Winter terms of the academic year.

(b) In the case of correspondence or off-campus courses, consultation times shall be arranged for the teaching locale in accordance with the requirements of the subject matter. The

Chair/Director shall outline the norms in consultation with the Department/School.

(c) In the case of evening courses, the Dean shall not assign another course scheduled to begin within twelve (12) hours of the scheduled end of the evening course unless the Member agrees to this in writing.

(d) With the exception of Members who are teaching at this University for the first time or teaching in a new program, no Member shall be required in an academic year to prepare for more than one (1) full course or two (2) half (1/2) courses (or equivalent) which she/he has not taught at least once during the previous four (4) years. Normally, no Member shall be required to undertake such course preparation more than once every two (2) years, nor shall any Member be required to undertake new course preparation unless requested to do so by June 1. Where a course is replaced by a renamed or renumbered version of what is essentially the same course in the same language, it shall be deemed to be the same course for purposes of this Article.

(e) Members may be required to supervise or develop distance education courses as part of their normal workload subject to provisions of

Article 8.40 – Distance Education Courses.

Members whose appointments specifically included the development of distance

Collective Agreement 2008-11 education courses as part of their normal workload may be assigned such duties for the duration of their contract(s).

(f) In order to enhance the ability of Members to undertake scholarly activity, it is desirable to schedule the teaching activities in such a way as to create blocks of time free of scheduled teaching activities. For the Fall and Winter terms, the scheduling of courses shall permit every Member to have at least one (1) day per week for scholarly activity during which she/he is not expected to teach scheduled classes. Members wishing to create additional such days or blocks of time without scheduled teaching shall approach the Chair/Director of the Departments/Schools and the Dean with an appropriate request. These officials shall make reasonable efforts to accommodate such requests within the constraints imposed by requirements of offering programs and courses to students. When competing requests for time blocks without scheduled teaching cannot be met for all applicants, priority shall be given to those individuals who earlier have been unsuccessful in making such a request, provided that these were based on bona fide requirements to enhance scholarly activity.

(g) Full-time Members teaching in programs where the preparation of a thesis is mandatory for students have an obligation to participate in the thesis supervision provided that they are qualified to do so. However, the Parties agree that the close working relationship desirable for the successful preparation of a thesis is best achieved under conditions that allow for mutual choice on the part of the Member and the student before entering the supervisor/student relationship.

(h) Notwithstanding paragraph 5.40.6 (e) above, when a Member undertakes academic supervision of an individual student in a program offered by Laurentian University, when such work is over and above the normal workload, such supervisory work shall be recognized upon its successful defence or completion as follows:

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Supervisory work Credit Monetary value value at

\$1,000 / credit

PhD Thesis 3 \$3,000

Master's Thesis or 1 \$1,000

Advanced Practicum in Social Work

PhD or Master's $\frac{1}{2}$ \$500

Research Project,

Research Essay,

Directed Reading

Seminar or

Independent Study

Undergraduate ■ \$333

Thesis where mandatory

Undergraduate $\frac{1}{4}$ \$250

Directed Reading

Seminar or

Independent Study where mandatory

(i) The above credits may be shared by agreement between two (2) or more

Members who have contributed to the thesis or other supervision. In cases of disagreement, the Dean shall arbitrate the proportions.

(ii) A Member's teaching credits for individual supervisions as outlined in this paragraph can be accumulated towards a reduction of the Member's normal teaching load to a maximum of three (3) credits release per academic year. Unused credits can be carried over to subsequent years. The scheduling of the reduction shall be with the mutual agreement of the

Member and her/his Dean.

(iii) Alternatively, Members may be paid the credit value accumulated for any supervisory work in their professional expenditure account. At any time,

Members may transfer the monetary value of the accumulated credits into their professional development expenditure account.

(iv) Once the supervisory work has been completed, it shall be the responsibility of the Member to report such

Collective Agreement 2008-11 completion to the Dean on a form co- signed by her/his Chair/Director. The Dean's Office shall either register the credit on the Member's workload credit account to be created in WebAdvisor or transfer the funds to the Member's professional development expenditure account, as the Member directs.

(v) Based on existing program requirements, the Dean shall identify those programs which have mandatory supervisory needs as per paragraph

5.40.8 (g) above. Any Member planning to supervise an individual student in another program for credit under this paragraph needs the prior authorization of the Dean.

(vi) The subparagraphs 5.40.8 (h) (i) to

5.40.8 (h) (iv) above do not apply to

Research Chairs who already received a teaching load reduction.

5.40.9 The determination of the workload for professional librarians shall also be subject to the following conditions:

(a) Members may be requested to offer service during one (1) evening per week and if requested, they shall not unreasonably refuse, provided that such requests are made on a fair and equitable basis.

(b) Professional librarians may be expected to carry library supervisory duties.

5.40.10 In order to promote scholarly activity, as defined by section B) Scholarly Activity of Article 5.15 – Rights, Responsibilities and Duties of Academics within the

University, a Member may have her/his teaching/library service workload altered. Requests for workload reductions as a result of other paid activity shall be considered in accordance with the provisions of Article 7.35 – Voluntary Reduced Workload. However, contract research where the

Member is paid a stipend not to exceed twenty thousand dollars (\$20,000) for her/his services may be considered under this provision.

(a) Without compensation to the University:

For such an assignment to become operative, it shall require the recommendation of the

Department/School, of the Dean/University Librarian, and approval of the Vice-President, Academic. Faculty Members who receive one

(1) or more course reductions for purposes of enhancing scholarly activity, including the preparation of teaching materials for the

Centre for Continuing Education, shall not be entitled to overloads as per paragraph 5.40.6

(b) above. This restriction shall also apply to

Librarians whose workload is also reduced for scholarly purposes.

(b) With compensation to the University:

A Member with a regular teaching load may elect to buy-out of up to fifteen (15) credits of teaching load over five (5) years, not to exceed six (6) credits per year, or the equivalent of professional library service in order to concentrate on research activities. It is acknowledged that certain grants may require a reduction in teaching loads exceeding fifteen (15) credits. The buy-out must be applied for no later than April 1 of the year preceding the academic year for which it is requested and the Dean/University

Librarian shall not unreasonably refuse such request. The Dean/University Librarian shall communicate her/his decision by May 1. The buy-out shall cover the actual cost (including benefits) to replace the teaching/professional library work but shall not exceed the overload or sessional rate of pay as appropriate. A

Member shall not be refused such a request for two (2) consecutive years.

5.40.11 The workload of any or all Members shall be made known to the Union on request.

5.40.12 It is acknowledged that the provision of teaching assistants is a factor to be considered in the assignment of workloads. As such the Vice-

President, Academic will ensure to the greatest degree possible the equitable distribution amongst the Faculties of such assistance, consistent with the policies of Academic Councils.

ARTICLE 5.45 – ANNUAL REPORT FOR MEMBERS

5.45.1 All full-time Members, except those on sabbatical or study leave who have given prior notice to their

Dean/University Librarian of their intent to postpone submission until their return, shall submit a report in writing on their activities for the preceding twelve (12) months to the Dean/University Librarian, through the Chair/Director, by May 15. The report will cover all components of her/his responsibilities as listed under Article 5.15 – Rights, Responsibilities and Duties of Academics.

Members on sabbatical or study leave are covered by

Article 7.25 – Sabbatical Leaves and 7.30 – Study

Leave respectively.

5.45.2 In preparing their reports, Members shall use the appropriate standardised form developed for each Faculty and the Library.

5.45.3 It is also the responsibility of the Members to provide annually an up-to-date and corrected curriculum vitae for their personnel file.

ARTICLE 5.50 – ASSESSMENT OF A MEMBER'S PERFORMANCE

5.50.1 When making an assessment, the assessing body shall consider the Member's performance in the areas outlined in Article 5.15 – Rights,

Responsibilities and Duties of Academics.

5.50.2 The assessing body may consider as mitigating factors:

(a) The bilingual and tricultural character of Laurentian University.

(b) In the case of Librarians, the amount of time available for scholarly activities.

5.50.3 The assessment of a Member's teaching performance shall be based on:

Senate approved course evaluations and the

Member's annual teaching dossier.

(a) During each term of the academic year, the Employer shall administer the course evaluations approved by the Laurentian University Senate. The Vice-President,

Academic shall be responsible for the distribution and collection of the said instruments. It is agreed that Members shall have access to the results of course evaluations prior to their use by the University.

In the case of co-taught courses, the following shall apply:

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- (i) For courses co-taught sequentially, there shall be separate evaluations for each professor prior to the end of each sequence.
 - (ii) For all other co-taught courses, the information provided to the FPC will indicate that the evaluation in question shall be viewed with caution.
 - (b) It is the responsibility of Members to maintain on an annual basis their teaching dossiers. For each course, the annual dossier must contain at least the following material:
 - (i) Course syllabus and sufficient material to permit an evaluation of the contents of the course, the teaching/learning process, and the means of assessing the performance of the students.
 - (ii) Sufficient material to permit the evaluation of the Member's teaching performance as perceived by groups such as graduates, peers, or students.
 - (iii) The file should also contain any other material that the Member deems relevant to her/his teaching role.
 - (iv) In the case of co-taught courses, the Member shall include in the dossier information about which parts of the course/s fell within her/his responsibility for course preparation, scheduled classroom, laboratory and tutorial time with students, evaluation of students, and course administration.
 - (c) Committees, which may use the results of the course evaluations and the contents of the teaching dossier in their deliberations, shall receive suitable guidelines on their use and interpretation from the Vice-President, Academic.
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Should a Member feel that a course should be exempt from the approved evaluation process, reasons for exemption should be addressed to the Vice-President,

Academic no later than the end of the first week of classes in that course. The Vice-President, Academic will communicate her/his decision on the request prior to the planned date of the course evaluation.

5.50.4 Notwithstanding the priorities for teaching/librarianship and/or scholarly activities as noted in the various articles in this Collective Agreement, the Parties recognise that the University benefits greatly from significant contributions in many areas including academic administration and/or university governance, continuous involvement in a Member's professional/learned society or in a community activity directly related to the work of the University. The Parties agree that Members who have made such contributions shall have these contributions taken into especial account as compensating for lesser performance in another area.

Notwithstanding the priorities for scholarly activities as noted in the various articles in this Collective Agreement, the Parties recognise that the University benefits greatly from the contributions of Members who are exceptional teachers. Members who can make such a contribution shall have this taken into especial account as compensating for lesser performance in another area. When considering librarians, professional service and library management skills shall be substituted for "teaching".

5.50.5 Every assessing body shall put forward its recommendation or decision in written form setting forth its findings and grounds for recommendation or decision in order that a Member may know which factors were persuasive in a recommendation or decision.

5.50.6 In all considerations of renewal (included in Article

5.20 – Appointment and Renewal), tenure (Article

5.60 – Tenure Evaluation Procedures), promotion

(Article 5.65 – Promotion Procedures) and merit increments (Article 8.25 – Merit Increments) the following assessment procedure shall be used:

(a) The applicant shall submit her/his academic dossier to the Dean/University Librarian, who shall make a copy available to the

Department/School. Members of the

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Department/School who are eligible to participate in the assessment shall have access to the applicant's dossier.

(b) The criteria for a Member's eligibility to vote and to participate in the assessment of applications for renewal, tenure, promotion and merit awards are set out in each of the respective procedural articles referenced in clause 5.50.6 above. Eligible Members who are on sabbatical or other leaves, except leaves of absence without pay or long-term disability, continue to have the right to vote and to participate in the assessment process.

(c) In a timely fashion and with sufficient notice the Chair/Director of the Department/School or designate shall convene a meeting of the eligible Members to assess the applicant's academic dossier. Those eligible shall meet as often as necessary for the purpose of writing a joint single letter of assessment for the application. A vote on the application shall occur and be recorded. The eventual joint single letter of assessment shall be communicated to the applicant.

(d) The proceedings of the meetings are to be undertaken in camera. It is understood that nothing in this Article shall prevent a Member from discussing with the Union concerns about potential breaches of the Collective Agreement.

(e) In exceptional circumstances, where an eligible Member is unable to attend

Department/School assessment committee meetings, the Member may submit to the committee an individual letter of assessment with her/his recommendation and vote, both of which shall be incorporated into the joint single letter of assessment of the

Department/School. The individual letter of assessment with her/his recommendation and vote shall be provided and read to the

Department/School assessment committee during the course of its deliberations.

(f) The joint single letter of assessment shall state the recommendation, the reasons and evidence for the recommendation, the votes for, against and abstaining from the recommendation, and the names of Members participating in the assessment process. The joint single letter of assessment shall include both majority and minority recommendations and reasons for the different

Collective Agreement 2008-11 recommendations where Members request.

Prior to its submission, the assessment committee's joint single letter of assessment shall be reviewed by all participants in the assessment process for final approval of its accuracy. Participants who do not approve of the joint single letter of assessment may submit a written signed letter regarding the accuracy of the joint single letter of assessment which shall be attached to the joint single letter of assessment.

(g) A copy of the joint single letter of assessment with any submitted attachment/s as referenced in paragraph 5.50.6 (f) above will comprise the complete assessment of the applicant by the assessment committee. The Chair/Director of the Department/School shall forward the complete assessment of the applicant by the assessment committee simultaneously to the applicant and to the Chair of the FPC/FFPC/LPC. The applicant has the right to respond in writing to the complete assessment of the applicant by the assessment committee within five (5) working days of its receipt. The applicant shall send her/his response, if any, directly to the Chair of the FPC/FFPC/LPC.

(h) In assessing applicants, the Dean/University Librarian shall not see internal or external letters of assessment before submitting her/his own independent letter of assessment of the applicant. The Dean/University Librarian shall forward her/his own independent letter of assessment of the applicant simultaneously to the Chair of the FPC/FFPC/LPC and to the applicant. The applicant has the right to respond in writing to the Dean's/University Librarian's independent letter of assessment of the applicant within five (5) working days of its receipt. The applicant shall send her/his response, if any, directly to the Chair of the FPC/FFPC/LPC.

(i) All letters of assessment internal to the University shall be signed and the recommendations shall be based on evidence.

(j) In Departments/Schools with fewer than four (4) eligible colleagues apart from the applicant, the applicant's Dean/University Librarian in consultation with the Department/School and approval of the Union, shall add eligible Members from other Departments/Schools so that a minimum of four (4) eligible Members is attained.

(k) Where the applicant is appointed to more than one (1) Department/School, a written assessment concerning the contributions the applicant has made to the cross-appointed Department/School shall be undertaken by the cross-appointed Department/School provided in accordance with the terms specified in clause 5.20.32 and clause

5.20.33 of Article 5.20 – Appointment and

Renewal. The complete assessment of the applicant by the assessment committee of the Department/School of primary responsibility and the written assessment of the cross- appointed Department/School shall be weighted by the FPC/FFPC/LPC to reflect proportionately the extent of the Member's responsibilities in each of the Departments/Schools. The applicant has the right to respond to the written assessment of the cross-appointed Department/School in writing within five (5) working days of its receipt. The applicant shall send her/his response, if any, directed to the Chair of the FPC/FFPC/LPC.

(l) Any required external letters of assessment as per Article 5.65 – Promotion Procedures shall be sent directly to the Vice-President,

Academic, who shall edit these external letters of assessment only to conceal the identities of the external assessors. The Vice-President, Academic shall then forward the external letters of assessment simultaneously to the Chair of the FPC/FFPC/LPC and the applicant. The applicant has the right to respond in writing to the external letters of assessment within five

(5) working days of its receipt.

(m) The Chair of the FPC/FFPC/LPC shall make available the academic dossier of the applicant to the FPC/FFPC/LPC and simultaneously send to the FPC/FFPC/LPC and to the applicant the complete assessment of the applicant by the assessment committee(s), the independent letter of assessment as authored by the Dean/University Librarian, all applicant response letters and any external letters of assessment.

(n) When the FPC/FFPC/LPC has completed its inquiries and deliberations in accordance with its responsibilities as outlined in clause 5.55.6 of Article 5.55 – Faculty/Francophone Faculty/Library Personnel Committee, it will forward its letter of recommendation on the applicant's application, including reasons for its recommendation, to the Vice-President,

Academic with a copy to the applicant. Each letter of recommendation on the applicant's application shall contain the following paragraph: "The Member may make written representations to the Vice-President, Academic within ten (10) working days of the date on which the FPC/FFPC/LPC forwards to the Member a copy of its letter of recommendation on the applicant's application to the Vice-President, Academic."

(o) The Vice-President, Academic shall confirm or reject the FPC/FFPC/LPC's recommendation or refer it back to the FPC/FFPC/LPC for further clarification of specified issues. In the case of referrals, the Committee must re-examine and address the Vice-President, Academic's concern.

(p) The final decision of the Vice-President, Academic shall be communicated in writing with reasons to the Member with a copy to the Union. The FPC/FFPC/LPC and the

Dean/University Librarian shall receive a copy of the letter sent to the Member. In making a final decision, the Vice-President, Academic shall take into consideration the written representations outlined in paragraph 5.50.6

(n) above of the applicant to the Vice-President, Academic. In cases of referrals, the Vice-President, Academic, in making a final decision, shall also take into consideration the response of the FPC/FFPC/LPC to the specific concerns expressed.

(q) The specific deadlines and procedures applicable for renewal, tenure, promotion and merit increments are outlined in Article 5.20 –

Appointment and Renewal, Article 5.60 –

Tenure Evaluation Procedures, Article 5.65 –

Promotion Procedures and Article 8.25 –

Merit Increments, respectively.

ARTICLE 5.55 – FACULTY/FRANCOPHONE

FACULTY/LIBRARY PERSONNEL COMMITTEE

5.55.1 Structure of the FPC/FFPC/LPC

(a) In each Faculty there shall be a Faculty

Personnel Committee (FPC) composed of seven (7) elected Members plus one (1) alternate. A Dean/University Librarian appointed by the Vice-President, Academic shall be the non-voting Chair. All Members of the FPC must be tenured and no more than two (2) Members shall belong to the same academic Department/School. Except as provided in paragraph 5.55.1 (c) below, at least three (3) Members shall be Full

Professors from within that Faculty. Every effort shall be made to seek nominations from female Members.

(b) There shall also be a Francophone Faculty

Personnel Committee (FFPC) composed of eight (8) members, two (2) from each of the four (4) existing Faculties. The elected

Member with the lowest number of votes shall serve as the alternate. A Dean/University

Librarian appointed by the Vice-President,

Academic (Francophone Affairs) shall be the non-voting Chair. All Members of the FFPC must be tenured and qualified Francophone

Members i.e. must have taught or be scheduled to teach a course in French at

Laurentian. Except as provided in paragraph

5.55.1 (d) below, at least three (3) Members shall be Full Professors. Potential candidates will be identified by the Office of the Vice-

President, Academic (Francophone Affairs).

Every effort shall be made to seek nominations from female Members.

If a Member wishes to have her/his case heard by the Francophone Faculty Personnel

Committee, this intention must be indicated in writing at the time the application is made; otherwise the application will be heard by the appropriate FPC. Applications are to be sent to the appropriate Dean who will forward these to the non-voting Chair of the Francophone

Faculty Personnel Committee. Once a

Member has selected a Committee, she/he is not free to change to another Committee either in that academic year or in the following year if the application was unsuccessful.

(c) In the Library, there shall be a Library Personnel Committee (LPC) composed of five (5) elected Members and one (1) alternate. A Dean appointed by the Vice-President, Academic shall be the non-voting Chair. All

Members of the LPC must be tenured and except as provided in paragraph 5.55.1 (d) below, two (2) Members shall be Full

Professors/Librarians. There shall be at least two (2) Members from the Library and at least two (2) must be Members of a Faculty outside the Library. Every effort shall be made to seek nominations from female Members. In the event that a Member from the Library wishes to have her/his case heard by a Francophone Faculty Personnel Committee the Parties will reach agreement on the composition of such a Committee by Memorandum of Agreement.

(d) In the event that the requirements in paragraphs 5.55.1 (a), (b) or (c) above cannot be met, the first priority in dealing with insufficient Members at a rank shall be to seek nominations by Members of that Faculty/Library of Members of another Faculty/Library at the required rank. The second priority shall be to seek nominations by Members of that Faculty/Library of Members from the next lower rank within the same Faculty/Library.

(e) In the Faculty of Management, there shall be a Faculty Personnel Committee (FPC) composed of five (5) elected Members and one (1) alternate. A Dean appointed by the Vice-President, Academic shall be the non-voting Chair. All Members of this FPC must be tenured and except as provided in paragraph 5.55.1 (d) above, two (2) Members shall be Full Professors/Librarians. There shall be two (2) Members from the School of Commerce, one (1) from the School of Sports Administration and two (2) must be Members of a Faculty outside the Faculty of Management. Every effort shall be made to seek nominations from female Members.

5.55.2 Election of the FPC/FFPC/LPC Members

(a) The Secretary of Senate shall conduct the elections of the Faculty/Library Personnel Committees by October 15 of each year. The Employer and the Union each shall appoint one (1) scrutineer for the elections.

(b) Nominations shall be by Members of each Faculty/Library. Voting shall be by Members of the faculty/library for Members of their own FPC/FFPC/LPC. Qualified Francophone Members may vote in the elections for faculty representatives on both the FPC and FFPC. Elections shall be conducted by the office of the Secretary of Senate by secret preferential ballot. Except as described in paragraph

5.55.1 (b) above the alternate will be the nominee, not elected who received the greatest number of votes.

(c) Any tenured Member may be a member of the FPC/FFPC/LPC it being understood that:

(i) No Vice-Dean may be a committee member.

(ii) The President of the Union and the Chief Grievance Officer of the Union may not be committee members.

(iii) An elected member may not serve for more than two (2) consecutive terms.

(iv) A Member may not be a committee member during the academic year she/he is on sabbatical.

(v) No Member may serve on more than one (1) FPC/FFPC/LPC in the same academic year.

(d) In the event that any positions of an FPC/FFPC/LPC are not filled through the election process outlined, the Dean/University Librarian, or in the case of the FFPC, the Vice-President, Academic (Francophone Affairs), and an appointee of the Union's Board shall seek, within five (5) working days, a mutually acceptable candidate(s) who shall be named to serve.

5.55.3 Term of Office and Vacancies

(a) The term of office of elected and appointed FPC/FFPC/LPC members shall be two (2) years, starting on October 16 following the election. To ensure continuity, the terms shall be staggered.

(c) A committee member who makes an application for promotion or for whatever reason is being evaluated by the FPC/FFPC/LPC shall be deemed to have resigned from the committee.

(c) In the event that replacements are needed, the Dean/University Librarian or in the case of the FFPC, the Vice-President, Academic (Francophone Affairs) and an appointee of the Union's Board shall (subject to clause 5.55.1 above) seek a mutually acceptable tenured candidate who shall be named to serve.

5.55.4 Voting, Recording and Reporting Procedures

(a) A quorum shall consist of the full committee.

The alternate may replace any elected Member when needed to obtain quorum.

(b) The alternate Member shall act in the absence of a regular Member in order to obtain quorum.

A regular Member who is unable to attend meetings shall so inform the Chair. The Chair shall formally invite the alternate to replace the regular Member. The alternate Member shall be kept informed of Committee proceedings and shall be invited to attend all meetings. The alternate Member has an obligation to stay abreast of the matters discussed.

(c) All decisions of the Committee shall be recorded. In order to establish which factors were persuasive in any given decision, the

FPC/FFPC/LPC shall set forth in its decision its findings and the grounds for its decision.

These decisions shall be kept in the office of the Dean/University Librarian and in the case of the FFPC, in the office of the appropriate

Dean and shall be available to the members of the Committee. Committee members shall make their decisions in a manner consistent with the Collective Agreement. A copy of the decisions shall be forwarded to the applicant.

Each decision shall contain the following paragraph: "The Member may make written representations to the Vice-President,

Academic within ten (10) working days of the date on which the FPC/FFPC/LPC forwards to the Member a copy of its decision to the Vice-

President, Academic."

(d) Decisions of the FPC/FFPC/LPC on renewal shall be by majority vote. Decisions of the FPC/FFPC, excluding the FPC for the Faculty of Management, on tenure and promotion shall require five (5) positive votes. Decisions of the

LPC and the FPC for the Faculty of

Management on tenure and promotion shall require four (4) positive votes. Members of the committee shall record their vote on an official

Collective Agreement 2008-11 ballot with their name on it and shall write on the ballot a reasonable opinion supporting the vote. The Chair shall rely on these opinions in writing the committee's decision. Prior to sending the committee's decision to the Vice-

President, Academic, the report must be brought to FPC/FFPC/LPC for review.

Members of the committee who wish to add a minority opinion may do so by submitting a written signed opinion which will be attached to the majority decision. Official ballots shall be retained until all procedures up to and including arbitration have been exhausted.

(e) Prior to the end of each academic year (April

7), the Chair of the FPC/FFPC/LPC shall make an annual report to the Vice-President,

Academic summarising the activities and decisions of the FPC/FFPC/LPC. This report shall indicate all decisions that were referred back to the FPC/FFPC/LPC by the Vice-

President, Academic. A copy of this annual report shall also be sent to the President of the Union.

5.55.5 Operating Procedures

The Chairs of FPC/FFPC/LPC shall ensure that at the commencement of evaluations for promotion and tenure all members of the Committee are familiar with the employment equity policies.

(a) No Member of an FPC/FFPC/LPC shall participate in the evaluation/assessment of Members at the Department/School level.

(b) (i) An applicant may ask that an

FPC/FFPC/LPC Member recuse herself/himself in her/his particular case, on the grounds that a conflict of interest exists, or that a reasonable apprehension of bias exists, subject to

Appendix J – Committee on the

Apprehension of Bias. The applicant shall state the reasons in writing to the

Chair of the Committee. The Chair shall render a decision with reasons to the applicant and the Member in question if the Member is to be recused. Even without a request from the applicant, the Chair of the

FPC/FFPC/LPC may require a Member to recuse herself/himself on one (1) of the same two (2) grounds. A Member may recuse herself/himself on her/his own volition.

(ii) In the context of collegial decision making, prior service in the same

Department/School, joint service on

University or Union committees or other normal acquaintance by itself does not necessarily constitute grounds for the presumption of conflict of interest or bias.

(c) Before making any decision or recommendation on any individual Member, the FPC/FFPC/LPC shall:

(i) Invite the Member to meet with the

FPC/FFPC/LPC. The Member may be accompanied by a colleague of her/his choice.

(ii) Take into account but not be limited to the following evidence:

Those parts of the Member's current personnel file that are relevant to the matter being discussed. The Member shall be provided with a list of material from the personnel file that is being considered and that has not accompanied the application.

The assessments by the

Members of the

Department(s)/School(s) and by the Dean/University Librarian.

Any relevant material specified in the applicant's letter of application or curriculum vitae.

The applicant shall be responsible within reason for producing one true copy of any material that she/he wishes to be considered.

The oral and/or written submission made by the applicant.

Such other factual information as is necessary to understand the evidence.

(d) Once an FPC/FFPC/LPC has started to consider a case, it shall be the responsibility of that FPC/FFPC/LPC to see that case through to completion even if the process extends

Collective Agreement 2008-11 beyond one (1) academic year. In the event that replacements are needed, the Dean/University Librarian and an appointee of the Union's Board shall (subject to clause 5.55.1 above) seek a mutually acceptable tenured Member(s) who shall be named to serve.

5.55.6 Responsibilities of the FPC/FFPC/LPC

(a) To formulate and forward to the Vice-President,

Academic its decisions for those Members of the Faculty/Library whose names are being considered for the following:

(i) Renewal of Probationary Appointment per Article 5.20 – Appointment and Renewal;

(ii) Tenure per Article 5.60 – Tenure

Evaluation Procedures;

(iii) Promotion per Article 5.65 – Promotion Procedures;

(iv) Merit increments as per Article 8.25 – Merit Increments.

(b) To make submissions on such matters as termination due to redundancy or financial exigency when requested to do so.

(c) To act as consultant on any other matters as requested by the University or required by the terms of this Collective Agreement.

5.55.7 Deadlines

In the event that an FPC/FFPC/LPC is unable to meet any of the deadlines set out in this Collective Agreement by virtue of its inability to meet with quorum, then all subsequent deadlines in the particular procedure are extended by the length of time that FPC/FFPC/LPC requires to meet with quorum and make its decision or recommendation.

ARTICLE 5.60 – TENURE EVALUATION PROCEDURES

5.60.1 In the interest of the University community and of society at large tenure protects free criticism and independent judgement and hence forms an integral

Collective Agreement 2008-11 part of Academic Freedom per Article 3.10 –
Academic Freedom.

5.60.2 Tenure means permanency of appointment. Such an appointment may be terminated through resignation, retirement, dismissal for cause as established by a proper hearing, redundancy or financial exigency consistent with the terms of this Collective

Agreement, or as otherwise stated in this Collective

Agreement. Tenure includes the right during appointment to academic freedom and to fair consideration for increases in responsibility and salary, and promotions in rank.

5.60.3 Tenure Evaluation

(a) Members on probationary appointments shall normally begin to undergo a formal tenure evaluation by the FPC/FFPC/LPC no later than September 30 of the final year of their probationary status. However, Members may apply for tenure one (1) year prior to the final year of their probationary status. An early application for tenure may not result in a termination of appointment. Members considered for tenure at the end of the normal probationary period may be awarded tenure, denied tenure, or if the Member has not made an early application for tenure, may have her/his probationary period extended by one

(1) additional year, during which she/he shall be evaluated for tenure for a final time. A

Member may not be considered for tenure more than twice.

(b) All Members on probationary appointments shall begin to undergo a formal tenure evaluation by the FPC/FFPC/LPC no later than September 30 of the final year of their probationary status.

(i) However, in recognition of the fact that

Members may have to deal with heavier than normal personal responsibilities or extraordinary circumstances, not faced by the majority of other Members, the opportunity is provided for a Member to request a delay of up to two (2) years in the tenure review process.

Members wishing to delay their final tenure evaluation must apply in writing to the appropriate Dean/University

Librarian no later than August 1 of the

Collective Agreement 2008-11 final year of their probationary appointment describing the special circumstances why a delay in tenure review is requested, identifying the particular area in the performance of the Member that would be strengthened by the delay and what steps the Member will take to meet the requirements for tenure during the period of the delay. The

Dean/University Librarian, after discussion with the appropriate Department(s)/School(s) will forward a recommendation to the Vice-President, Academic who will render a decision by September 8. The Vice-President, Academic may authorise a delay in tenure evaluation for up to two

(2) years. If the Vice-President,

Academic does not authorise a delay in tenure evaluation, the evaluation will proceed. Failure by the Vice-President, Academic to authorise a delay in tenure evaluation shall not be subject to grievance and arbitration.

(ii) Members who have taken pregnancy, parental or adoption leave as provided under Article 7.60 – Pregnancy, Parental and Adoption Leaves during their probationary period may elect to postpone the mandated evaluations leading to tenure (both the evaluation for renewal of the probationary appointment and the final tenure evaluation) by one (1) year for each incident of leave period.

(c) For the teaching faculty, in making its recommendations, the FPC/FFPC shall be guided by the following standards:

(i) A record of satisfactory teaching in the pre-tenure years based on the teaching dossier and approved course evaluations as set out in Article 5.15 –

Rights, Responsibilities and Duties of Academics and clause 5.50.2 of Article 5.50 – Assessment of a Member's

Performance. The nature and scope of past teaching activities shall be

Collective Agreement 2008-11 taken into account in assessing a Member. If the applicant has faced problems in teaching, the FPC/FFPC will look for evidence that the applicant has recognized the problems, has taken steps to improve, and has made some improvements.

(ii) A record of satisfactory scholarly activity as defined in Article 5.15 –

Rights, Responsibilities and Duties of

Academics. The applicant shall show progress in independent research or creative activity.

(iii) A record of contributions to University governance and administrative duties as set out in Article 5.15 – Rights, Responsibilities and Duties of

Academics.

(iv) The applicant has met the formal educational or professional qualifications for the rank of Assistant Professor and bilingualism qualifications as set out in Article 5.10

– Academic Qualifications Guidelines, clause 3.30.5 of Article 3.30 –

Bilingualism and Letter of

Appointment, consistent with the

Collective Agreement.

(v) The FPC/FFPC shall be flexible in assessing stronger performance in some areas against weaker performance in other areas as set out in clause 5.50.3 of Article 5.50 –

Assessment of a Member's

Performance. However, in no instance shall it recommend tenure for an applicant if teaching performance is judged mostly unsatisfactory or if the applicant is not engaged in a program of scholarly activity.

(d) For the librarian faculty, in making its recommendations, the LPC/FFPC shall be guided by the following standards:

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(i) A record of satisfactory professional librarianship/archives management in the pre-tenure years based on the academic dossier as set out in Article

5.15 – Rights, Responsibilities and
Duties of Academics and Article 5.50 –
Assessment of a Member's

Performance. If the applicant has faced problems in professional librarianship/archives management, the LPC/FFPC will look for evidence that the applicant has recognized the problems, has taken steps to improve, and has made some improvements.

(ii) A record of satisfactory scholarly activity as defined in Article 5.15 –
Rights, Responsibilities and Duties of

Academics. The applicant shall show progress in independent research or creative activity.

(iii) A record of contributions to University governance and administrative duties as set out in Article 5.15 – Rights, Responsibilities and Duties of
Academics.

(iv) The applicant has met the formal educational/professional/linguistic qualifications for the rank of Assistant Librarian or Assistant Archivist and bilingualism qualifications as set out in
Article 5.10 – Academic Qualifications

Guidelines, clause 3.30.5 of Article

3.30 – Bilingualism and Letter of
Appointment, consistent with the

Collective Agreement.

(v) The LPC/FFPC shall be flexible in assessing stronger performance in some areas against weaker performance in other areas as set out in clause 5.50.3 of Article 5.50 –

Assessment of a Member's

Performance. However, in no instance shall it recommend tenure for an applicant if the applicant's performance in professional librarianship/archives management is

Collective Agreement 2008-11 judged mostly unsatisfactory or if the applicant is not engaged in a program of scholarly activity.

(e) In making recommendations in tenure cases, the FPC/FFPC/LPC shall conduct its assessment of the applicant's application according to Article 5.50 – Assessment of a Member's Performance subject to the following:

(i) Only tenured Members of the appropriate Department(s)/School(s) are eligible to participate in the assessment process of the applicant's application except under the circumstances defined in clause 5.50.6

(j) of Article 5.50 – Assessment of a Member's Performance. By October

15, each tenured Member has a responsibility to participate in the assessment process, except those on sabbatical or other leaves.

(ii) The Chair/Director of the

Department/School shall forward to the Chair of the FPC/FFPC/LPC the academic dossier and the complete assessment of the applicant by the assessment committee not later than

October 20. The Dean/University

Librarian shall forward to the Chair of the FPC/FFPC/LPC her/his independent letter of assessment of the applicant not later than October

20.

(iii) The Chair of the FPC/FFPC/LPC shall make available the academic dossier of the applicant to the FPC/FFPC/LPC and simultaneously send to the

FPC/FFPC/LPC and to the applicant the complete assessment of the applicant by the assessment committee(s), the independent letter of assessment as authored by the

Dean/University Librarian, all applicant response letters and any external letters of assessment not later than the end of the business day on the second

(2nd) working day which follows the

October 20 deadline as referenced in subparagraph 5.60.3 (e) (ii) above.

(iv) The FPC/FFPC/LPC shall interview the applicant.

(v) The FPC/FFPC/LPC shall submit its letter of recommendation on the applicant's application, including reasons for its recommendation, to the

Vice-President, Academic with a copy to the applicant not later than November 30 of the academic year in which the assessment takes place.

Each letter of recommendation on the applicant's application shall contain the following paragraph: "The

Member may make written representations to the Vice-President,

Academic within ten (10) working days of the date on which the

FPC/FFPC/LPC forwards to the

Member a copy of its letter of recommendation on the applicant's application to the Vice-President,

Academic."

5.60.4 Within thirty (30) working days of receipt of the

FPC/FFPC/LPC recommendation, the Vice-

President, Academic shall confirm or reject the recommendation, or refer it back to the

FPC/FFPC/LPC for further clarification of specified issues. In the case of referrals, the Committee must re-examine and

address the Vice-President,

Academic's concern within twenty-one (21) working days.

5.60.5 The final decision of the Vice-President, Academic, whether or not to offer tenure, shall be communicated in writing with reasons to the Member with a copy to the Union by February 25 of the academic year in which the Member is

considered for tenure. The FPC/FFPC/LPC and the

Dean/University Librarian shall receive a copy of the letter sent to the Member. In making a final decision, the

Vice-President, Academic shall take into consideration the written representations outlined in subparagraph 5.60.3 (e) (v)

above of the applicant to the Vice-President, Academic. In cases of referrals, the Vice-President, Academic, in making a

final decision, shall also take into consideration the response of the FPC/FFPC/LPC to the specific concerns expressed. If

the decision is not communicated to the Member by March 1, the

Member will be guaranteed employment for the next academic year. In any event, a failure to meet deadlines shall not

constitute the awarding of tenure.

5.60.6 All Members of the Bargaining Unit with tenure on July 1, 1980 shall continue to have tenure.

5.60.7 All full-time professional Librarians of the Bargaining Unit having previously been evaluated for a permanent position at the University shall be deemed to have tenure effective July 1, 1980.

ARTICLE 5.65 – PROMOTION PROCEDURES

5.65.1 The term "promotion" applies to advancement from the rank of Lecturer to Assistant Professor, Assistant Professor to Associate Professor and Associate Professor to Full Professor, or to corresponding advancement for the Librarians from the rank of General Librarian to Assistant Librarian, Assistant Librarian to Associate Librarian and Associate Librarian to Full Librarian.

5.65.2 A Member is eligible to apply for promotion while on leave, but the Member is responsible for maintaining contact with the University and for all expenses incurred in making appearances when requested.

5.65.3 Members shall normally apply for their own promotion. Applications may also be submitted by Chairs/Directors, or a Dean/University Librarian on behalf of Members who have not themselves applied where the Members have declared their willingness to be considered.

5.65.4 Applications shall be made on the prescribed application form and forwarded in triplicate to the office of the applicant's Dean/University Librarian, together with three (3) copies of all necessary and relevant documentation.

5.65.5 The application for promotion shall reach the Dean/University Librarian not later than September 30, for decision in that academic year. Members are urged to consult with the Dean/University Librarian well in advance of the application deadline. If the

Member so requests by September 8, the Dean/University Librarian will prepare a preliminary written assessment based on the requirements set out in the appropriate clauses of Article 5.10 – Academic

Qualifications Guidelines within one (1) week of receiving the Member's application. A copy of this assessment will immediately be forwarded to the

Member who will then have one (1) week to decide whether or not to proceed with the application.

5.65.6 The following documents must be attached to the application for promotion and must be submitted at the time of application:

- (a) An updated curriculum vitae of the applicant.
- (b) For applications for promotion to Full

Professor/Librarian:

(i) A list of at least three (3) referees, of which two (2) will be chosen, from outside the University qualified to assess the research and creative works of the applicant.

(ii) A copy of the research and creative works the applicant wishes to have considered in the examination of the application, it being understood that the applicant may attach a clear and detailed description of these works when the works are such that their physical submission is not practical.

Barring unusual circumstances, it is assumed that all research and creative works submitted by the applicant will be made available to the external referees for review.

5.65.7 In making recommendations in promotion cases, the assessment procedure in Article 5.50 – Assessment of a Member's Performance is to be followed. Those eligible to vote in promotions shall be tenured members.

5.65.8 Under the terms of Article 5.50 – Assessment of a

Member's Performance, the Dean/University Librarian will prepare an independent letter of assessment for each Member who has applied for promotion. She/He shall forward this to the appropriate FPC/FFPC/LPC not later than October 31. For promotions to the rank of Full Professor/Librarian, the Dean/University

Librarian may append additional comments to the assessment within one (1) week of receiving the reports of the external assessors. These assessments shall be made available to Members as soon as they are prepared and at least one (1) week before an FPC/FFPC/LPC considers a given case.

5.65.9 The appropriate FPC/FFPC/LPC shall study each application and all relevant documentation and shall decide whether the criteria have been met. In making the decision, the FPC/FFPC/LPC shall refer to:

(a) Article 5.10 – Academic Qualifications

Guidelines

(b) Article 5.15 – Rights, Responsibilities and Duties of Academics

(c) Article 5.50 – Assessment of a Member's Performance

For appointment/promotion to the rank of Full

Professor/Librarian, the FPC/FFPC/LPC shall consider the assessment of the Member's scholarly activity as judged by four (4) external referees. Two

(2) of these referees will be nominated by the applicant if the applicant so requests. Should the applicant fail to nominate one (1) or both external referees, the Member's Department/School will nominate the required referees. The additional external referees shall be appointed by the Vice-

President, Academic after consultation with the

Department/School. All external evaluations shall come to FPC/FFPC/LPC duly signed by the author.

5.65.10 When the FPC/FFPC/LPC has completed its inquiries and deliberations it will forward its letter of recommendation on the applicant's application to the

Vice-President, Academic with a copy to the applicant. Except in the case of the applications for promotion to Full Professor/Librarian, this shall be done by February 15. Each letter of recommendation on the applicant's application shall contain the following paragraph: "The Member may make written representations to the Vice-President, Academic within ten (10) working days of the date on which the

FPC/FFPC/LPC forwards to the Member a copy of its letter of recommendation on the applicant's application to the Vice-President, Academic."

5.65.11 No later than March 7, the Vice-President, Academic shall confirm or reject the recommendation, or refer it back, to the FPC/FFPC/LPC for further clarification of specified issues. In the case of referrals, the

Committee must re-examine and address the Vice-

President, Academic's concern no later than March

31.

5.65.12 The final decision of the Vice-President, Academic, whether or not to promote, shall be communicated in writing with reasons to the Member with a copy to the Union by April 15 of the academic year in which the Member is considered for tenure. The

FPC/FFPC/LPC and the Dean/University Librarian shall receive a copy of the letter sent to the Member.

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In making a final decision, the Vice-President, Academic shall take into consideration the written representations outlined in clause 5.65.10 above of the applicant to the Vice-President, Academic. In cases of referrals, the Vice-President, Academic, in making a final decision, shall also take into consideration the response of the FPC/FFPC/LPC to the specific concerns expressed.

5.65.13 In the case of Members at the rank of Lecturer/General Librarian who are awarded a Doctoral degree, they shall be promoted to the rank of Assistant Professor/Librarian effective January 1 or July 1 whichever next follows the award of the degree.

The Doctorate will be deemed to have been received when the individual can provide a diploma or a letter from the university where the Doctorate is being obtained indicating that all the conditions for the Doctorate, including the thesis defence and the corrections to the thesis, have been met. Members must supply a copy of the diploma or of the letter to their Dean/University Librarian with a normal application form as well as an updated curriculum vitae before the promotion procedures will be initiated.

In the case of librarians, Members must also demonstrate that they are holders of a Master's degree in Library Science if their Doctorate is not in Library Science.

ARTICLE 5.70 – PERSONNEL FILES

5.70.1 Official personnel files of a Member shall be kept by the appropriate Dean/University Librarian, with copy in the office of the Vice-President, Academic. There shall be two (2) types of files for Members, active files and archival files. Active files shall contain only information allowed under this Article. Archival files shall contain material which has been banned for use in subsequent proceedings as in clauses 5.70.5 to

5.70.9 below but which the University requires for matters other than those related to this Collective Agreement.

5.70.2 Members shall have the right to examine all of their personnel files during normal business hours, after notice in writing, in the presence of the

Dean/University Librarian or a person authorised by the Dean/University Librarian. Material in the files which is to be held confidential according to the provisions of this Collective Agreement will be removed from the files prior to their inspection by the

Member. However, an inventory of this confidential material, certified by the Dean/University Librarian, will be provided to the Member, such inventory shall

Collective Agreement 2008-11 identify all confidential documents by authorship (if appropriate), date and general subject matter only.

5.70.3 Members may request the Vice-President, Academic to provide one (1) copy of their personnel file, excluding confidential material according to the provisions of this Collective Agreement but including the inventory thereof. Such requests will be filled within five (5) working days, at no charge to the Member. One (1) copy of additions made subsequent to the initial copying may be requested under the same conditions and terms. Requests for additional copies will be filled at the convenience of the Vice-President, Academic.

5.70.4 No anonymous material concerning any Member shall be kept by the Employer for inclusion in the Member's personnel file. Statistical summaries of student evaluations or written summaries of student comments unrelated to Senate sanctioned course evaluations, such summaries to exclude anonymous comments, shall neither be considered anonymous nor confidential and shall remain available when required by this Collective Agreement.

5.70.5 Members shall have the right to have all of their files supplemented or corrected in the event of error, or inadequacy. In the event of alleged distortion, Members shall have the right to provide additional material for inclusion in their personnel files. Members shall have the right to request the removal from their personnel file of any false, irrelevant or unsubstantiated material. Such requests shall be made through the Dean/University Librarian as appropriate and must be accompanied with reasons why the material is false, irrelevant or unsubstantiated. In the event of refusal by the Dean/University Librarian of such a request, the Dean/University Librarian shall provide the Member with reasons why the material is true, relevant or substantiated, and shall send a copy of that response to the Union. Members can grieve according to the provisions of this Collective Agreement, providing only that such grievance is initiated within forty-five (45) working days of notification by the Employer to the

Members that the material in dispute is to be included in their personnel file.

5.70.6 Letters of assessments received in relation to the appointment of a Member shall be confidential and shall not be submitted as evidence in any subsequent proceedings against that Member.

5.70.7 Letters of reprimand are inadmissible evidence if used against a Member for any purpose when no further disciplinary measures have been imposed on the

Member for two (2) subsequent academic years. In advance of any proceedings involving the Member,

Collective Agreement 2008-11 the Dean/University Librarian shall remove such letters from the Member's personnel file and place them in a University depository. The Member shall be notified that this has been done.

5.70.8 All letters or assessments solicited by the FPC/FFPC/LPC and any summaries thereof shall be kept confidential and used only for the purposes for which they were solicited in any subsequent proceedings against that Member.

5.70.9 Student evaluations, in numerical or written form, shall not be admissible as evidence in any process involving a Member's tenure, promotion or dismissal if such evaluations are more than five (5) years old.

5.70.10 A full copy of a Member's file, including all letters of reference and assessments except those excluded by the provisions of this Collective Agreement, shall be made available to the FPC/FFPC/LPC and the Vice-President, Academic at their request for the purpose of promotion and tenure evaluation. Such committees will treat the file as confidential.

5.70.11 When confidential information is to be used by the Employer in the course of proceedings to resolve a grievance, the detailed substance of such confidential information shall be made available at least one (1) week in advance of the hearing to Members or their duly authorised representative in a form which does not identify the author. For arbitration, reasonable efforts will be made to supply the information as soon as practicable, subject to the above.

5.70.12 Where in the opinion of an arbitrator the identity of the author is central to the resolution of the difference, the arbitrator shall be supplied with the information and may make use of it as essential to her/his decision while maintaining the confidentiality thereof.

5.70.13 The Employer agrees not to release any individually identifiable information concerning a Member or Members without the written consent of the Member(s), except as provided for in Article 2.50 – Information.

5.70.14 In the case of an appeal against dismissal, the contents of the official personnel file shall be made available to the Member as a true copy if and when the formal grievance procedure has been initiated using the same protection of confidentiality as stated in clause 5.70.11 above.

ARTICLE 5.75 – DISCIPLINARY MEASURES

5.75.1 Discipline of Members by the Employer shall be only for cause. Disciplinary action shall be just and reasonable and be commensurate with the offense.

5.75.2 "Cause" for disciplinary measures shall include:

(a) Serious unprofessional behaviour.

(b) Failure to comply with any of the provisions of this Collective Agreement, minor technical violations excepted.

5.75.3 The following are the only formal "Disciplinary

Measures" which may be taken by the Employer against a Member:

(a) A letter of reprimand, specifying the grounds and adding this reprimand to the personnel file of the Member concerned;

(b) The withholding of an annual increment;

(c) The suspension without pay; the reduction in pay shall be computed as one two hundred and sixtieth (1/260) of normal salary per day of suspension;

(d) The suspension with pay; if and only if the

Vice-President, Academic cites the suspension with pay as a disciplinary measure. It is understood that where a suspension with pay is non-disciplinary such suspension shall not be referenced as disciplinary in any subsequent disciplinary actions;

(e) The dismissal for just cause as per Article 5.80

– Dismissal Procedures.

5.75.4 When a Dean/University Librarian is satisfied following an investigation that there is cause to write a formal reprimand the Dean/University Librarian shall do so directly, although the Member has the right of review as per Article

5.70 – Personnel Files.

5.75.5 When the Vice-President, Academic is satisfied following an investigation that there is cause to suspend a Member, the Vice-President, Academic shall do so by written communication to the Member, setting out therein the reasons therefore.

5.75.6 Cases involving the inability of a Member to perform reasonable duties by reason of physical or mental

Collective Agreement 2008-11 illness shall be treated separately from cases for disciplinary measures. If sickness or disability is proven, leave shall be granted and the case dealt with within the University sickness and disability provisions. In exceptional cases when behaviour providing grounds for disciplinary measures is judged to be due to illness and the Member refuses to be placed under the sickness and disability provisions of this Collective Agreement, disciplinary procedures may be initiated.

5.75.7 Grievances regarding disciplinary measures against

Sessional Members shall be dealt with by the procedures in clause 4.40.7 of Article 4.40 –

Withdrawal of Seniority for Sessional Members.

ARTICLE 5.80 – DISMISSAL PROCEDURES

5.80.1 "Dismissal" means the termination for just cause of a term appointment or a probationary appointment before the end of the stated contractual period, or the termination of a tenure appointment for just cause at any time other than normal retirement. Neither the failure to renew a term or probationary appointment at the end of the defined term nor the decision not to grant tenure, nor termination of an appointment for the purpose of retirement, provided these actions are in accordance with this Collective Agreement, constitutes dismissal.

5.80.2 Just cause shall be defined as:

(a) Gross misconduct including serious unprofessional behaviour and/or misconduct constituting a grave and direct violation of the personal safety of another Member, members of the University community and/or students of the University community;

(b) Persistent failure to discharge academic responsibilities as defined in this Collective Agreement either through incompetence or neglect of duties including persistent neglect of duty to students or scholarly professional pursuits.

5.80.3 (a) Cases involving the inability of a Member to perform reasonable duties by reason of physical or mental illness shall be treated separately from cases of dismissal for just cause.

(b) Where such inability has been established, leave shall be granted and the case dealt with

Collective Agreement 2008-11 within the University sickness and disability provisions set out in Article 7.55 – Physical and Mental Illness

(c) If the Member refuses to comply with the requirements of the University's sickness and disability provisions, e.g. refuses a medical examination required by the Employer pursuant to Article 7.55 – Physical and Mental Illness or policies of the company carrying the insurance or refuses the leave associated with these procedures, the President may proceed to lay dismissal charges.

(d) If the President proceeds with dismissal for just cause, it shall be a sufficient defence to prevent dismissal for the Member to establish that failure to perform reasonable duties arose from physical or mental illness.

(e) If Members are on sickness or disability leave and consider that they have recovered and are capable of undertaking normal academic activities, they shall present medical evidence from a medical practitioner to their Dean/University Librarian. If the

Dean/University Librarian agrees, the

Members shall be reinstated with full rights and benefits forthwith. If the Dean/University

Librarian disagrees, the Dean/University

Librarian shall require the opinion of two (2) additional medical practitioners named by agreement with the Member or, if there is no agreement, by the Ontario Medical

Association. The majority opinion of the three

(3) medical practitioners shall prevail. The

Employer shall pay the cost of such additional medical examinations required by it.

Procedure for Dismissal

5.80.4 Where the Dean/University Librarian is satisfied that there is just cause to warrant dismissal proceedings, the Dean/University Librarian shall make a recommendation, in writing to the President.

5.80.5 The President of the University may, by written notice for stated just cause, suspend Members with pay in accordance with Article 5.75 – Disciplinary Measures from some or all of their University duties and withdraw some or all of their University privileges, excluding membership in Senate, pending the initiation of dismissal procedures or procedures related to physical or mental incapacity to perform reasonable duties (see clause 5.80.3 above). The stated cause for suspension with pay must involve a situation perceived by the President as an immediate threat to the functioning of the University or to any

Member of the University and/or be for the purpose of

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Collective Agreement 2008-11 initiating an investigation. The suspension with pay shall terminate with the conclusion of the dismissal or other proceedings or at such earlier time as the

President may deem appropriate. At which time, on a finding of just cause, the Member may be dismissed.

Salary and other benefits shall continue throughout the period of suspension.

5.80.6 If the President is satisfied that there is a prima facie case the President shall initiate dismissal proceedings in the following manner. The President shall notify the

Member of the Dean's/University Librarian's recommendation and request that the Member meet with the President and such person as the President may wish for a discussion of the case. In this and all further proceedings, an advisor may accompany the

Member. If this attempt fails to settle the matter, or if the Member refuses to meet with the President, the Member shall be informed by the President, in writing, by registered mail, of the reasons for the dismissal proceedings against the Member in sufficient detail to enable the Member to prepare a response.

5.80.7 If the Member's whereabouts are unknown to the

Employer and the Union, the meeting contemplated in clause 5.80.6 above shall be dispensed with and the

President may immediately give notice of dismissal by registered mail addressed to the Member's last known address.

5.80.8 The Union is entitled to carry forward a grievance on behalf of the Member commencing at step 2 of the grievance procedure.

ARTICLE 5.85 – RESIGNATION

5.85.1 Normally a Member may resign effective June 30 or

December 30, with at least three (3) month's written notice to the Vice-President, Academic. All leaves to which a resigning Member would be entitled must be terminated at that date.

5.85.2 Employment may be terminated at any time by mutual written agreement between a Member and the Vice-President, Academic.

5.85.3 Effective January 1, 2009, faculty members on a leave of absence at another university shall be deemed to have resigned six (6) months after they receive tenure at that institution.

ARTICLE 5.90 – RETIREMENT

5.90.1 Normal Retirement Date

For the purpose of the administration of the pension plan, the normal retirement date of a Member shall be the first (1st) day of July next following the attainment of age sixty-five (65), unless the Member's sixty-fifth (65th) birthday falls on the first (1st) day of July, in which case the Normal Retirement Date shall coincide with the Member's sixty-fifth (65th) birthday. However, in accordance with government statutes, retirement is not mandatory at that time.

5.90.2 Optional Retirement Dates

(a) Early Retirement

Early retirement shall be governed by the regulations of the Laurentian University Pension Plan or if applicable by the terms of the Appendix C – Special Voluntary Early Retirement Plan.

(b) Retirement at Dates Other than July 1

Subject to 5.90.2 (a) above and in exceptional circumstances a Member may request and the Pension Committee may approve the request, retirement, at a date other than July 1. In this instance, an annuity shall be purchased as of the next date the Employer will have available to it the evaluation of the total fund as of the day preceding - that is, October 1, January 1, and April 1.

If such a request is made approved and implemented, only that Member's share of the net growth of the fund to the day preceding will be allocated.

5.90.3 Members retired from this University shall retain:

(a) The right to their title and the listing of their name and their title in a special section at the back of the University Calendar, until the death of the Member.

(b) The same library privileges as full-time Members, free parking in facilities available to full-time Members, and such other University facilities as may be granted by the

Vice-President, Academic at her/his discretion.

(c) The same exemption from tuition fees for themselves, their spouses, and their dependants as full-time Members, as per

Article 8.50 – Tuition Fee Exemption and Spousal Library Card.

(d) The same eligibility for free Physical Education

Centre membership for themselves, their spouses and their dependants as full-time Members, as per Article 8.60 – Physical

Education Facilities.

5.90.4 To honour an outstanding contribution in an academic field, the Employer may, in accordance with Senate policy, bestow the title of Professor/Librarian Emeritus upon a retiring Member.

RESEARCH, CREATIVITY AND PROFESSIONAL
DEVELOPMENT

ARTICLE 6.10 – RESEARCH AND CREATIVITY

6.10.1 The Parties recognize that the common good of society depends upon the unfettered search for knowledge in all fields of study and upon its free exposition. The Parties further acknowledge the importance of research and creativity and the

Employer will make every reasonable effort to support both in a fair and equitable manner.

6.10.2 The University is an open environment for the pursuit of scholarly work. Academic freedom and critical inquiry depend on the communication of the findings and results of intellectual investigation.

The Employer shall not interfere with a Member's freedom to publish the results of scholarly inquiry and research, except for limitations imposed by duly constituted university Research Ethics Boards.

ARTICLE 6.15 – RESEARCH, CREATIVITY AND
DEVELOPMENT OFFICE

6.15.1 The Research, Creativity and Development (RCD)

Office has been created to facilitate research and/or creativity for all Members and to ensure that the internal and external regulations concerning research activities are properly applied. The work of the RCD Office shall be done in a constructive manner to give better access to funding and research collaboration at the national and international level, while promoting research activities and creativity at Laurentian University.

6.15.2 For internally or externally-funded grant applications requesting a pre-selection or an evaluation, the Employer shall communicate the composition of the selection committee on the RCD Office website.

The participation of Faculty Members in the selection committee shall be encouraged where possible. None of the members of the selection committee shall be involved in the grant or contract applications being reviewed pursuant to Article 3.35

– Conflict of Interest.

6.15.3 Members of the Administration shall not be involved as investigators in internal research grants and if they are investigators in externally-funded grants that are internally pre-selected, they shall not be part of the selection committee pursuant to Article

3.35 – Conflict of Interest.

6.15.4 The Employer shall endeavour to inform faculty

Members of any external competitions requiring

Employer matching funds, the policies, selection criteria, and an estimation of the likelihood of success concerning such competitions.

ARTICLE 6.20 – RESEARCH AND DEVELOPMENT
SUPPORT

6.20.1 In order to attract and retain faculty Members, all new full-time Members with probationary or tenured appointments shall receive a minimum Start-up

Grant of eight thousand dollars (\$8,000).

6.20.2 Recipients of these awards shall have three (3) years to use the funds. After a three (3) year period, any unspent amount shall be returned to the

Office of the Vice-President, Academic.

ARTICLE 6.25 – LAURENTIAN UNIVERSITY RESEARCH
FUND (LURF)

6.25.1 For each of the years of the Collective Agreement, the Employer shall provide to the Associate Vice-President, Research a research fund to enhance scholarly productivity through an open competition among Members: Research Support (LURF) as follows:

2008-09 \$140,000

2009-10 \$150,000

2010-11 \$160,000

In the event that faculty from federated or affiliated universities wish to apply, their applications shall only be considered if their home institution has contributed to the LURF fund an amount per full-time member equivalent to that provided by the Employer.

6.25.2 For each of the years of the Collective Agreement, the Employer will provide to the Associate Vice-President, Research an additional twenty thousand dollars (\$20,000) per year to support both research activities and attendance at academic and professional conferences by retired Members, through an open competition. The Employer will also provide active assistance to LUFA-R members making grant applications to NSERC, SSHRC, and CHIR.

6.25.3 A LURF Committee of eight (8) full-time Members, one (1) from Humanities, one (1) from Social

Sciences, two (2) from Professional Schools, two (2) from Sciences and Engineering, one (1) from Management and one (1) Librarian will evaluate the proposals submitted to the Research, Creativity and Development (RCD) Office once a year. These Members will be appointed by the Dean/University Librarian in consultation with the Union for a two (2) year term.

6.25.4 The LURF Committee shall establish its own procedures, and develop criteria for the administration of the funds. These criteria shall be just, equitable and consistent with the objective of nurturing and stimulating research at Laurentian University. The rules of this yearly competition shall be clearly established in consultation and agreement with the Union and shall not be modified without the approval of the Union. The approved rules shall be treated as a public document and posted on the RCD Office website. The funding criteria for LURF shall not be limited to, or give priority to, salaries for assistants.

6.25.5 While the LURF committee should determine the amount of funding for each competition, in no case shall that amount of funding be greater than five thousand dollars (\$5,000) per application. The total LURF funding shall be allocated by Faculty/Library, proportionate to the numbers of full-time Members in each Faculty/Library.

6.25.6 The University shall maintain records and deposit copies of all proceedings, statements and correspondence related to the Committee's policies and the awarding of grants. This material will be made available to the Union upon request, subject to any limitations in the Freedom of Information and Personal Privacy Act. Applicants who are not funded by LURF should be given an explanation by the LURF Committee on the reasons of the rejection.

6.25.7 Applicants whose applications are rejected by the LURF committee shall have recourse to an appeals procedure only in the case of allegations of violations of academic freedom, significant procedural irregularities or discrimination. Notice of an appeal must be submitted to the Dean/University

Librarian and RCD Office no later than one (1) month after the applicant has been notified of the decision. Within one (1) week of receiving notice of appeal, the RCD Office shall strike an Appeals Committee. Members of the Appeals Committee should be selected in light of research experience and expertise. The Committee will consist of:

- One (1) member appointed by the Union;
- One (1) appointment by the Associate Vice-

6.25.8 The Appeals Committee shall establish its own procedures taking into account the provisions of this Article and the published policies and procedures for grant applications of the LURF Committee.

Should the appeal be upheld, the appellant's request will be funded if there are funds still available. If not, the appellant will be given first priority for funding at the next competition.

6.25.9 The decision of the Appeals Committee shall be final and binding on all Parties. The Appeals Committee shall communicate its decision and its reasons in writing to the appellant and the RCD Office of within one (1) month of hearing the appeal.

6.25.10 A list of all awardees including the project title, the amount of funding and the duration of all projects shall be published on the RCD Office website after each competition.

ARTICLE 6.30 – PATENTS

6.30.1 The Employer agrees that the Members have the unqualified right to publish their inventions. The Employer further agrees that the Members have no obligation to modify their research to enhance patentability nor, unless otherwise agreed, any obligation to seek patent protection for the results of their scientific work.

6.30.2 The Employer waives, disclaims and abandons any interest in or claims to any invention, improvement, design or development made by a Member or

Members except where this has occurred with the use of the Employer's funds, personnel or equipment in which instance the conditions set out in clause

6.30.4 hereof shall apply. Unless otherwise provided in this Article, any invention or any patent arising therefrom shall be the sole property of the inventor.

6.30.3 The Members shall have the right to make their own arrangements at their own expense to patent an invention subject to the obligations in this Article and shall be entitled to all the proceeds therefrom except where the invention was made with the use of the

Employer's funds, personnel or equipment.

6.30.4 Where an invention, improvement, design or development was made by Members with the use of the Employer's funds, personnel or equipment the

Members shall sign an agreement with the University before an application for patent is filed by them. This agreement shall provide that the Employer shall assign all rights, title and interest in the invention, improvement, design or development to the

Members, subject to the University and the Members sharing equally in the "net proceeds" as used in this Article shall mean the net profits derived from licensing or commercialisation of the patented product, equipment or process after deduction of all expenses incurred in patent searches, for obtained patent protection and for maintaining said protection in Canada and in other countries.

6.30.5 Members agree to disclose the existence of any patent applications to the Employer within three (3) months of the date of the application unless otherwise provided for in this Article and shall affirm in writing at that time whether or not the discovery has been made and developed with the use of

Employer's funds, personnel or equipment. The

Employer may within one (1) month of receipt of the statement of the Member challenge in writing the assertion of the Member in regard to the circumstances of the discovery, in which case the matter shall be settled by arbitration as detailed in

Article 11.15 – Arbitration Procedure. Any challenge by the Employer shall be null and void unless received within the above noted time limit. If the

Member(s) fails to disclose the existence of patent applications within three (3) months, it shall be understood that the Employer maintains its rights under this Article until such disclosure is made.

Failure by the Employer to challenge the assertion of the Member within one (1) month shall constitute a waiver of any rights that the Employer may have had in such discovery.

6.30.6 For the purpose of interpreting clauses 6.30.2 to

6.30.5 above, payment of regular salary and benefits shall not be construed as use of the Employer's funds.

6.30.7 Members shall grant to the Employer a non-exclusive, royalty free, irrevocable, indivisible, and non-transferable right to use solely for the

University's internal use any patented device, equipment or process when such device, equipment or process has been invented with the use of the

Employer's equipment, funds or support/technical personnel. Such right, however, shall not include the right to transfer or exploit any product or process.

6.30.8 Where Members decide that they will not patent, produce or market an invention, improvement or discovery at their own expense but consent to the

University patenting, producing or marketing the invention, before an application for patent is filed by the University, the University shall negotiate an agreement with the Members. The agreement shall provide that the Members shall assign all their rights, titles and interests in the invention, improvement or discovery to the University subject to the University and the Members sharing equally in the "net

Collective Agreement 2008-11 proceeds" derived therefrom.

6.30.9 Without mutual agreement, the name of the University shall not be used in connection with inventions in which the Employer has no interest.

6.30.10 Any revenue that the Employer may receive from inventions shall be dedicated to academic development and research with at least fifty percent

(50%) of such income designated for academic development and research in the Faculty/Library with which the inventor is affiliated. These funds shall be maintained in a special account, which shall be open to the inspection of the President of the Union or the

President of the Union's designate.

6.30.11 The Employer agrees that it shall not enter any agreement to sub-contract work or responsibilities already undertaken or possessed by the Employer and the Members without securing to the Members who may be seconded to or be employed by the sub-contractor all the rights, privileges and benefits accorded to them in this patent Article of this Collective Agreement. Nor shall the Employer enter into any agreement to create a consortia of universities or government departments or private companies for the purposes of research or development or commercial exploitation without securing to the Members who may be seconded to or employed by such consortia, departments or private companies all the rights, privileges and benefits accorded by this Article. If the Employer makes an agreement contrary to this provision and fails to secure the said rights, privileges and benefits to said Members, the agreement shall not apply to Members unless there is a special agreement in writing between the Employer and the Union to waive this clause of the Article.

ARTICLE 6.35 – COPYRIGHT

Copyright vested in the Member:

6.35.1 The Member who is the creator of any work including any printed material, computer programmes, on-line course material, painting, sculpture, film, slide, tape or similar material shall retain the copyright therein unless otherwise stated in this Article.

Copyright vested in the University:

6.35.2 The Parties agree that the University shall hold copyright to any work including any creative work, printed material, computer programme, on-line course material, films, slides, tapes or similar materials produced by Members as part of their normal workload for the University for use in its distance education courses. In all cases, the University shall arrange for the development of these

Collective Agreement 2008-11 courses through a special contract with the Members, which sets out terms in accordance with the terms in this Collective Agreement. Copies of all works subject to the policy stated in this clause shall contain a statement or marking identifying the ownership of copyright, and with appropriate credit, the contributors. A copy of the contract between the Member and the University shall be sent to the Union.

6.35.3 If the University requests a work including a creative work, printed material, films, slides, tapes, computer programmes, on-line course material, or similar materials from a Member under special contract, then, in the absence of any agreement to the contrary, the University shall be the first owner of the copyright therein. This includes all materials for distance education courses. A Member entering into such a contract with the University shall be notified of the terms of this clause prior to signing the contract.

The Union shall receive a copy of such notification.

6.35.4 All special contracts for distance education courses shall contain a clause which allows the contributors to use (for their own classroom purposes) parts of any course that they have created provided that they shall not use such material in another distance education course without the written permission of the University during the period in which the University holds copyright to that material.

6.35.5 The master copy of any work whose copyright is vested in the University under the terms of this Article shall be the property of the University. The University shall be responsible for the custody and control of such works and of any copies thereof.

6.35.6 Where consent, fees or licenses are required for the use of incorporated materials in works in which the University has copyright under the terms of this

Article, the contributor shall notify the University by provision of a list of works which require such clearance. The University shall have the right to refuse to accept requests for copyright clearance, which are judged to be prohibitively expensive.

6.35.7 The Members who are the authors of any work, whose copyright is vested in the University shall sign a warranty that the work is original and that, to the best of their knowledge, it does not violate any existing copyright.

6.35.8 The offering of courses to which the University has copyright under the terms of this Article shall be at the University's discretion.

Revision:

6.35.9 From time to time, the University may require revisions in works to which it holds the copyright in order to ensure that proper and current academic standards are met.

6.35.10 Further, the author of work as defined in clauses

6.35.2 or 6.35.3 above may, at any time after three

(3) years of use, and at three (3) year intervals thereafter notify the University of the need to revise such a work. The University and the Member shall negotiate the amount it will pay to defray the costs of such revisions including the Member's fee.

6.35.11 The process of revision shall be regarded as the joint responsibility of the author of the work and the University. If the author chooses not to undertake the revision or if the author has not accepted the University's request for revision within one (1) month of receipt of that request or if the author is no longer an Employee of the University, then the

Department/School shall choose an individual to make the required revisions. By so doing, the author shall not lose contractual rights to any fees. Where the author is no longer an Employee of the University, notice of the intention to revise and of the proposed revisions shall be sent to her/him by registered mail at the last known address. In the event that the author and the University cannot agree on the nature or extent of the revisions, the University may engage the services of someone approved by the Department/School to make the revisions.

6.35.12 The University shall negotiate a fee for any revisions that are made at the University's request.

6.35.13 In all cases where someone other than the authors make revisions to the work, if the authors object to the extent or the propriety of the revisions, they may have their names withdrawn as contributors to the work and any visible indication that they are contributors to the work shall be withdrawn. The authors must notify the University of their desire to do so within one (1) month after receiving notice by registered mail of the proposed revisions.

Third Party use:

6.35.14 "Net proceeds" of any fees or royalties that the University receives for the use by another Party of a work to which the University has copyright under the terms of this Article shall be distributed in accordance with clause 6.35.15 hereof and the Member shall receive no additional payment. "Net Proceeds" shall mean the fees and royalties received less the cost of reproduction, administration and distribution.

6.35.15 Net proceeds shall be distributed as follows:

- (a) Until the original production costs have been recouped by the University, seventy-five percent (75%) to the University and twenty-five percent (25%) to the author.
- (b) After recovery of the original production costs, fifty percent (50%) to the University and fifty percent (50%) to the author.

"Original production costs" include the normal tariff charges to produce the physical work including licensing costs of other copyright material exploited in the work. An accounting of production costs shall be produced by the University if requested by the

Member or by the Union.

Member's Copy:

6.35.16 If practicable the Members shall receive, upon request, a copy at a cost not exceeding the cost of the tape/film/recording or other medium upon which the work has been produced of any work produced by them for the University and to which the University holds copyright under the terms of this Collective

Agreement.

6.35.17 Should the University wish to erase or otherwise destroy part or all of a work to which it has copyright under the terms of this Collective Agreement, the authors shall be given notice of such intention and shall have one (1) month in which to make known their wish to receive a copy of the section (s) to be erased. If the authors express such a wish within the time limit, they shall receive a copy of those sections at a cost not exceeding the cost of the tape/film/recording or other medium upon which the work has been produced plus reasonable administrative costs arising therefrom.

ARTICLE 6.40 – COMMITTEE ON PATENTS AND COPYRIGHT

6.40.1 The Parties agree to create a continuing Committee on Patents and Copyright, which shall be composed of two (2) individuals appointed by the Employer and two (2) Members appointed by the Union, with the Chairship alternating between the Employer's representatives and the Union's representatives at each successive meeting.

6.40.2 The Committee shall meet at least twice annually to:

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(a) Conduct such business as is referred to it.

(b) Consider strategies for marketing inventions, improvements or discoveries.

(c) Recommend to the Joint Committee on the

Administration of the Collective Agreement any proposals for modifications or changes in the patents and copyright articles of this

Collective Agreement.

(d) Mediate any disputes arising out of Article

6.30 – Patents and Article 6.35 – Copyright in accordance with clause 6.40.3 below.

6.40.3 Grievance and Arbitration

For the purposes of this Collective Agreement, any grievance by a Member pertaining to Article 6.30 –

Patents and/or Article 6.35 – Copyright shall be handled in accordance with the following procedure:

(a) The Member, within three (3) weeks of the event giving rise to the grievance or the date on which the Member knew or reasonably should have known of such event if that date is later, shall present a grievance to the

Vice-President, Academic.

(b) Within two (2) weeks of receipt of the grievance, the Vice-President, Academic shall refer the matter to the continuing Committee on Patents and Copyright and inform the

Union of such grievance. If the

Vice-President, Academic fails to refer the matter to the continuing Committee on

Patents and Copyright within the time limits, the Members shall be deemed to have succeeded in their grievance and the results thereof shall be binding on the university.

(c) The continuing Committee on Patents and

Copyright, within one (1) month of the receipt of the grievance, shall make a recommendation for the resolution of the grievance. The time limits may be extended by mutual agreement. If the committee fails to make a recommendation within the time limits, the Vice-President, Academic may act as in paragraph 6.40.3 (d) below.

(d) The Vice-President, Academic within one (1) week of the receipt of the recommendations of the continuing Committee on Patents and

Copyright or within one (1) week of the end of the time limits for action by the Committee shall render the Committee's proposal in the matter and communicate it in writing to the Parties concerned.

(e) If the proposal of the Vice-President,
Academic rendered pursuant to paragraph

6.40.3 (d) above does not resolve the grievance, the matter may be submitted to binding arbitration by one (1) arbitrator in accordance with the grievance and arbitration procedures of this Collective Agreement.

ARTICLE 6.45 – PROFESSIONAL DEVELOPMENT
EXPENDITURES

6.45.1 In order to further the objectives of the University, the creation and dissemination of knowledge, the activities of each full-time Member shall be supported by professional expenditures in each contractual year. The amount of these expenditures shall be limited to two thousand two hundred dollars

(\$2,200) for the academic year 2008-09, two thousand two hundred and fifty dollars (\$2,250) for the academic year 2009-10, and two thousand three hundred dollars (\$2,300) for the academic year 2010-11.

6.45.2 Professional development expenditures allowable under this Article include the following:

- (a) Membership fees for professional and/or learned societies related to the Member's discipline.
- (b) Subscriptions to professional and/or learned journals.
- (c) Books, materials, equipment, and services directly related to research and teaching/professional Library work.
- (d) Registration fees for the Member to attend a scholarly conference.
- (e) Travel including transportation, food and accommodation (subject to University travel policies) for the Member to attend relevant scholarly conferences or seminars, or to visit other universities or research sites to conduct research and scholarly work which cannot be done at Laurentian University.
- (f) Page and reprint charges or costs incurred in the preparation and completion of scholarly manuscripts.
- (g) Professional/academic development or upgrading.

(h) Hiring part-time assistants in support of research and teaching, excluding marking.

6.45.3 Expenditures must be approved in advance by the

Dean/University Librarian and reimbursements will be made on verification of receipts. In the event that expenditures are incurred in relatively small amounts - less than fifty percent (50%) of the total or less than the remaining maximum allowable amount - reimbursements should be accumulated but receipts must be submitted not later than January 1 or July 1 following the date the expenditures have been made.

6.45.4 Full-time Members who are on sabbatical leave, study leave, or voluntary reduced workload are eligible for the professional development expenditures.

6.45.5 Any equipment purchased with funds provided under this Article remains the property of the University but a Member shall have the right if she/he so chooses to buy back such equipment at fair market value.

6.45.6 Any unused portion of the maximum allowed for professional development can be carried forward for two (2) years only.

LEAVES

ARTICLE 7.10 – RECOGNIZED AND OTHER HOLIDAYS

7.10.1 The following days and all days generally declared to be recognised holidays by Federal or Provincial authorities are recognised holidays and paid time off shall therefore be given to the Members on:

(a) Founder's Day, Good Friday, Easter Monday, Victoria Day, Canada Day, August Civic Holiday, Labour Day, Thanksgiving Day, Christmas Day, Boxing Day, New Year's Day.

(b) And on such other holidays as declared by the Employer, including the customary Christmas recess.

ARTICLE 7.15 – VACATION

7.15.1 Vacation is the period during which a Member is not accountable to the University.

7.15.2 In addition to recognised holidays, each Member is entitled to a vacation of twenty-five (25) working days, after eleven (11) months of service and annually thereafter. Members on contracts of less than one (1) year duration are entitled to a pro-rated period of vacation. When Members have accumulated five (5) full consecutive years of employment at the University, for each year of employment thereafter they shall be entitled to an additional two (2) days of vacation to a maximum entitlement of thirty-five (35) working days.

7.15.3 The Members will be paid during vacation periods but there shall be no remuneration in lieu of vacation in the event that the Members choose not to take their vacation allowance.

7.15.4 The Members are required to take the vacation to which they are entitled. Vacation may not be accumulated from year to year. The Members are required to take their vacation between Spring Convocation and Labour Day, unless prior permission has been granted by the Dean/University Librarian. Members may take their annual vacation at any time within that period provided that:

(a) The period of the vacation does not conflict with a time during which the Members have scheduled duties assigned to them.

(b) The Members have indicated the dates of their vacation to the Dean/University

Librarian, through their Chair/Director at least one (1) month in advance.

7.15.5 In the event of the death of Members, the value of any unused vacation entitlement will be paid to their beneficiary.

7.15.6 Members retiring, resigning or whose limited-term appointment expires but who are unable to take their full vacation entitlement shall be paid vacation pay as follows:

(a) Members retiring or resigning or whose limited-term appointments expire on June 30 shall be paid a number of working days equal to their vacation entitlement minus the number of working days in June that fall after the deadline for submission of final grades.

Members are considered to be on vacation starting on the first working day after Spring Convocation.

(b) Members retiring or resigning on December

31 shall be paid a number of working days equal to their vacation entitlement minus the number of working days that fall after the deadline of submission of final grades for three (3) credit courses and mid-term grades for six (6) credit courses, and December 31

(c) Members with limited-term appointments whose appointment expires on dates other than June 30 shall be paid a number of working days equivalent to their vacation entitlement minus the number of working days that fall after the deadline for submission of final grades and the date of the expiry of the term contract.

(d) The daily rate applied to the entitlements

(paragraphs 7.15.6 (a) to (c) above) shall be one two hundred and sixtieth (1/260) of the Member's salary.

ARTICLE 7.20 – ABSENCE - GENERAL

7.20.1 The University as a community of scholars requires the availability of its Members on a regular and on-going basis to ensure that the activities of the

University scheduled and unscheduled can be carried out in an orderly manner.

7.20.2 Any absence shall not normally interfere with assigned and/or scheduled activities and the harmonious functioning of the Department/School.

7.20.3 Any absence from campus affecting teaching/professional librarian duties shall be governed by Article 5.15 – Rights, Responsibilities and Duties of Academics.

7.20.4 From Labour Day to Spring Convocation absences of more than one (1) week require notification to the Chair/Director and permission of the Dean/University

Librarian. Shorter absences require notification to the Chair/Director. When scheduled or assigned duties are affected by an absence, Members shall make suitable arrangements through their

Chair/Director who shall advise the Dean/University

Librarian when the absence has a significant impact on the Member's duties.

7.20.5 From Spring Convocation to Labour Day,

Departments/Schools must maintain a fair and equitable system to assure a reasonable presence sufficient to administer the Department/School, to deal with correspondence and to maintain on-going availability for student counselling and other unscheduled issues as they may from time to time arise. Absences during this period must be in accordance with this system. For any absences of more than a week, prior written permission shall be obtained from the Dean/University Librarian who shall not unreasonably withhold such permission.

7.20.6 Except where Members are on vacation, leave or other approved absence they must remain in communication with their Department/School so that it is reasonably possible for the University to contact and/or recall them on short notice.

7.20.7 It may in exceptional cases, be necessary for the

University to recall a Member who is on vacation, leave or formally approved absence as defined in clause 7.20.5 above.

The University will not do so arbitrarily or unreasonably. In such cases, the

University will bear reasonable transportation costs consequent upon any such recall.

ARTICLE 7.25 – SABBATICAL LEAVES

7.25.1 Preamble

In recognition of the fact that full-time Members are required to continue to develop as scholars and researchers throughout their careers, the University maintains a policy of sabbatical leave intended for academic study, research or writing which will be mutually beneficial to the Member and the institution. For this purpose, sabbatical leave is defined as a period during which a Member is relieved of normal duties in order to:

- (a) Engage in further training, advanced studies or courses at a study or research centre, including language study.
- (b) Devote more time to scientific or creative work.
- (c) Improve the University's relations with other universities or countries in the capacity of a visiting professor or visiting librarian.
- (d) Gain practical or professional experience in a field connected with the Members' academic or professional specialization which will enable them to give instruction or, in the case of the library, service that is more complete and suitable to the requirements of the time.

Members who are on sabbatical leave and who elect to remain on campus for all or part of the duration of the leave shall not normally be assigned any formal workload nor shall they normally participate in any formal activities of the University other than those required by this Collective

Agreement. Members who have indicated in their sabbatical plan their intent to spend part or all of their sabbatical leave on campus are entitled to suitable office space on campus. Sabbaticants required to move their offices shall have all moving and storage expenses paid by the Employer. The

Employer will replace Members on sabbatical leave when it deems it necessary. The Employer retains the right to limit the number granted leave in keeping with its academic responsibilities.

7.25.2 Eligibility

Eligibility for sabbatical leave is subject to the following conditions:

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(a) Members must have been full-time faculty

Members of the University for the past six (6) consecutive years, holding the rank of Full

Professor/Librarian, Associate

Professor/Librarian, and Assistant

Professor/Librarian at the time of application.

They must be tenured at the time their sabbatical leave begins. In exceptional circumstances tenured Lecturers/General Librarians with the requisite years at

Laurentian are also eligible for sabbatical if they have the approval of the

Dean/University Librarian to apply. Where the leave is to be used for upgrading, the

University shall give special consideration to employment equity goals. Faculty Members' service for purposes of

sabbatical leave eligibility shall be calculated from the date of their initial full-time appointment by the

University or from the date of their last sabbatical leave, whichever is later. When

Members take a sabbatical leave, all accumulated years of eligibility entitlement are exhausted unless otherwise provided

for in this Collective Agreement. Time spent on sabbatical leave, study leave, or leave without pay does not count towards

sabbatical eligibility. Sabbatical leave will not be automatic and shall be granted following an approved application

procedure, outlined below.

(b) In order to attract qualified faculty, the Vice-

President, Academic may from time to time grant credit towards a sabbatical leave for full-time faculty service at another

University, including service at a Federated or Affiliated

College of a University. Such entitlement will be specified in the initial letter of appointment.

(c) Under special circumstances, the Members may make application for leave one (1) year prior to the year in which they would normally become eligible to take sabbatical leave. If sabbatical leave is granted in this instance, the Members will

receive a stipend of eighty percent (80%) of their salary.

(d) In the interests of effective scheduling of a

Department's/School's course offerings, the

Dean/University Librarian may request that

Members apply for their sabbatical leave after the completion of five (5) years. The

Dean/University Librarian shall make the

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Collective Agreement 2008-11 request by May 1 of the academic year preceding the year in which the Members are being requested to apply for sabbatical leave, and the Members shall respond to the

Dean's/University Librarian's request by

June 1. Should the Members accept, the

Members shall submit a sabbatical plan by

September 30 to the Chair/Director of the

Department/School, as per paragraph 7.25.3

(b) below. Should Members accept, and if the application is approved, the Members shall receive a stipend of eighty-five percent

(85%) of their salary during the sabbatical leave.

7.25.3 Application

(a) Each Dean/University Librarian shall maintain and annually revise, in consultation with the Department/School, a sabbatical eligibility plan for each Department/School, the purpose of which is solely to assist in the orderly planning of sabbatical leaves. Copies of the plan will be distributed by July 1 of each year to the Chair/Director who shall forward one to each Department/School

Member.

(b) Applications for sabbatical leave shall be submitted by the Members to their

Dean/University Librarian with a copy to

Chair/Director of the Department/School no later than September 30 of the academic year preceding.

(c) The Dean/University Librarian shall make her/his recommendation to the Vice-

President, Academic no later than November

15 of the academic year preceding that in which the leave is to be taken. After verifying the status of the application in relation to criteria defined in clauses 7.25.1 and 7.25.2 above, and after taking into consideration the recommendation of the Dean/University

Librarian, the Vice-President, Academic shall reach a decision and shall transmit it to the

Member no later than December 15 of the academic year preceding that in which the leave is to be taken.

(d) The Vice-President, Academic shall base her/his decision to approve or not to approve a sabbatical plan on the academic merits of the sabbatical leave project and its value to the professional development of the Member and to the University.

(e) Should Members wish to make subsequent changes in their sabbatical plan, they shall submit the proposed changes to their respective Dean/University Librarian for prior approval. If the proposed changes are not approved by the Dean/University Librarian after consultation with the Department/School, Members may ask that they be submitted to the Vice-President, Academic for approval.

(f) The Dean/University Librarian may refer back the application submitted by the Member as per paragraph 7.25.3 (b) above or the application for change as per paragraph 7.25.3 (e) above. If referred back, the applicant shall consider the Dean/University Librarian's suggestions and will re-submit a new application within ten (10) working days.

7.25.4 Postponement

(a) In the event that it is necessary on financial and/or program grounds for the Dean/University Librarian to require postponement of a sabbatical leave, the Members shall be informed by July 1 of the academic year preceding that in which the sabbatical is to be taken. Such a postponement shall not be required unreasonably. In such a case, Members shall receive an additional five percent (5%) of their regular salary for the year of postponement as "stipend" during their sabbatical year and shall receive one (1) year of sabbatical credit for the year postponed so that their next sabbatical leave will occur according to their original sabbatical rotation. A sabbatical leave cannot be postponed for more than three (3) years on financial or program grounds.

(b) (i) In the event that Members wish to postpone application for leave, they shall do so only for valid reasons, and permission to do so shall be sought from the appropriate Dean/University Librarian no later than May 1 immediately preceding the deadline for application specified in paragraph 7.25.3 (b) above. Such permission shall not be unreasonably withheld.

Should Members with a sabbatical leave confirmed by the Vice-President, Academic wish to postpone the leave for valid reasons, permission shall be sought from the

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Collective Agreement 2008-11 appropriate Dean/University Librarian at least two (2) months prior to the planned commencement of such leave. Such permission shall not be unreasonably withheld.

(ii) If postponement of application for leave or of approved leave is approved, such Members do not have right of precedence over colleagues in the

Department's/School's sabbatical leave plan. Such Members shall receive one (1) year of sabbatical credit for the year postponed so that their next sabbatical leave will occur according to their original sabbatical rotation. In no case may such a postponement be for more than one

(1) year.

(c) In the event that a Member's tenure process is delayed for reasons of illness, pregnancy, parental or adoption leave, such Members shall receive one (1) year of sabbatical credit for the year delayed so that their next sabbatical leave will occur according to their original sabbatical rotation.

(d) Except in extenuating circumstances, where

Members postpone a sabbatical leave without formal approval, they lose the right of precedence over colleagues in the Department's/School's sabbatical leave plan.

Should such Members be required by the

Dean/University Librarian on financial and/or program grounds to postpone their sabbatical leave in the following academic year, they shall not be entitled to any additional remuneration.

(e) Except in extenuating circumstances, where

Members fail to apply for sabbatical leave for which they are eligible to apply, they shall not be entitled to any additional remuneration should they be required to postpone their sabbatical leave in the following academic year on financial and/or program grounds.

(f) If Members' sabbatical proposals are rejected on academic grounds by the Vice-President, Academic and/or Arbitration

Board, they are entitled to apply the following year, but they are not entitled to any additional remuneration.

(g) Deadlines may be waived by agreement of the Parties.

7.25.5 Duration

Members may elect a sabbatical leave for a period of:

(a) Six (6) months normally commencing either on the first (1st) day of July or the first (1st) day of January. or

(b) Twelve (12) months normally commencing on the first (1st) day of July or such other date as agreed to by their respective

Dean/University Librarian. Such agreement shall not be unreasonably withheld.

7.25.6 Remuneration

(a) A Member taking a six (6) month sabbatical leave after six (6) years of accumulated sabbatical credit is entitled to full salary.

(b) Members taking a twelve (12) month sabbatical leave after six (6) years of accumulated sabbatical credit are entitled to a stipend equivalent to eighty-five percent

(85%) of the salary they would normally have received.

(c) Upon the Member's request, the University will provide a portion of the sabbatical leave stipend as a research grant subject to provincial and federal regulations. A Member who receives such a research grant from the University must make the necessary deductions and declarations as applicable under either the federal or provincial laws. The University accepts no responsibility in this regard.

(d) A Member on sabbatical leave shall not take other paid appointments without the prior written permission of the Dean/University

Librarian. Such permission shall not be unreasonably withheld. Normally, any additional remuneration received during the leave will be limited to an amount which brings a Member's total to one hundred percent (100%) of normal salary, plus travel and related expenses for the Member's spouse and dependant children. Where total remuneration exceeds this amount, the

University reserves the right to reduce the

Collective Agreement 2008-11 sabbatical stipend proportionately.

(e) Members who will have accumulated unused sabbatical credit by the time of their normal retirement date will be entitled to apply for a sabbatical leave to occur during their penultimate year before retirement, and on the understanding that they will return to the University for their final year. Should sabbatical leave be granted in such circumstances, Members are entitled to a stipend pro-rated on the basis of the normal sabbatical stipend and shall include entitlement for the year of return. At their discretion, the Dean/University Librarian may agree to pro-rate the period of time taken as sabbatical leave in lieu of a pro-rated stipend.

7.25.7 Benefits

(a) During the period of sabbatical leave, the

Member shall continue to receive all benefits as per Article 8.45 – Benefits subject to the conditions set out therein.

(b) During a sabbatical leave, pension calculations shall be based on the Member's salary that would have been in effect if the

Member had not been on sabbatical.

7.25.8 Vacation

All Members on sabbatical leave will be assumed to have used their prior year's annual vacation entitlement during the period July 1 to June 30 of the academic year in which the sabbatical leave is taken. Furthermore, Members who take a six (6) month sabbatical leave shall be deemed to have taken half of their annual vacation entitlement during the actual period of the sabbatical leave.

Members will be entitled to one (1) year's vacation entitlement after June 30 of the year in which the sabbatical leave is completed.

7.25.9 Return

(a) Members granted sabbatical leave shall undertake to return to the University to resume their responsibilities as a full-time

Member of faculty for the period of at least one (1) year. Failure to return to the

University shall require the Member to reimburse the University for all of the salary and benefits received during the leave, except as such obligations may be waived

Collective Agreement 2008-11 by the University.

However, when a Member is planning to retire in the academic year immediately following the Member's sabbatical leave, the

Employer may waive the requirement to return to her/his responsibilities. Also, to facilitate earlier retirement, the Employer and the Member may agree to an early sabbatical leave as per paragraph 7.25.2 (c) above without financial penalty following which the Member retires and is not required to return to her/his responsibilities. In both these situations, agreement of the Employer is required.

(b) Members must prepare and forward to their

Dean/University Librarian, within one (1) month of their return, a full written account of their scholarly and professional activities and accomplishments as per the approved sabbatical plan during the leave. Members may make a written request to the

Dean/University Librarian for a delay in the date of submission of their report. This report shall become part of their file to be used in evaluating the Member for salary increments and promotions. Failure of a Member to submit the sabbatical report by the specified time limit without adequate explanation may result in the delay of the decision whether to award or deny the annual increment as per clause 8.20.11 of Article 8.20 – Procedures for the Award/Denial of a Progress-Through-

The-Ranks Increment.

Members who are not eligible for an annual increment must have their report submitted within one (1) month of their return in order to begin to accumulate sabbatical credit without penalty. When Members fail to do so, sabbatical credit shall not begin to accumulate until January 1 or July 1, whichever is the closest date next following submission of the report. If, after reviewing the report, the Dean/University Librarian finds the performance to be unsatisfactory, appropriate measures may be taken, as provided in Article 5.75 – Disciplinary Measures and 5.80 – Dismissal Procedures.

(c) Notwithstanding the provisions of paragraph

7.25.9 (a) above, the University may grant up to a maximum of one (1) year of study leave to Members immediately following the completion of their sabbatical leave provided

Collective Agreement 2008-11 that during this sabbatical leave the Members were studying to obtain a Doctorate, and the additional year of leave will allow them to continue the program for the Doctorate. Under exceptional circumstances, upon recommendation of the Member's Dean/University Librarian and with the permission of the Vice-President, Academic, the study leave may be extended for an additional year. This back-to-back sabbatical/study leave shall be granted to Members only once in their academic career. The Members shall receive a stipend, according to the provisions of Article 7.30 – Study Leave during this study leave, and must return to the University for a period equal to the total leave or, in the alternative, reimburse the University for the full amount of the stipend and benefits received during the period of combined sabbatical/study leave. The Member may request an altered pattern for the payment of the combined sabbatical/study leave stipends provided that the payment in any one year may not exceed the stipend originally awarded for the sabbatical year.

7.25.10 Disability

In the event that a Member on sabbatical leave becomes unable to fulfil the sabbatical obligations because of disability the following policies and procedures shall apply.

(a) The Member will advise the Dean/University Librarian, as soon as possible under the circumstances, of the disability and will provide the Dean/University Librarian with a physician's report outlining the extent of the disability and if possible the expected date of return. For the duration of the illness the provisions of Article 7.55 – Physical and Mental Illness shall apply.

(b) In the event that the sabbaticant is disabled from performing her/his tasks for less than fifty percent (50%) of the sabbatical leave, the Member shall be deemed to have taken her/his sabbatical leave. The Member shall submit a report on her/his sabbatical activities on completion of the sabbatical leave or at the end of the sick leave, whichever occurs later. The impact of the illness on the sabbatical plan of the Member shall be taken into consideration at evaluation time.

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(c) In the event that the Member is disabled from performing her/his tasks for more than fifty percent (50%) of the sabbatical leave, the Member shall be deemed not to have taken a sabbatical leave. The Member shall be eligible to take her/his sabbatical leave at the first mutually acceptable time. If the Member indicates that she/he will carry out the previously approved sabbatical plan then the Dean/University Librarian, on the advice of the Department/School and in consultation with the Member, will determine the date on which the sabbatical leave will commence. In the event that the Member wishes to amend the sabbatical plan, the provisions of paragraph 7.25.3 (f) above shall apply.

7.25.11 Sabbatical Leave After Three Years

While sabbaticals after six (6) years are the norm, the Parties recognize that outside of the sabbatical eligibility plan, which will take precedence, it may be mutually beneficial to Members and the University if

Members were to take a six (6) month sabbatical at eighty-five percent (85%) salary after three (3) years of service. For each six (6) months of service beyond three (3) years the sabbaticant is eligible for an additional two and a half percent (2.5%) of salary during the leave period. In no case may a proposed or approved sabbatical leave after three (3) years be postponed for more than one (1) year.

When Members take a sabbatical leave after three

(3) years all accumulated years of eligibility are exhausted except as otherwise provided for by this

Collective Agreement. When the sabbatical leave is postponed, the Member shall receive one (1) year sabbatical credit for the year postponed so that their next sabbatical leave will occur according to their original sabbatical rotation.

Sabbaticals after three

(3) years can be granted provided that:

Eligibility

(a) Members have tenure when the leave becomes effective.

(b) Such a leave does not require the postponement of a sabbatical leave for a Member with six (6) or more years of service.

(c) The leave does not have a negative impact on the budget of the Department/School.

Return

(a) Members granted sabbatical leave under this Article shall undertake to return to the University to resume responsibilities as a full-time Member of faculty for the period of at least six (6) months. Failure to return to the University shall require the Member to reimburse the University for all of the salary and benefits received during the leave, except as such obligations may be waived by the University. However, when a Member is planning to retire in the academic year immediately following the Member's sabbatical leave, the Employer may waive the requirement to return to her/his responsibilities. Also, to facilitate earlier retirement, the Employer and the Member may agree to an early sabbatical leave as per paragraph 7.25.2 (c) above without financial penalty following which the Member retires and is not required to return to her/his responsibilities. In both these situations, the Employer has to agree.

(b) Members must prepare and forward to their Dean/University Librarian and Chair/Director of the Department/School, within one (1) month of their return, a full written account of their scholarly and professional activities and accomplishments as per the approved sabbatical plan during the leave, as outlined in paragraph 7.25.9 (b) above.

ARTICLE 7.30 – STUDY LEAVES

A leave for the purpose of upgrading academic qualifications, normally through the attainment of a higher degree or some other equivalent acceptable to the University and the Department/School shall be known as Study Leave. Such leave must be in the best interests of the University. The maximum length of leaves to be granted during a Member's academic career shall normally not exceed two (2) years.

7.30.1 Eligibility

A study leave may be granted to a tenured, probationary or Permanent Sessional Member after two (2) years of full-time service, but no sooner than two (2) years after a sabbatical leave except as permitted in paragraph 7.25.9 (c) of Article 7.25 –

Sabbatical Leaves. Such leave will not be automatic and shall be granted only upon the approval by the

Vice-President, Academic, subsequent to consultation with the Department/School through its Chair/Director and the appropriate Dean/University

Librarian, upon an approved application procedure noted below. In the event that the Employer is unable to grant a study leave to an applicant in one (1) given year, the Employer shall make every reasonable effort to ensure that the study leave is granted to the

Member in the subsequent year of application.

7.30.2 Application

(a) Applications for study leave shall be made by

September 30 in consultation with the

Department/School through the Chair/Director and the appropriate Dean/University Librarian to the Vice-President, Academic. In submitting an application for study leave, the

Members shall provide a well-considered plan indicating the value of the leave to their professional improvement and to the best interest of the University. In forwarding the application to the Dean/University Librarian, the Department/School through the

Chair/Director shall recommend for or against approval, including in the recommendation not only an assessment of the project but also a judgement on how the leave, if granted, will affect the academic program(s) and the budget of the particular Department/School.

In forwarding the application to the

Vice-President, Academic, the

Dean/University Librarian shall make an assessment of the application on the same grounds. The Dean/University Librarian will, at the Dean/University Librarian's discretion, make whatever inquiry they deem desirable, including consideration of the applicant's demonstrated potential, in order to determine the merit of the application. Copies of both the Department/School's and the

Dean's/University Librarian's recommendations shall be made available to the applicant.

(b) Applications for study leave shall be filed with the Vice-President, Academic no later than

October 31 of the academic year preceding that in which the leave is to be taken. The

Vice-President, Academic shall verify the status of the application in relation to the relevant University policies and the financial implications of the leave, and make a decision, a copy of which shall be sent to the

Member. The decision of the Vice-President,

Academic shall be final and binding.

(c) In the event that the Vice-President,

Academic finds it necessary to refuse

Members their study leave on financial grounds after the leave had been approved, that Member shall be given priority within the

Member's Department/School for a study leave for the following year.

(d) Deadlines listed above may be waived in special circumstances.

7.30.3 Terms

(a) A one (1) year study leave may be granted to a tenured, probationary or Permanent Sessional Member after two (2) years of service at a stipend of thirty-five thousand (\$35,000) or a pro-rated amount if the leave is for a period of less than one (1) year.

(b) A two (2) year study leave may be granted to a tenured, probationary or Permanent Sessional Member after four (4) years of service at a stipend of thirty-five thousand (\$35,000) per year.

(c) A Member may request a temporary reduction in workload to undertake or complete Doctoral studies. Where, in the discretion of the Vice-

President, Academic and upon recommendation of the Dean/University

Librarian, satisfactory replacement arrangements can be made, the workload reduction will be granted with a proportionate reduction in salary based on the overload stipend.

(d) The maximum period of absence is two (2) consecutive years, normally commencing on July 1.

(e) In the event that Members wish to pursue a summer course for upgrading purposes, they may request up to four (4) weeks at full pay if they contribute equal time from their vacation period without losing any of their study leave entitlement.

To apply for such a leave,

Members will follow the procedures set out in clause 7.30.2 above.

7.30.4 Benefits

Benefits of insurance, pension, etc., will continue during the leave provided the Members continue payment of their portion of the fees.

7.30.5 Return

(a) The Members must agree in writing to return immediately to the University for a period equal to their leave of absence but in no case for a period of less than one (1) year or to reimburse the University for the full amount of the stipend received. If Members return to the University for a period of time less than the length of the leave, the University shall require the Members to reimburse the

University for all or part of their stipend received during the leave.

(b) The Members must prepare and forward to their Dean/University Librarian and Chair/Director of the Department/School, within one (1) week of their return, a full written account of their scholarly activities during the study leave. The report shall become part of their personnel file.

(c) Time spent on study leave does not count towards sabbatical credit.

7.30.6 Appointments while on Leave

All Members on study leave must obtain written approval in advance from the Dean/University Librarian for any paid activity before making any such commitment.

ARTICLE 7.35 – VOLUNTARY REDUCED WORKLOAD

7.35.1 The Employer and the Union endorse the principle of voluntary reduced workload as being mutually beneficial to the Members and the institution. Any full-time Member of the Bargaining Unit who currently occupies a regular full-time position and who has a minimum of two (2) years of continuous full-time service at the University at their request may be granted up to fifty percent (50%) temporary reduction in workload with a proportionate reduction in salary, and annual vacation entitlement, provided that:

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(a) The temporary reduction is effective for a twelve (12) month period.

(b) The request is normally made to the
Department/School and the Dean/University
Librarian three (3) months in advance.

(c) The Dean/University Librarian approves the request, such approval not to be unreasonably withheld.

7.35.2 Notwithstanding paragraph 7.35.1 (a) above, the

University may, upon request, grant voluntary reduced workloads for periods longer than twelve

(12) months and/or renewals of twelve (12) month reduction periods, subject to the Dean's/University

Librarian's approval as in paragraph 7.35.1 (c) above.

7.35.3 Faculty Members on Voluntary Reduced Workload have the right to benefits and to contribute to the benefits plan of the University in accordance with the provisions of the Collective Agreement for sharing contributions.

(a) Sick leave. Members will be covered for periods of sick leave to the extent of the actual salary paid during that period as per

Article 7.55 – Physical and Mental Illness.

(b) Long-Term Disability. Members who are planning to take a voluntary reduced workload must be provided with specific information concerning coverage for Long-Term Disability during and after the period of voluntary reduced workload.

Members should not accept voluntary reduced workload without a full and complete written statement concerning Long-Term Disability coverage.

(c) Pension Plan. Members on voluntary reduced workload may contribute to the pension plan on the basis of their normal full salary with appropriate contributions from the

Employee and Employer as outlined in the

Collective Agreement to the extent possible under Revenue Canada regulations. It is understood that contributions based on normal salary rather than reduced salary may

Collective Agreement 2008-11 not be possible under Revenue Canada regulations for a cumulative total of more than five (5) years.

(d) Life Insurance. Life insurance may be carried based on the Member's normal salary and normal maximum.

(e) Sabbatical Leave. Sabbatical leave entitlements for Members on voluntary reduced workload will be pro-rated in accordance with the reduced workload.

7.35.4 Members who use this option shall remain Members of the Bargaining Unit, notwithstanding the definition of Membership as defined in Article 2.15 –

Recognition of the Bargaining Unit.

7.35.5 For the application of tenure and promotion policies, periods of reduced workload shall be pro-rated in accordance with the reduction in workload. Full-time research and teaching activities at another institution while a Member is on voluntary reduced workload at

Laurentian will be counted for purposes of the minimum time requirement for promotion.

7.35.6 Members on voluntary reduced workload retain both the right and the obligation to contribute to the administrative work of the University. Evaluations of such activity by the Dean/University Librarian would be expected to recognise the reduced workload of the Member. As full-time Members of the Bargaining

Unit, Members on voluntary reduced workload retain the right to participate in academic councils as full voting Members and to receive minutes and other

Departmental/School and University documents and communications if the Member can be present on campus. If Members are absent from campus, the

University is not required to undertake extraordinary steps to assure the ability of the Member to fully participate.

7.35.7 During the period of voluntary reduced workload,

Members are expected to submit annual reports as per Article 5.45 – Annual Report for Members in order to qualify for Progress-Through-The-Ranks increments (Article 8.15 – Progress-Through-The-

Ranks Increments and Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment). The evaluation will take into account the reduced workload. If awarded, the Progress-

Through-The-Ranks increment will be added to the

Collective Agreement 2008-11 base salary of the Member. The new base salary will be used to determine the actual salary of the

Member in conformity with the percent reduction in workload.

ARTICLE 7.40 – LEAVES OF ABSENCE WITHOUT PAY

7.40.1 A Member may be granted a leave of absence without pay under terms approved by the University.

All such terms including arrangements for benefits shall be set out in written form prior to the leave. All terms shall be communicated in written form to the

Union for information prior to the leave. Permission for such leave shall not be unreasonably denied by the Employer.

7.40.2 An application for such leave shall normally be submitted in writing to the Dean/University Librarian at least six (6) months in advance stating the purpose of the leave. An application for an extension should be made in writing to the Dean/University Librarian at least four (4) months in advance. These time requirements may be waived in special circumstances.

7.40.3 Applications for such leaves shall be recommended by the Dean/University Librarian after consultation with the Department/School. Final approval rests with the Vice-President, Academic.

7.40.4 Leave of absence without pay under this Article shall normally not exceed two (2) years.

7.40.5 The Members may elect to discontinue the benefits during the leave of absence subject to existing policies and regulations. If they elect to continue those benefits available to the Members, they shall make suitable arrangements as defined in clause

7.40.1 above.

7.40.6 Court and Political leaves shall be governed by

Article 7.45 – Court Leaves and Article 7.50 –

Political Leaves.

ARTICLE 7.45 – COURT LEAVES

7.45.1 Leave of absence with pay shall normally be granted to any Member, other than a Member on leave of absence without pay, who is required to serve on a jury or to attend as a witness or an expert in a court of justice or before any legal or statutory body in

Canada with power to compel the attendance of witnesses before it.

7.45.2 The Members shall notify their Dean/University

Librarian in advance, in writing, and shall provide proof of their attendance, if so requested.

Members shall attempt to make arrangements to ensure that their duties are properly carried out during the period of their absence.

7.45.3 Leave with pay does not apply to Members serving a sentence or appearing as a witness on their own behalf.

7.45.4 When Members wish time off in order to pursue a civil action in court, the Members shall apply to the Dean/University Librarian for leave of absence without pay. (See Article 7.40 – Leaves of Absences Without Pay.)

7.45.5 If Members are required to absent themselves from their duties to appear in court as a result of legal action taken against them in regard to matters arising out of the performance of their duties to the University, they shall not be penalised for such absence. Such an absence shall be governed by clause 7.45.2 above.

ARTICLE 7.50 – POLITICAL LEAVES

7.50.1 The Employer recognises that all Members of the Bargaining Unit are free to enter public life and to seek any political office, as a member of the provincial or federal government, or any full-time political office.

7.50.2 If Members of the Bargaining Unit wish to allow their names to stand either before a party convention or for actual nomination for an election, the Members shall notify the Dean/University Librarian concerned within a reasonable time so that the Dean/University Librarian may make whatever arrangements may be deemed necessary in order to ensure that the resulting added workload can be properly performed by others from the date of the issuance of the writ up to and including the date of the election.

7.50.3 The Employer may grant such a Member leave without pay for a period from the issuance of the writ up to and including election day. Such leave shall not be unreasonably withheld.

7.50.4 Should the Members not be elected, they shall come back to work immediately to assume their normal duties.

7.50.5 If the Members are elected and:

(a) If they are Members with tenure and return immediately upon ceasing to hold office within six (6) years of their election, all rights, privileges and rank shall be restored to them upon return and the Members shall be entitled to a rate of pay including all statutory

Collective Agreement 2008-11 increases which were granted to Members of the teaching staff of equal rank that the Members occupied at the time the leave was granted. Extensions of the six (6) year time limit may be made by agreement of the

Parties. During the term of any such leave, the Members shall be entitled to leave without remuneration. Such Members shall not be entitled to any rights or privileges under this

Collective Agreement except in regards to benefits as governed by Article 7.40 – Leaves of Absence Without Pay.

Nothing in this Article shall be construed as preventing such Members from being employed on a part-time basis by the University for lecturing/professional library service or for any task, in which case the

Members shall be remunerated therefore at the normal scale for part-time Members of the teaching/professional library staff.

(b) If they are a Member without tenure, they shall be deemed to have resigned their position with the University as of the day following their election.

7.50.6 Any Members of the Bargaining Unit who wish to run for a political office other than a full-time one are free to do so subject to Article 5.15 – Rights,

Responsibilities and Duties of Academics. Any such

Members of the Bargaining Unit shall be required to perform all normal duties as set out in this Collective Agreement.

ARTICLE 7.55 – PHYSICAL AND MENTAL ILLNESS

7.55.1 The Members of the Bargaining Unit are eligible for sick leave up to a maximum of six (6) months at salary otherwise receivable from the date of disability due to accident or illness, for each separate disability cause, excluding pregnancy which shall be covered by the provisions of Article

7.60 – Pregnancy, Parental and Adoption Leaves.

Illness of a duration of more than six (6) months will be dealt with according to the provisions of the University's Long-Term Disability Plan, and the

Employer agrees that there shall be no amendments to that plan during the life of the

Collective Agreement which shall materially affect the nature or level of the benefits to which a

Member is entitled. As soon as practicable after the start of each disability period, the Dean/University

Librarian must be informed by or on behalf of the disabled about the absence and about its expected duration.

Where the Employer makes payment to the

Member according to the above mentioned terms or assumes liability therefore, the Employer is subrogated to all rights of recovery of the Member to the extent that the Employer has made payment to, or on behalf of, or for the benefit of the Member.

The Employer may bring an action in the name of the Member to enforce these rights.

7.55.2 (a) A Member shall, when requested by the

Dean/University Librarian, submit the certificate of a legally qualified medical practitioner certifying that the Member is unable to attend to the duties of her/his position;

(i) For any sick leave in excess of five

(5) consecutive working days.

(ii) In the event a Member's sick leave pattern raises substantial doubt of the claim, even if the individual's sick leave periods are short enough not to require medical certificates otherwise.

(b) In this Article, a "legally qualified medical practitioner" shall be limited to licensed physicians, licensed midwives, licensed dentists and registered psychologists.

Please note that being under the care and treatment of a person other than a licensed physician, a Member may jeopardize qualifying for Long-Term Disability. A physician is a person who is duly licensed to practice medicine and is recognized by the

College of Physicians and Surgeons.

(c) The Member shall only be required to submit one medical certificate of disability or illness per absence, unless the expected duration of the absence is extended beyond the prognosis provided in the original certificate.

In such circumstances the Member shall submit additional certificates of disability or illness for each extension.

(d) Any certificate of disability or illness submitted, in addition to certifying that the

Member is unable to attend to the duties of her/his position, shall indicate the probable duration of the Member's absence but the legally qualified medical practitioner shall not disclose any information respecting the

Collective Agreement 2008-11 diagnosis of the condition giving rise to the Member's absence, without the Member's written and informed consent.

(e) Where the certificate is requested under subparagraph 7.55.2 (a) (ii) above, a copy of the request for the certificate and a copy of the certificate of disability produced shall be provided to the Union by the Dean/University Librarian.

(f) Upon receipt of any certificate of disability, the Dean/University Librarian shall advise the Member of the Member's right to accommodation if such accommodation will assist the Member to return to work to full or partial duties, or will assist the Member to return to work at an earlier date than would otherwise be the case.

(g) If the Member requires or wishes accommodation, the Member shall submit to the Dean/University Librarian the certificate of a legally qualified medical practitioner certifying the details of the accommodation that the Member requires and the expected duration of the accommodation.

(h) A copy of the certificate provided pursuant to paragraph 7.55.2 (g) above shall be provided to the Union by the Dean/University Librarian.

(i) The Employer, the Union and the Member will cooperate fully to achieve the accommodation required by the Member, and to ensure, where possible, that any changes to the Member's workplace required by the accommodation are in place for the Member's return.

(j) The reasonable costs of any certificates required under this Article shall be paid by the Member and reimbursed by the Employer to the Member.

7.55.3 In order to have a sick leave benefits period reinstated up to the maximum, Members of the Bargaining Unit who have been absent and in receipt of sick leave benefits must return to work for at least one (1) full working day in the case of a completely unrelated and different disability cause, and for thirty (30) calendar days in the case of the same disability cause.

7.55.4 Sick leave benefits for any period of absence following notice of termination of employment will

Collective Agreement 2008-11 not be payable without substantiating medical evidence.

7.55.5 Sick leave benefits are not cumulative and are not cashable upon termination of employment or at any other time.

7.55.6 Sick leave benefits will be reduced by the amount of any Worker's Compensation benefits or similar disability income benefits which the Member of the

Bargaining Unit is eligible to receive by reason of accident or sickness, from a government plan, except Unemployment Insurance.

(a) A Member may be required by the Vice-

President, Academic to undergo a medical examination by a legally qualified medical practitioner appointed by the University in the following circumstances:

(i) If the Member submits a request for accommodation pursuant to paragraph 7.55.2 (g) above;

(ii) At the time the Member indicates her/his readiness to return to work, if the absence has been for a period of a month or more;

(iii) At one other time during the sick leave; and

(b) The Employer shall pay all costs of the medical practitioner and shall pay all reasonable expenses incurred by the Member with respect to such medical examination.

(c) Where the Employer requires the Member to undergo a medical examination pursuant to paragraph 7.55.6 (a) above it shall notify the

Member with a copy to the Union and it shall provide the Member with the names of three

(3) duly qualified medical practitioners and the Member shall select one of those practitioners to conduct the examination.

(d) The medical practitioner who conducts the examination shall provide a report to the

Member, which report shall certify whether or not the Member is medically able to perform the duties of her/his position, or whether the Member could perform such duties with accommodation; a prognosis for the Member's return to work; and, where applicable, whether or not accommodation requested by the Member is appropriate.

The report shall not contain any diagnosis of the Member's condition, unless the Member,

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Collective Agreement 2008-11 in consultation with the Union, requests that the diagnosis be included.

(e) Within five (5) working days of the receipt of the report, the Member shall provide the report to the Dean/University Librarian who shall in turn provide a copy to the Union within five (5) working days.

7.55.7 When invalidity is due to drug addiction or alcoholism, benefits provided by this Article will be granted only for leaves of absence necessary for proper treatment under a physician's care or that of specialized personnel.

7.55.8 When the Member's behaviour raises reasonable and substantial doubt as to the state of her/his physical or mental health, which affects in a material way the Member's ability to perform her/his duties, or which raises real concern for the safety of the Member or other members of the University community, the Vice-President, Academic may require the Member to undergo a medical examination in accordance with clause 7.55.6 above. The Union shall be notified when such action is taken. Where the report is requested as a result of a real concern for the safety of the Member or other members of the University community, the report produced, in addition to the information provided pursuant to paragraph 7.55.6 (d) above, shall certify whether or not the Member's behaviour raises any real concern for the safety of the Member or other members of the University community.

7.55.9 Sick leave benefits defined in this Article may not be granted under the following circumstances:

(a) Intentionally self-inflicted injuries or diseases.

(b) Pregnancy (however, complications due to pregnancy are covered by sick leave provisions, upon submission of a medical certificate).

(c) While vacation pay is also being received.

(d) Wilful participation in riots, wars or violent or uncontrolled demonstrations or protests.

(e) Injuries or diseases sustained while committing a criminal act for which the Member has been found to be guilty by a duly constituted court or while serving a prison sentence.

ARTICLE 7.60 – PREGNANCY, PARENTAL AND ADOPTION

LEAVES

7.60.1 Pregnancy Leave

(a) A pregnant full-time Member or pregnant

Permanent Sessional Member shall be entitled to seventeen (17) weeks pregnancy leave.

(b) During the period of pregnancy leave as specified in paragraph 7.60.1 (a) above, a Member shall receive from the Employer:

(i) For the first two (2) weeks, one- hundred percent (100%) of her nominal salary;

(ii) For up to a maximum of fifteen (15) additional weeks, an amount equal to the difference between the Employment Insurance (EI) benefits received by the Member and one- hundred percent (100%) of the Member's nominal salary;

(iii) Further, in the event of any reduction by the Government of Canada to the Member's EI benefit entitlement, an amount necessary to ensure that the Member receives the top-up described in subparagraph 7.60.2 (b)

(ii) above.

(c) If the Member is disentitled or disqualified from receiving EI benefits or should EI cease to provide coverage for pregnancy benefits or adjust the amount of benefits that were received, then the Employer shall maintain the Member at one-hundred percent (100%) of her nominal earnings for the period of her leave.

7.60.2 Notice Required for Pregnancy Leave

(a) The Member shall give the Employer at least two (2) weeks written notice of the date the pregnancy leave is to begin. The notice period may be altered by mutual agreement.

(b) The notice period in paragraph 7.60.2 (a) above shall not apply if the Member stops working because of complications caused by her pregnancy or because of a birth, still birth or miscarriage.

7.60.3 Duration of Pregnancy Leave

(a) The pregnancy leave of a Member who is entitled to take parental leave shall end seventeen (17) weeks after the pregnancy leave began. In the case where the newborn child is hospitalized, a Member may postpone or interrupt her pregnancy leave by the number of weeks the newborn child is hospitalized but it must be taken within the fifty-two (52) weeks from the date of the birth of the child.

(b) The pregnancy leave of a Member who is not entitled to take parental leave shall end on the later of either the day that is seventeen (17) weeks after the pregnancy leave began or the day that is six (6) weeks after the birth, still birth or miscarriage.

7.60.4 Leave for Parent Not Taking Pregnancy or Parental Leave

On the occasion of the birth of a child or the adoption of a child coming into the care or custody of a parent for the first time, the child's parent who is not taking the pregnancy or the parental leave shall be entitled to a leave with full salary and benefits of up to five (5) working days, to be taken at the discretion of the Member within the fifty-two (52) weeks from the date of the birth of the child or the adoption of a child coming into the care or custody of a parent for the first time.

7.60.5 Parental Leave on the Occasion of the Birth of a Child

(a) On the occasion of the birth of a child, a Member who is a parent and who has opted to take parental leave under the Employment Insurance Act and applicable legislation shall be entitled to a parental leave of up to thirty- five (35) weeks.

(b) During the period of parental leave as specified in paragraph 7.60.5 (a) above, a Member shall receive from the Employer:

(i) For the first two (2) weeks, one- hundred percent (100%) of her/his nominal salary;

(ii) For up to a maximum of seven (7) additional weeks, an amount equal to the difference between the EI benefits received by the Member and one-hundred percent (100%) of the Member's nominal salary;

(iii) Further, in the event of any adjustment by the Government of Canada to the Member's EI benefit entitlement, the Employer shall pay to the Member the amount necessary to ensure that the Member receives the top-up described in subparagraph

7.60.5 (b) (ii) above.

(c) If the Member is disentitled or disqualified from receiving EI benefits or should EI cease to provide coverage for parental benefits or adjust the amount of benefits that were received, the Employer shall maintain the Member at one-hundred percent (100%) of her/his nominal earnings for the period of her/his leave.

7.60.6 Parental Leave on the Occasion of the Adoption of a Child

(a) On the occasion of the adoption of a child coming into the care or custody of a parent for the first time, a Member who is a parent shall be entitled to a parental leave of up to thirty-seven (37) weeks. The parental leave must be commenced within the fifty-two (52) weeks from the date the child comes into care or custody of the parent for the first time.

(b) During the period of parental leave as specified in paragraph 7.60.6 (a) above, a Member shall receive from the Employer:

(i) For the first two (2) weeks, one- hundred percent (100%) of her/his nominal salary;

(ii) For up to a maximum of seven (7) additional weeks, an amount equal to the difference between the EI benefits received by the Member and one-hundred percent (100%) of the Member's nominal salary.

(iii) Further, in the event of any adjustment by the Government of Canada to the Member's EI benefit entitlement, the Employer shall pay to the Member the amount necessary to

Collective Agreement 2008-11 ensure that the Member receives the top-up described in subparagraph 7.60.6 (b) (ii) above.

(c) If the Member is disentitled or disqualified from receiving EI benefits or should EI cease to provide coverage for parental benefits or adjust the amount of benefits that were received, the Employer shall maintain the Member at one-hundred percent (100%) of her/his nominal earnings for the period of her leave.

7.60.7 Notice Required for Parental Leave

(a) A Member shall give written notice to the Employer of her/his intention to take a parental leave at least two (2) weeks prior to the commencement of such leave. The notice period may be altered by mutual agreement.

(b) The notice period in paragraph 7.60.7 (a) above shall not apply if the Member stops working because the child comes into the custody, care and control of the parent sooner than expected.

7.60.8 Extended Parental Leave

An extended parental leave without pay, up to a maximum of one (1) year, shall be given to Members who request it.

7.60.9 General Considerations

(a) During leaves under this Article, the Member shall continue to participate in the pension plan and the other benefit plans set out in this Collective Agreement. The Member and the Employer shall each continue to pay their applicable share of contributions and/or premiums, unless the Member elects not to do so in writing.

(b) Nothing in this Article shall prevent a Member from claiming sick leave for absences from work due to illnesses.

(c) Upon return to work, a Member who has taken leaves under this Article shall resume her/his former position with her/his full nominal salary and benefits as provided for under this Collective Agreement.

(d) The period of a Member's leave shall be included in the calculation of her/his length of service for seniority purposes.

(e) A Member on pregnancy, parental or adoption leave may elect to defer contractual decisions on reappointment or tenure/permanence by an equivalent period of time. When a Member elects to defer such decisions, she/he shall provide the

Dean/University Librarian, or equivalent, with written notice of her/his intention to do so.

(f) The Parties agree that the provisions of this

Article shall be no less than those in the

Employment Standards Act, 2000 and

Employment Insurance Act as may be further amended. Differences in the interpretation of this Article shall be resolved based on consistency with the Acts.

(g) Nothing in this Article shall prevent a

Member claiming pregnancy, parental or adoption leave during a sabbatical leave.

Any unused portion of a sabbatical leave shall be taken at a time mutually acceptable to the Member and Dean/University Librarian.

(h) If both parents are Members, they may share their paid periods of leave between them.

ARTICLE 7.65 – SPECIAL LEAVES

7.65.1 A full-time Member, who holds a tenured or probationary appointment within the University, shall be eligible for a paid leave of absence for a period of up to two (2) weeks to fulfill responsibilities relating to the special needs of a member of the

Employee's family. Special needs may include, but are not restricted to, resettlement of aged or disabled parents, serious illness of parents, partner, or child, medical treatment of partner or child that cannot be provided in the Sudbury Region.

The teaching/professional and service responsibilities of

Members on this leave shall normally be assumed by their colleagues without additional expense to the University.

ARTICLE 7.70 – COMPASSIONATE LEAVE

7.70.1 In the event of death of a partner, son or daughter

(including step-son, step-daughter and child of partner), the Employee shall be granted a leave of absence of up to ten (10) working days with pay.

7.70.2 In the event of the death of another member of an

Employee's family, the Employee shall be granted a leave of absence of up to five (5) working days with

Collective Agreement 2008-11 pay.

The term "another member of an Employee's family" means brother and sister, step-brother and step-sister, mother and father, mother-in-law and father-in-law, sister-in-law and brother-in-law, grandparent, guardian, grandchildren, daughter-in-law and son-in-law.

7.70.3 For a longer period of absence, a Member may apply for leave without pay according to Article 7.40 – Leave of Absence Without Pay.

7.70.4 In the event of the death of an Employee's nephew, niece, grandparent-in-law, aunt or uncle, the Member shall be granted a leave of absence of one

(1) working day without loss in pay.

7.70.5 If, during her/his vacation period, a Member is bereaved in circumstances under which she/he would have been eligible for leave under this

Article, she/he shall be granted leave and her/his vacation pay credits shall be restored to the extent of any concurrent leave granted.

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SALARY AND BENEFITS

ARTICLE 8.10 – SALARY STRUCTURE

The Salary Structure for the Academic Year 2008-09

8.10.1 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2008 as modified by the following items:

(a) A scale increase of three and one quarter percent (3.25%) of the Member's regular salary.

(b) A Progress-Through-The-Ranks increment for the evaluation carried out for the year 2007-08 as described in Article 8.20 – Procedures for the Award/Denial of a Progress-Through-

The-Ranks Increment. The Progress-

Through-The-Ranks increments shall have a value of two thousand six hundred dollars

(\$2,600).

For all ranks other than Full

Professor/Librarian, where a Member's salary exceeds \$126,584 per annum, the

PTR will be at fifty percent (50%) value. For all ranks, where a Member's salary exceeds

\$140,110 per annum, the PTR will be nil.

(c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments.

(d) Merit increments shall be awarded according to Article 8.25 – Merit Increments, regardless of breakpoints.

(e) On January 1, 2009, a progressive catch-up based on the following formula: $(\$100,000 / \text{Member's salary}) \times \text{five hundred and fifty dollars } (\$550)$

Collective Agreement 2008-11

8.10.2 The salary floors for 2008-09 shall be as follows:

Rank Floor

Lecturer / General Librarian \$52,277

Assistant Professor / \$63,317

Librarian

Associate Professor / \$76,268

Librarian

Full Professor / Librarian \$93,966

The Salary Structure for the Academic Year 2009-10

8.10.3 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2009 as modified by the following items:

(a) A scale increase of three and one quarter percent (3.25%) of the Member's regular salary.

(b) A Progress-Through-The-Ranks increment for the evaluation carried out for the year 2008-09 as described in Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment. The Progress-

Through-The-Ranks increments shall have a value of two thousand seven hundred dollars (\$2,700).

For all ranks other than Full

Professor/Librarian, where a Member's salary exceeds \$130,698 per annum, the PTR will be at fifty percent (50%) value. For all ranks, where a Member's salary exceeds \$144,664 per annum, the PTR will be nil.

(c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments.

(d) Promotion or Merit increments shall be awarded according to Article 8.15 – Progress-Through-The-Ranks Increments and Article 8.25 – Merit Increments, regardless of breakpoints.

(e) On January 1, 2010, a progressive catch-up based on the following formula: $(\$100,000 / \text{Member's salary}) \times \text{nine hundred and twenty-five dollars } (\$925)$

Collective Agreement 2008-11

8.10.4 The salary floors for 2009-10 shall be as follows:

Rank Floor

Lecturer / General Librarian \$54,526

Assistant Professor / \$65,930

Librarian

Associate Professor / \$79,252

Librarian

Full Professor / Librarian \$97,527

The Salary Structure for the Academic Year 2010-11

8.10.5 The salary of each Member shall be composed of the base salary of each Member as of June 30, 2010 as modified by the following items:

(a) A scale increase of three and one quarter percent (3.25%) of the Member's regular salary.

(b) A Progress-Through-The-Ranks increment for the evaluation carried out for the year 2009-10 as described in Article 8.20 –

Procedures for the Award/Denial of a

Progress-Through-The-Ranks Increment. The

Progress-Through-The-Ranks increments shall have a value of two thousand eight hundred dollars (\$2,800).

For all ranks other than Full

Professor/Librarian, where a Member's salary exceeds \$134,946 per annum, the

PTR will be at fifty percent (50%) value. For all ranks, where a Member's salary exceeds

\$149,365 per annum, the PTR will be nil.

(c) Additional qualification increments shall be awarded pursuant to Article 8.30 – Additional Qualifications Increments.

(d) Promotion or Merit increments shall be awarded according to Articles 8.15 –

Progress-Through-The-Ranks Increments and Article 8.25 – Merit Increments, regardless of breakpoints.

(e) On January 1, 2011, a progressive catch-up based on the following formula: $(\$100,000 / \text{Member's salary}) \times \text{one thousand dollars}$

(\$1000)

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8.10.6 The salary floors for 2010-11 shall be as follows:

Rank Floor

Lecturer / General Librarian \$57,298

Assistant Professor / \$69,073

Librarian

Associate Professor / \$82,827

Librarian

Full Professor / Librarian \$101,697

ARTICLE 8.15 – PROGRESS-THROUGH-THE-RANKS

INCREMENTS

8.15.1 The purpose of these increments is to provide, through a series of salary increases, orderly promotion within rank.

8.15.2 These increments shall be awarded annually for satisfactory performance of duties per Article 8.20 –

Procedures for the Award/Denial of a Progress-

Through-The-Ranks Increment.

8.15.3 Increments may be withheld if performance is deficient, as outlined in Article 8.20 – Procedures for the

Award/Denial of a Progress-Through-The-Ranks

Increment.

8.15.4 Any Members who are promoted to a higher rank shall not be required to take a loss in salary. If such Members' salaries are below the floor salary of the higher rank, they shall receive the floor salary upon promotion.

8.15.5 Promotion Increment: Effective July 1, 2009, there shall be an award equal to one (1) PTR increment added to the Member's base salary upon promotion from either Lecturer/General Librarian to Assistant

Professor/Librarian, from Assistant

Professor/Librarian to Associate

Professor/Librarian, from Associate

Professor/Librarian to Full Professor/Librarian. In no circumstances will a Member be awarded more than two (2) PTRs in any given year, excepting the case of a reinstatement of the PTR increment as per Article 8.20 – Procedures for the Award/Denial of a Progress-Through-The-Ranks Increment.

ARTICLE 8.20 – PROCEDURES FOR THE AWARD/DENIAL

OF A PROGRESS-THROUGH-THE-RANKS INCREMENT

8.20.1 When a Member's performance is judged to be satisfactory by the Dean/University Librarian, the annual increment shall be awarded.

8.20.2 Decisions to award the annual increment or notification of a review as per clause 8.20.4 below shall be communicated to the Members by June 30, provided that the Member submitted her/his annual report by May 15. If the annual report is submitted after May 15, the decision of the Dean/University Librarian shall be communicated to the Member within six (6) weeks after the Member's annual report has been submitted.

8.20.3 For those Members on sabbatical or study leave, the decision whether to award the annual increment may be delayed until submission of their final report as specified in Article 5.45 – Annual Report for Members.

8.20.4 The Dean/University Librarian shall examine the annual reports as per Article 5.45 – Annual Report for Members, and make such other inquiries, as she/he deems appropriate. Where the Dean/University Librarian has concerns about the Member's performance with respect to the awarding of the PTR increment, the Dean/University Librarian shall first issue a written warning, stating the basis of the concerns, and what needs to be done to remedy them. The Member shall be awarded the PTR increment for that year and shall indicate in the following year's annual report what measures the Member has taken to address those concerns. If in the following year, the Dean/University Librarian is not satisfied that the concerns have been addressed by the Member and that the Member does not show active participation and/or satisfactory performance in all three (3) areas, A), B), and C) (within the provisions of Article 5.15 – Rights, Responsibilities and Duties of Academics) or in the subset of those areas for which the Member's terms of employment are relevant, the Dean/University Librarian shall communicate to the Member the possibility that the PTR will be denied. The Dean/University Librarian shall specify the reasons and provide the evidence giving rise to this possibility. The Dean/University Librarian shall invite the Member to a meeting in order to address the concerns. The Dean/University Librarian shall inform the Union of the upcoming meeting and shall inform the Member of her/his right to be accompanied by a Union representative. The review shall include a consideration of at least the three (3) previous annual reports, if available, and a meeting with the Member. The Dean/University Librarian shall invite the Member to submit relevant materials.

8.20.5 When a review is undertaken under the terms of clause 8.20.4 above, the deadline for communicating the decision to the Member is delayed by one (1) month from those stated in clause 8.20.2 above.

8.20.6 After making her/his evaluation, the Dean/University Librarian shall inform the Member in writing whether the increment is awarded and shall provide a justification for the decision.

8.20.7 A Member whose annual increment is denied shall have the right of appeal to the Vice-President, Academic. In making her/his decision, the Vice-President, Academic shall at a minimum consult the annual report, the investigation made by the Dean/University Librarian, and the appeal presented by the Member, and may consult more broadly. In cases where a Member elects to appeal, the decision of the Vice-President, Academic shall be communicated to the Member within six (6) weeks of the Member's appeal.

8.20.8 If the Vice-President, Academic reverses the decision of the Dean/University Librarian and awards the annual increment, a retroactive payment shall be made to the Member as appropriate.

8.20.9 There shall be no denial of a PTR increment to a full-time Member with a probationary appointment prior to the Member's tenure decision as per Article

5.60 – Tenure Evaluation Procedures.

8.20.10 A Member shall have the opportunity for reinstatement of the increment, as follows: A reinstatement of the increment shall occur July 1 for the academic year after the Member receives two

(2) consecutive satisfactory annual assessments from the Dean/University Librarian, or after the Member receives a promotion in rank as per Article

5.65 – Promotion Procedures, or after the Member receives a merit award as per Article 8.25 – Merit Increments. The reinstated amount shall be equal to the amount of the PTR denied.

8.20.11 If, within three (3) years of the first denial of a PTR, the Member's performance is not satisfactory the Dean/University Librarian may deny the PTR, as per clause 8.20.4 above without a preliminary year of warning.

ARTICLE 8.25 – MERIT INCREMENTS

8.25.1 Merit increments are awarded by the Vice-President, Academic and shall become a permanent part of the Member's salary structure. Only Full Professors/Librarians and Permanent Sessional Lecturers are eligible for merit increments.

8.25.2 It shall be the goal of the Vice-President, Academic to award merit increments to at least five percent (5%) of the Full Professors/Librarians and Permanent Sessional Lecturers at Laurentian University.

Notwithstanding this goal, the criteria specified in clause 8.25.5 below shall not be violated.

8.25.3 All merit increments have the value of one Progress-Through-The-Ranks increment.

8.25.4 Merit increments are awarded according to the procedures of Article 5.50 – Assessment of a Member's Performance. Only tenured members are eligible to vote.

8.25.5 For Full Professors/Librarians, the FPC/FFPC/LPC shall consider the award of merit increments in relation to criteria for promotion to the rank for Full Professor/Librarian. The Member's performance at Laurentian University over a three (3) year time period or since the award of the last merit increment, whichever is shorter, must be judged clearly above the level for promotion to Full Professor/Librarian, as stated in Article 5.10 – Academic Qualifications Guidelines.

For Permanent Sessional Lecturers, the judging of the applicant's performance over the past three (3) years, or since the award of the last merit increase, shall be based on consistently good teaching.

8.25.6 In making recommendations in merit increment cases, the procedure in Article 5.50 – Assessment of a Member's Performance shall be followed.

8.25.7 All merit increments received previously or awarded during the academic year 2007-08 under the terms of prior Collective Agreements remain in force.

8.25.8 The determination of individuals to receive merit increments pursuant to clause 8.25.5 above shall not be subject to grievance.

8.25.9 Although Lecturer, Assistant and Associate

Professors are not eligible for merit increments, as per clause 8.15.5 of Article 8.15 – Progress-Through-The-Ranks Increments, Members in these ranks shall receive an additional PTR when promoted to the next rank.

ARTICLE 8.30 – ADDITIONAL QUALIFICATIONS

INCREMENTS

8.30.1 An additional increment, equal to the value of a

Progress-Through-The-Ranks increment, shall be awarded to individuals obtaining a first Doctorate provided that such a degree was not a condition of nomination to a specific rank and salary as indicated in the letter of appointment. Such an award will be retroactive to the first (1st) day of July immediately preceding the receipt of the Doctorate. The Doctorate will be deemed to have been received when the individual can provide a diploma or a letter from the university where the Doctorate is being obtained indicating that all the conditions for the Doctorate, including the thesis defence and the corrections to the thesis, have been met. The Member shall apply for an additional increment through the Dean/University Librarian and must furnish a copy of the appropriate document.

ARTICLE 8.35 – OVERLOADS

8.35.1 All ranks of full-time Members who are teaching a course on a paid overload basis will receive a stipend as shown below for courses beginning after these dates:

Full course Half course

(6 credits) (3 credits)

July 1, 2008 \$8,596 \$4,298

July 1, 2009 \$8,811 \$4,406

July 1, 2010 \$9,028 \$4,514

8.35.2 Where scheduled Continuing Education courses may otherwise have to be cancelled, Members may, if they choose, agree to teach a course for an amount less than the overload stipend. The Union shall be informed of any such agreement prior to its settlement.

8.35.3 In recognition of agreement by the Parties, that excessive overload teaching/professional Library service is undesirable (specified in paragraph

5.40.6 (b) of Article 5.40 – Academic Workload), the

Dean/University Librarian has the authority to limit the number of overload courses a Member may teach in any given academic year, or its equivalent in the Library. In order to fulfil this function, the

Dean/University Librarian must approve all paid

Collective Agreement 2008-11 overloads including distance education courses and on-campus courses administered by the Centre for

Continuing Education. In decisions to limit the number of paid overloads, the Dean/University Librarian shall be guided by her/his assessment of the total workload of the Member, the impact of overload teaching/professional library work on the likely career progress of the Member, including the capacity of the Member to undertake scholarly activity and administrative duties expected of all Members. A decision by the Dean/University

Librarian to limit paid overloads in any academic year shall not be grievable.

8.35.4 Librarians may be paid full or half overloads according to the schedule outlined in this Article.

8.35.5 All Members who believe they are entitled to an overload stipend shall apply per Article 5.40 – Academic Workload.

8.35.6 Full-time Members in the Department of Music teaching Applied Music courses on overload shall be paid the base rate of \$55.00 per hour, plus an increase by two and a half percent (2.5%) in 2008-09, two and a half percent (2.5%) in 2009-10 and two and a half percent (2.5%) in 2010-11.

Total hourly rate of pay

July 1, 2008 \$56.38

July 1, 2009 \$57.78

July 1, 2010 \$59.23

ARTICLE 8.40 – DISTANCE EDUCATION COURSES

8.40.1 Normal function

The development and/or supervision of distance or on-line education courses are an integral part of University functions. Therefore, the development and/or supervision of a distance or on-line education course may be part of a Member's normal workload as per Article 5.40 – Academic Workload and according to Senate regulations or may be carried out on an overload basis. Prior to assigning the supervision of a distance or on-line course to a Member as part of her/his normal workload, the

Dean shall seek volunteers willing to teach such a course. The Dean shall not assign the development of a distance or on-line education course to a

Member as part of her/his normal workload without her/his prior consent in writing. The development

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Collective Agreement 2008-11 and/or supervision of a distance or on-line education course are governed by the terms and conditions of a contract issued by the Centre for Continuing Education on behalf of the University.

8.40.2 Equivalents

The development of a distance education course shall normally be equivalent to twice the credit value of the course but may be equivalent to a lesser amount or up to a maximum of a full workload.

In all instances, a written statement of the equivalency will be provided in advance by the Dean when the work is part of assigned workload and by the Director of Continuing Education otherwise.

8.40.3 Copyright

Copyright for distance education courses shall be governed by Article 6.35 – Copyright.

8.40.4 Compensation

Where the development of a distance education course is not included as a part of a Member's normal workload the payment shall be an overload payment based on the equivalence outlined in clause

8.40.2 above. A Member may also agree to some combination of normal workload assignment plus paid overload as appropriate.

8.40.5 Supervision

Where the supervision of a distance education course is not included as part of a normal workload, a six (6) credit course shall be paid for on the basis of one thousand five hundred dollars (\$1,500) for one (1) to five (5) students. For each additional student more than five (5) students, the additional pay per student shall be two hundred and fifteen dollars (\$215) for the year 2008-09, two hundred and twenty dollars (\$220) for the year 2009-10, and two hundred and thirty dollars (\$230) for the year

2010-11. The maximum pay for a six (6) credit course shall be the rate of pay of a Sessional Member without establishment for a six (6) credit course as per Article 4.55 – Rates of Pay for Sessional Members with restrictions as per clause

5.40.6 of Article 5.40 – Academic Workload. Three

(3) credit courses shall be pro-rated

ARTICLE 8.45 – BENEFITS

8.45.1 The following benefits are available to full-time Members and Permanent Sessional Members:

- (a) Retirement Plan of Laurentian University of Sudbury and its Federated and Affiliated Colleges
- (b) Group Life Insurance
- (c) Accidental Death and Dismemberment
- (d) Dependent Group Life
- (e) Extended Health Care (including semi-private hospital coverage)
- (f) Long-Term Disability
- (g) Dental Care

8.45.2 Participation in the Retirement Plan of Laurentian

University of Sudbury and Its Federated and

Affiliated Colleges shall be mandatory for all new full-time faculty Members effective the date of their appointment.

8.45.3 The cost of premiums shall be shared by the

Employer and the Member on the following basis:

Employer Member

Life Insurance 50% 50%

Coverage up to maximum of

\$400,000

Accidental 50% 50%

Death & Coverage up to

Dismember- maximum of ment \$400,000

Dependent 50% 50%

Group Life

Extended 100%

Health Care

Dental Care 100%

Long Term 100%

Disability Coverage amount up to maximum of

\$5,300 per month

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Retirement (a) 7% of the part (a) 5% of the part

Plan of the of the

Member's Member's

Pensionable Pensionable

Earnings that Earnings that is below the is below the year's basic year's basic exemption as exemption as prescribed by defined by the the Canada Canada

Pension Plan; Pension Plan;

(b) 5.2% of the (b) 3.2% of the part of the part of the

Member's Member's

Pensionable Pensionable

Earnings that Earnings that is between the is between year's basic the year's exemption and basic the year's exemption maximum and the year's pensionable maximum earnings; pensionable earnings;

(c) 7% of the part (c) 5% of the part of the of the

Member's Member's

Pensionable Pensionable

Earnings that Earnings that is in excess of is in excess of the year's the year's maximum maximum pensionable pensionable earnings. earnings.

(d) 1.5% of the part of the

Member's

Pensionable

Earnings to the Minimum

Guarantee

Fund in accordance with the

Retirement

Plan of

Laurentian

University of

Sudbury and its Federated and Affiliated

Colleges.

8.45.4 Extended Health Care

Effective November 1, 2008, extended health care will be enhanced by providing full payment to paramedical practitioners (audiologist, chiropractor, kinesiologist, massage therapist, naturopath, osteopath, podiatrist, and speech therapist) up to an annual limit of two thousand two hundred dollars (\$2,200) per benefit year per covered individual.

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Effective November 1, 2008, the professional services for a certified psychologists only will increase up to four thousand dollars (\$4,000) per covered individual per benefit year.

Extended health care will continue to provide payment, according to the Extended Health Care Plan, to physiotherapists and athletic therapists without an annual limit.

8.45.5 Vision Care

Effective November 1, 2008, purchase and fitting of prescription glasses or elective contact lenses, as well as repairs or elective laser vision correction procedures, up to an overall maximum of three hundred and fifty dollars (\$350) per covered individual in any twenty-four (24) consecutive months.

8.45.6 Hearing Aids

Effective November 1, 2008, up to five hundred dollars (\$500) per covered individual in any two (2) consecutive benefit years.

8.45.7 Dental

The Employer shall pay one hundred percent

(100%) of the cost of the premiums of the dental plan in accordance with the current rate schedule as established by the Ontario Dental Association and including six (6) month recall, effective

November 1, 2008.

Annual Reimbursement

Maximum

Basic coverage, \$3,000 including major services, per person per benefit year:

Basic coverage 100%

Reimbursement by plan

Major services 80%

Reimbursement by plan

Orthodontics Lifetime 50% coverage per Maximum Reimbursement person \$3,000 by plan

8.45.8 Any Member on an unpaid leave of absence shall make special arrangements for benefit coverage as outlined in Article 7.40 – Leaves of Absence Without Pay.

8.45.9 Benefits for the spouse and dependants of a Member, enrolled in the various benefits plans at the time of death, shall continue for a period of two (2) years from the date of death and shall terminate at the end of the month in which the death occurred, two (2) years after the date of death.

8.45.10 Retirees Health Benefits Plan (RHBP) (effective July 1, 2008)

(a) Member contribution increased to fifteen dollars and sixty four cents (\$15.64) per month.

(b) Maximum benefit for single retirees increased to eight hundred dollars (\$800) per year.

(c) Maximum benefit for family of retirees increased to one thousand three hundred dollars (\$1,300) per year.

ARTICLE 8.50 – TUITION FEE EXEMPTION AND SPOUSAL

LIBRARY CARD

Tuition Fee Exemption

8.50.1 The following shall be eligible for Tuition Fee Exemption.

(a) All full-time Members as of the effective date of appointment and all retired full-time Members.

(b) Spouses and dependants of all full-time Members, of retired full-time Members, of deceased retired Members and of Members who died while in the full-time employ of the University. Dependants include wife and husband (including common-law relationships), children up to the age of twenty-six (26) years (including natural, step, and adopted children, wards and other children for whom the Member is the primary caregiver).

8.50.2 Exemption from tuition fees is subject to the following conditions:

(a) A student must remain in good standing as defined by the Registrar's Office in order to qualify for tuition exemption. In the event of loss of good standing, the same course(s) or

Collective Agreement 2008-11 an equivalent one(s) may be taken at the student's expense in order to reinstate good standing and eligibility.

(b) Students who are eligible for an exemption from tuition fees are not exempted from the payment of incidental fees.

(c) To the extent that a grant is specifically given to defray tuition a student who receives a grant is not eligible for exemption from tuition fees.

(d) To the extent that tuition is reduced by a

Laurentian University tuition scholarship, the student is not eligible for exemption from tuition fees. Where the funds are from an outside source this condition does not apply.

8.50.3 Eligibility ceases with the term immediately following the date of termination of employment of a Member, unless otherwise specified in this Collective Agreement.

8.50.4 The Employer reserves the right to modify or rescind this policy depending on the development of future government policy that has a bearing on this matter.

Spousal Photo ID Library Card

8.50.5 On an annual basis, spouses of all Members, including retired Members, deceased retired Members and Members who died while in the employ of the University, upon request, will be supplied with a photo identification library card at no cost to them except if they require a replacement for a lost card. The charge for replacement will be fifteen dollars (\$15) per card.

ARTICLE 8.55 – MOVING EXPENSES

8.55.1 On initial appointment to the University each regular full-time Member shall be entitled to reimbursement for moving expenses subject to the following conditions:

(a) All claims must be substantiated by official receipts or reasonable facsimiles.

(b) The University shall reimburse claims at the rate of one hundred percent (100%) to a maximum of five thousand dollars (\$5,000).

In exceptional circumstances, the University

Collective Agreement 2008-11 may exceed this amount. Such conditions will be specified in the initial letter of appointment.

8.55.2 Moving expenses include:

- (a) Moving, packing, crating and unpacking of household goods and personal effects.
- (b) Transfer of family by the most economical means of transportation.
- (c) Reasonable living expenses for the duration of the trip to the new location.
- (d) One (1) advance visit for the purpose of securing suitable housing. The newly appointed Members may be accompanied by their spouse in this instance.

8.55.3 Employees appointed on a contract of twelve (12) month's duration or less shall not normally be eligible to claim moving expenses. The Vice-President, Academic may under special circumstances allow some amount of moving expenses to be reimbursed for such employees.

8.55.4 Moving expenses paid to a new Member will constitute a loan made by the University. This loan will be retired when the Member has completed three

(3) years of continuous service to the University, each year being equivalent to one third (1/3) of the reimbursement of the loan.

8.55.5 Should the beneficiary of such a loan leave the

University before completing three (3) years of continuous service, for personal or disciplinary reasons, she/he must reimburse the University for the remaining unretired portion of the loan.

ARTICLE 8.60 – PHYSICAL EDUCATION FACILITIES

8.60.1 As of the effective date of appointment, all full-time

Members, their spouses and dependants as defined in Article 8.50 – Tuition Fee Exemption and Spousal Library Card shall be eligible for free Physical

Education Centre membership subject to the payment of an annual service fee and lockerette rental fee as established by the Division of Physical Education.

ARTICLE 8.65 – PUBLIC LIABILITY INSURANCE

8.65.1 Subject to the express provisions of the current policy (ies) of insurance providing such coverage, the University shall continue to maintain the present public liability insurance insuring, among others,

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Members who are acting within the scope of their employment against liability claims (including negligence, property damage, personal injury, libel and slander), up to a limit of four million dollars (\$4,000,000). Any legal representation to which

Members are entitled under this policy shall be provided in a fair and equitable manner. The Union is entitled to receive a copy of the insurance policy upon request. Any changes in this current policy shall be made with the agreement of the Parties.

ARTICLE 8.70 – PARKING

8.70.1 The Parties agree that Members wishing to reserve a parking space in any parking area on campus shall pay the fee established by the University. The parking fees shall be determined following consultation with the Advisory Committee on Security

Services on which the Union shall maintain its current representation of one (1) Member.

8.70.2 Members with a temporary or Long-Term Disability or pregnant Members shall be entitled upon request to their Dean/University Librarian to a reserved parking space close to their office.

ARTICLE 8.75 – REIMBURSEMENT OF EXPENSES

8.75.1 All Members will be reimbursed within the normal amounts payable following approval of the Miscellaneous Expense Claim Form for reasonable out-of-pocket expenses incurred while on authorized business for the University, such as parking fees, transportation costs, meal allowances, equipment for field trips, accommodation costs, and incidental expenses. Receipts for such expenses will be provided where required. The claim for reimbursement including receipts where required shall be submitted to the Member's Chair/Director.

In the event that the Chair/Director is unwilling or unable to reimburse such expenses, the receipts for such expenses shall be submitted to the appropriate Dean/University Librarian. Amounts reimbursed will be according to the schedule of amounts in the Employer's 'Policies and Procedures

Concerning Travel and Related Expenses' as updated annually and amended to include incidental expenses.

ARTICLE 8.80 – POLICY AND PROCEDURES IN THE EVENT OF DEATH

NOTE: The following procedures and practices are currently in place and are largely determined by external agencies. It may from time to time be

Collective Agreement 2008-11 necessary to make adjustments to these procedures based on requirements of these external agencies.

The Parties agree that such changes required by external agencies do not require prior approval.

8.80.1 The beneficiary is to contact the Pension and Benefits Officer in the Personnel Office. If within seven (7) days the University has not been contacted by the beneficiary, the University shall make every reasonable effort to contact the beneficiary.

8.80.2 Life Insurance

(a) The Employee is insured for three (3) times salary to a maximum of four-hundred thousand dollars (\$400,000).

(b) The following documents will be required to request payment of the insurance carrier:

(i) The beneficiary must complete a

Statement required by the insurance carrier as well as provide her/his Social Insurance Number;

(ii) The notice of the Employee's death that appeared in the Obituary Notices;

(iii) A Death Certificate;

(iv) The last insurance certificate that was issued to the faculty Member.

(c) The Life Insurance proceeds are usually paid within one (1) month.

8.80.3 Pension Plan

If the Member dies prior to receiving a pension, the following will be required to process the benefits:

(a) The University shall contact the Beneficiary and outline the procedures to be followed.

(b) The Beneficiary must complete an

"Application for Death Benefit".

(c) Provide a Death Certificate.

(d) Provide a "notarial copy" of the Employee's

"Last Will and Testament".

(e) All Members should have a current "Last Will and Testament".

(f) Beneficiaries of Members without a "Last

Will and Testament" will have to settle any disputes between potential Beneficiaries (children vs spouse) in the courts, prior to receiving any funds from the Pension Plan.

The file will be forwarded to the Actuary for the calculation of the death benefit. Once that calculation is received, the Beneficiary will be contacted. The Beneficiary can request a lump sum refund or a transfer to a R.R.S.P. that is not subject to locked-in provisions.

The death benefit from the Pension Plan is usually paid within two (2) to three (3) months.

If the Member dies after commencing to receive her/his pension, the form of pension that was selected by the Member will determine if further benefits are payable to the Beneficiary.

8.80.4 Benefits to Spouse and Dependants shall continue as per clause 8.45.9 of Article 8.45 – Benefits.

8.80.5 Every Member while employed by Laurentian

University will be expected to complete by January 1,

2009 or within six (6) months of hire a statement to be retained in their Personnel File indicating who shall have access to the Member's computer files and office contents in the event of the Member's death or incapacitation. In the event of the death or incapacitation of the Member, the Employer shall review the Member's files and office contents to retrieve the documents and files belonging to the

Employer. This review shall be consistent with Article

6.30 – Patents and Article 6.35 – Copyright. After this review, only the person or persons named shall have access to the Member's computer files and office contents. If there is no signed access statement, the right of access shall go to the executor in the event of death, and to the next of kin in the event of incapacitation. The executor or next of kin shall have access to the deceased member's files for a period of at least one (1) year. The ownership of the computer files and office contents belonging to the Member shall be transferred according to the Member's will.

ARTICLE 8.85 – SALARY TO BENEFICIARY IN THE EVENT
OF DEATH OF FACULTY MEMBER

8.85.1 Salary Rate: shall be the rate of gross pay for the contract period, including any proportionate reduction in stipend consequent on approved University policies.

8.85.2 Termination Date: shall be the end of the month in which the death occurs.

8.85.3 Period of Negotiations: where it would unduly retard settlement to postpone closure until the completion of a Collective Agreement, an arbitrary figure in excess of any anticipated agreement may be used as the basis for settlement by mutual agreement of the Parties.

8.85.4 Vacation Pay: the lesser of two percent (2%) per week or eight percent (8%) per month of entitlement shall be calculated on gross earnings paid during the period of the year to termination.

8.85.5 Sabbatical Leave: is an investment by the University in an approved plan of professional development with a view to enhance future contributions to the work of the University and the broader scholarly community.

Sabbatical leave entitlement is not a benefit, which the Employee or her/his assigns can claim as of right in the event of either termination (for any cause), retirement, or death. For purposes of death benefits

(Hospital care, Extended Medical and Dental

Insurance), any sabbatical stipend is to be regarded as the equivalent of salary.

8.85.6 Contractual Travel Allowance: may be claimed by the Beneficiary for vouchered expenses incurred prior to termination.

CHAIRS AND DIRECTORS

ARTICLE 9.10 – DUTIES OF CHAIRS/DIRECTORS

9.10.1 The Chairs/Directors are responsible for providing academic leadership to their Departments/Schools.

They serve as the representatives of their

Departments/Schools in administrative matters, as well as the official spokesperson of their

Departments/Schools and they report to the

Dean/University Librarian.

9.10.2 Their duties are the following and shall be carried out in accordance with good administrative practices:

(a) To ensure, to the degree possible, that the

Members of the Department/School are informed of their duties and responsibilities in accordance with Senate regulations, the regulations of the University and this

Collective Agreement.

(b) To convene and preside over meetings of the Department/School at regular intervals during the academic year and to be an ex officio and voting Member of its standing committees.

(c) To ensure as far as reasonably possible that the Members of the Department/School have an opportunity to share in the decision- making process, in the formulation of policies, and in the administrative tasks of the Department/School.

(d) To review and act on all matters involving staff, both faculty and other, with the appropriate internal body and in accordance with Article 5.45 – Annual Report for

Members and in accordance with the terms of Collective Agreements applying to other University bargaining units.

(e) To be responsible for presenting the academic programs of the

Department/School for accreditation or approval of external bodies, as needed.

(f) To prepare budgetary recommendations and administer the annual budget for the Department/School in conjunction with the

Dean/University Librarian and the appropriate internal body.

(g) To advise the Dean/University Librarian on the teaching roster and time-table/desk time

Collective Agreement 2008-11 for the Department/School following consultation with Members of the Department/School and other appropriate University bodies and officers including the Office of the Registrar and the Centre for Continuing Education and to supervise the implementation of the timetable and roster/desk time.

(h) To supervise student counselling on academic matters and the assignment of programs of study within the Department/School.

(i) To prepare a succinct annual report, for submission to the Dean/University Librarian due by June 30, on the enrolment, curriculum and other programmatic issues facing the Department/School. The annual report shall also include a list of Sessional

Lecturers with establishment in specific courses. In preparing the annual report, the Chair/Director shall use a standardized form developed by the Dean/University Librarian for each Faculty and the Library and approved by the Faculty Council. The Department/School reports shall be submitted to the Dean/University Librarian after they have been distributed to Members of the Department/School.

(j) To supervise the use and proper maintenance of space and equipment allocated to the Department/School.

(k) To maintain relations between the Department/School and external professional constituencies and agencies and the wider community, as relevant and appropriate: and to arrange representation as necessary.

(l) To ensure, to the degree possible, that the Members of the Department/School receive a copy of the summary workload recommendations and the Dean's/University Librarian's workload decision according to clause 5.40.1 of Article 5.40 – Academic Workload, and that each Member also receive a copy of the sabbatical plans according to clause 7.25.3 of Article 7.25 – Sabbatical Leaves.

(m) To perform such other duties in connection with the work and administration of the Department/School as the appropriate

Dean/University Librarian may assign her/him, and as are consistent with her/his status as a Member of the Bargaining Unit.

(n) The Chair/Director shall not be required to sign-off or approve the annual reports of Members of the Department/School. Neither shall the Chair/Director be required to review or approve Member applications for reimbursement for Professional Development Expenditures (Article 6.45 – Professional Development Expenditures and Article 4.70 – Professional Development Expenditures for Sessional Members). The Professional Development Expenditures shall be submitted directly to the secretary for the Department/School who shall in turn submit the reimbursement forms to the Dean/University Librarian.

ARTICLE 9.15 – SELECTION OF CHAIRS/DIRECTORS

9.15.1 The Chair/Director of a Department/School shall be appointed by the Vice-President, Academic in accordance with the procedures of this Article. The

Chair/Director shall not serve for more than two (2) consecutive terms.

9.15.2 The following procedures will be initiated by the

Dean/University Librarian at least six (6) months before the end of a term of a Chair/Director or immediately if a post of Chair/Director becomes vacant.

9.15.3 (a) The Dean/University Librarian shall ensure that there is a selection committee with the following composition, including a Chair of the committee, in place within five (5) months before the end of a term of a

Chair/Director or immediately if a post of

Chair/Director becomes vacant:

(i) One third (1/3) of the full-time teaching/librarian Members of the Department/School to the nearest whole number. The members of the committee shall be tenured or probationary appointments, if possible, and shall be elected by all the full-time teaching/librarian Members of the Department/School.

(ii) The Dean/University Librarian as a non-voting member.

(iii) The Chair/Director of another Department/School appointed by the Dean/University Librarian in consultation with the Department/School seeking a

Chair/Director.

(iv) At least one (1) member of the committee shall be a woman. Where the Department/School has no women members and no woman is otherwise on the committee, the Dean/University Librarian, in consultation with the

Department/School shall appoint a woman member in addition to those described above.

(b) The Committee shall elect a Chair from among its members.

9.15.4 The Chair of the Selection Committee shall use all reasonable efforts to invite all full-time Members of the Department/School (including those on leave) to submit to her/him, within a specified period of time, in confidence, the names of possible candidates and reasons supporting their candidature. Without disclosing the names of the individuals submitting them, these names and reasons shall be communicated to the Selection Committee.

9.15.5 In the event that no candidates are submitted by the

Department/School within ten (10) working days of the Selection Committee's request, the Committee may suggest a short list of its own or make a request to the Vice-President, Academic to search for a candidate from outside the Department/School or the University. In the latter instance, the

Department/School shall be consulted for the names of possible outside candidates.

9.15.6 (a) The Selection Committee, after undertaking any further inquiries that it deems appropriate and relevant shall establish a short list of not fewer than two (2) and not more than three (3) candidates, unless it is convinced that it can find only one suitable candidate.

(b) The selection committee shall evaluate candidates on the grounds of proven administrative ability, scholarly activity, and teaching/librarian competence. The

Selection Committee will be guided by

Article 9.10 – Duties of Chairs/Directors in making this evaluation. The Committee may wish to meet with the candidates.

(c) Prior to the compilation of its final short list, the Selection Committee will obtain, in writing, the consent of the candidates on that list.

(d) The Department/School may wish to meet with the short-listed candidates prior to the

Collective Agreement 2008-11 balloting process.

9.15.7 Within ten (10) working days from the final receipt of names from the Department/School as per clause 9.15.4 above, the Chair of the Selection Committee shall make all reasonable efforts to provide all full-time Members of the Department/School, including those on leave, with a ballot. The ballot shall set out the short list of candidates. The Members shall indicate their one (1) preferred choice, in confidence, to the Chair of the Selection Committee within fifteen (15) working days from the distribution date noted on the ballot. The ballots shall be opened and counted in the presence of the Selection Committee.

9.15.8 In the event the Selection Committee finds only one (1) suitable candidate, the Chair of the Selection Committee shall use all reasonable efforts to submit to all the full-time Members of the Department/School, including those on leave, a ballot showing this candidate's name. Time limits for this submission and the Member's responses shall be as set out in clause 9.15.7 above. The ballots shall be opened and counted in the presence of the Selection Committee.

9.15.9 The Chair of the Selection Committee shall report the results of the selection process and its recommendation to the Dean/University Librarian.

9.15.10 If the Dean/University Librarian is prepared to accept the Selection Committee's recommendation then the Dean/University Librarian will forward this recommendation together with her/his own to the Vice-President, Academic who will make the appointment.

9.15.11 Should the Dean/University Librarian not be prepared to accept the Selection Committee's recommendation, the Dean/University Librarian shall indicate her/his reservations to the Selection Committee and the Department/School. If the Dean/University Librarian and the Selection Committee are unable to agree on an appointment, the selection procedure shall be reinstituted as in clause 9.15.3 above.

9.15.12 The Chair/Director shall be a tenured or probationary Member of faculty. Any outside appointment shall be made in accordance with

Article 5.20 – Appointment and Renewal.

9.15.13 In exceptional circumstances the Vice-President, Academic and the Dean/University Librarian, after

Collective Agreement 2008-11 consultation with a Department/School, may appoint an acting Chair/Director for a period of up to four (4) months, consistent with Article 9.20 – Term of Office of Chairs/Directors and Article 9.30 –

Removal from Office of Chairs/Directors.

9.15.14 Abbreviated Selection Process

In many selection processes, it is apparent at step 4

(clause 9.15.4 above) that a strong consensus has emerged for the selection of one (1) candidate. In that event, the Selection Committee may proceed directly to step 8 (clause 9.15.8 above) of the procedure. If at least two (2) Members object to the abbreviated selection process, then the Committee shall follow the full procedure.

ARTICLE 9.20 – TERM OF OFFICE OF CHAIRS/DIRECTORS

9.20.1 The term of office for Chairs/Directors shall normally be for three (3) years, renewable by Department/School selection per Article 9.15 –

Selection of Chairs/Directors.

9.20.2 Should Chairs/Directors not be able to carry out their duties for four (4) months or less, the Chairs/Directors shall make provision for the take- over of their duties in consultation with the Department/School and Dean/University Librarian.

9.20.3 If the absence is for a period of longer than four (4) months, the Chairs/Directors shall relinquish her/his title and a new Chair/Director shall be selected according to the procedures set out in Article 9.15 –

Selection of Chairs/Directors.

ARTICLE 9.25 – TEACHING LOAD REDUCTIONS AND STIPENDS FOR CHAIRS/DIRECTORS

9.25.1 (a) The Chair/Director shall be entitled to a six

(6) credit teaching load reduction during each calendar year served as Chair/Director.

For Departments/Schools with twenty-five

(25) or more full-time Members and employees (as defined in clause 9.25.2 below), Chairs/Directors shall receive an additional three (3) credit course reduction.

Where the Dean has assigned a full teaching load with the agreement of the Member, an overload payment (or proportion thereof) will be made in lieu thereof. Where the

University Librarian has assigned a greater than normal workload with the agreement of the Member, an overload payment (or proportion thereof) will be made.

(b) The Chair/Director may voluntarily waive these entitlements, in full or in part.

9.25.2 The Chair/Director will be entitled to an annual stipend for each full year served. Portions of a year will be pro-rated. An acting Chair/Director shall receive a pro-rated stipend in lieu of the Chair/Director for each full month served in excess of the first month. The stipend shall be based on the number of full-time teaching/librarian Members in the Department/School and the number of other full-time equivalent employees (secretaries, technical staff, etc.) who report to the Chair/Director. For purposes of administration of this Article, the Chair/Director shall indicate to the Dean/University Librarian as of September 1 of each year the category under which she/he should be compensated. Changes occurring after

September 1 shall be reflected in the following year.

If the Dean/University Librarian agrees with the category under which a Chair/Director is to be compensated, the Dean/University Librarian will forward this information to the Vice-President, Academic. If the Dean/University Librarian does not agree with the category and the disagreement cannot be resolved, the Vice-President, Academic will rule on the matter. The ruling of the Vice-President, Academic shall not be grievable.

9.25.3 Full-time teaching/librarian Members and other full-time employees (compensation per year):

One to nine \$2,250

(1 – 9)

Ten to nineteen \$3,250

(10 – 19)

Twenty to twenty-nine \$4,250

(20 – 29)

Thirty and over \$5,250

(30 –)

9.25.4 In lieu of compensation, the Chair/Director may elect to receive the whole or part of the stipend in the form of an equivalent enhancement to the professional allowance. The Chair/Director will indicate her/his intentions in this matter by September 1 of each year.

9.25.5 In addition to the above compensation, the

Chair/Director shall be entitled to a credit of one (1) year toward her/his sabbatical for a completed three (3) year term.

ARTICLE 9.30 – REMOVAL FROM OFFICE OF
CHAIRS/DIRECTORS

9.30.1 Proceedings for the removal of the Chair/Director may be initiated by:

(a) A written complaint to the Dean/University

Librarian specifying the reasons for the complaint, signed by at least a majority of the full-time faculty of the Department/School, excluding those on leave and the Chair/Director herself/himself. The

Dean/University Librarian shall investigate the situation and offer her/his services to resolve the matter. If the attempt is unsuccessful, the

Dean/University Librarian will forward the written complaint together with her/his report to the Vice-President, Academic. or

(b) A written complaint by the Dean/University

Librarian to the Vice-President, Academic specifying the grounds for the complaint. The grounds for such complaints should normally be related to Articles 9.10 – Duties of

Chairs/Directors and Article 5.15 – Rights,

Responsibilities and Duties of Academics.

9.30.2 The Vice-President, Academic shall invite the

Chair/Director and the Department/School to discuss the complaint. Following an adequate investigation, the Vice-President, Academic may request the

Chair/Director to relinquish their office. If the

Chair/Director are not requested to relinquish their office the Department/School or the Dean/University Librarian may request initiation of procedures under paragraph 9.30.3 (c) below.

9.30.3 If the Chair/Director does not voluntarily resign as

Chair/Director:

(a) The Vice-President, Academic is empowered to suspend that individual as Chair/Director.

Once suspended, the Member retains all other rights and responsibilities as defined in this Collective Agreement.

(b) The Vice-President, Academic shall instruct the Dean/University Librarian to appoint an

Acting-Chair/Director in consultation with the

Department/School in accordance with Article

9.15 – Selection of Chairs/Directors and shall forward the complaint to the President in the form of an appeal.

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(c) The President shall create an ad hoc committee to investigate the complaint and shall conduct its investigation in accordance with statutory requirements. As a result of the committee's investigation, the President shall rule on the question of removal from office.

(d) The decision of the President shall be final, non-grievable and binding on all parties.

REDUNDANCY AND FINANCIAL EXIGENCY

ARTICLE 10.10 – REDUNDANCY

10.10.1 For the purposes of this Article, the declaration of a state of redundancy by the Employer shall mean that the number of Members employed in a particular Department/School(s) must be reduced. The

Employer agrees that no procedures other than those specified in this Article will be used to deal with redundancies as defined in clause 10.10.3 below. It is understood that the term redundancy does not apply to limited term appointments that carry no implication of renewal or continuation beyond the stated term in accordance with Article 5.20 – Appointment and Renewal.

10.10.2 The Employer shall declare a state of redundancy by sending a written notice to the Union and to the Vice-President, Academic that it has approved a resolution for one of the reasons outlined in clause

10.10.3 below. With this notice, the Employer shall submit a detailed report specifying the reasons why the redundancy is justified and the exact magnitude of the reduction believed to be necessary.

10.10.3 A declaration of redundancy by the Employer may be initiated in one of two (2) ways:

(a) Senate may resolve to terminate a Faculty,

Department/School or program for reasons other than Financial Exigency. For the purpose of this Article, a program is defined as a course of study previously approved by the Senate and leading to a degree or a diploma. Should the program involve more than one Faculty or Department/School, the plural should be understood in the following clauses. If the Employer resolves to approve

Senate's decision, then a program redundancy shall be declared.

(b) The Vice-President, Academic may make a submission to the Employer that a particular

Department(s)/School(s) has (have) a larger number of Members than necessary to fulfil its (their) program and service teaching requirements in the light of student demand.

Such a redundancy shall be known as a workload redundancy. The Employer agrees that it will not declare a workload redundancy if such an action will result in insufficient academic personnel for that

Department(s)/School(s) to continue to offer a

Collective Agreement 2008-11 viable program(s). The onus shall be on the Employer to show that the proposed reductions are consistent with normal workloads as defined in Article 5.40 – Academic Workload and that the proposed reductions will not create an inequitable workload for the Department(s)/School(s) affected by the redundancies.

10.10.4 Redundancies may be justified only for bona fide academic reasons and/or on the grounds of insufficient student demand. When insufficient student demand is used as a justification, such lack of demand must be demonstrable over a period of at least three (3) years and projections into the future must not indicate any appreciable increase in this student demand.

10.10.5 As a result of the Employer's declaration, a Redundancy Committee shall be formed. This Committee shall hold its first meeting within fifteen (15) days of receipt by the Union of the Employer's notice as specified in clause 10.10.2 hereof. Within ten (10) days of receipt of that notice, the Union shall forward to the Vice-President, Academic the names of three (3) Members who shall serve on the Redundancy Committee.

10.10.6 The Redundancy Committee shall include the following:

- (a) Three (3) Members chosen by the Union
- (b) Three (3) individuals named by the Employer
- (c) The Vice-President, Academic as non-voting Chair

10.10.7 Within sixty (60) days of its first meeting, the Redundancy Committee shall make its final report to the Employer (with a copy to the Union). The Employer shall make no new academic or administrative appointments nor shall the Employer order the reduction or redistribution of the actual number of full-time Members of the Bargaining Unit, until the Redundancy Committee has made its final report or until the time limit of sixty (60) days stated in this clause has expired, whichever comes first.

10.10.8 It shall be the responsibility of the Redundancy Committee in consultation with the Vice-President, Academic, the Dean/University Librarian and the Faculty/Library Personnel Committee to recommend who, among the Members of the Department(s)/School(s) under consideration, shall be affected by redundancy.

10.10.9 Keeping in mind that the continuing academic function assigned to the Department/School is of the highest priority, the Redundancy Committee shall consider the following steps in the following order:

- (a) Non-renewal of limited term appointments within the Department/School.
- (b) Non-renewal of two (2) year probationary contracts within the Department/School.
- (c) Non-renewal of contracts of Members within the Department/School on three (3) year probationary contracts.
- (d) Removal of a tenured Member from the Department/School.

10.10.10 If the Redundancy Committee decides that Members with tenure or on a three (3) year probationary contract will be affected by Redundancy pursuant to clause 10.10.9 hereof, it shall include, in its final recommendation to the Employer, a list of administrative and academic areas to which the Members could be transferred, with or without a year's retraining, considering their academic and professional qualifications.

10.10.11 If the Employer approves a resolution to act on the Redundancy Committee's recommendation that a Member be declared redundant, then the Employer shall send the Member a written notice of its resolution. This notice shall also contain an offer to the tenured Member of the following options:

- (a) Voluntary early retirement if the Member is age fifty-five (55) or more.
- (b) Transfer in whole or in part to another Department/School for which the Member is academically qualified or could become qualified with a year's retraining if the transfer can be effected by one (1) of the following means:
 - (i) Filling a vacancy
 - (ii) Non-renewal of a limited term contract
 - (iii) Non-renewal of a two (2) year probationary contract
 - (iv) Non-renewal of contract of Members on three (3) year probationary contract in the Department/School to which the

Collective Agreement 2008-11 tenured Member is to be transferred.

(c) Transfer to an appropriate administrative vacancy in the University.

(d) Termination of employment with severance pay.

(e) Any other alternative that may be implemented in the future with the mutual consent of the two Parties.

Any of the above options shall be implemented in accordance with the terms of this Article. All proposed transfers to another Department/School must have the approval of the Vice-President,

Academic. If the offer is to transfer one (1) component of the Member's workload (this component restricted to either teaching or research) to another academic area, such offer shall include a statement of the duties of that Member and a method of weighing the Member's evaluation for merit based on these special arrangements.

If the Employer cannot offer at least one (1) of paragraphs 10.10.11 (b) or (c) above, it shall offer to keep the Members in their present position until such time as it can offer them one (1) of paragraphs

10.10.11 (b) or (c) above unless clause 10.10.16 below applies.

10.10.12 Notwithstanding Article 5.20 – Appointment and

Renewal, Members with a two (2) year, initial probationary appointment can be refused the second probationary appointment for reasons of redundancy in accordance with clauses 10.10.9 or 10.10.11 above. In such instances, the Members shall receive notice by December 15 of the academic year in which their contract comes up for renewal. A written notice of non-renewal shall be sent to the Members in which redundancy shall be clearly stated as the reason for non-renewal.

10.10.13 Notwithstanding Article 5.20 – Appointment and

Renewal and Article 5.60 – Tenure Evaluation

Procedures, Members who are on a three (3) year probationary appointment can be refused a renewal of their appointment and/or tenure for reasons of redundancy in accordance with clauses 10.10.9 or

10.10.11 above. In such instances, the Members shall receive notice by December 15 of the academic year in which their contract comes up for renewal. A written notice shall be sent to the Members in which redundancy shall be clearly stated as the reason for non-renewal and/or refusal to grant tenure. They shall be given severance pay in accordance with

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Collective Agreement 2008-11 clause 10.10.18 hereof as well as recall rights in accordance with clause 10.10.18 below. 10.10.14 Tenured Members who accept a transfer to another academic area in whole or in part, shall retain their rank as well as all pre-existing employment rights. If such a transfer requires retraining, the Members shall be granted leave to a maximum of one (1) year at one hundred percent (100%) salary plus benefits.

Any tuition fees connected with the retraining shall be paid by the University.

10.10.15 Tenured Members who accept a transfer to an administrative position in accordance with paragraph

10.10.11 (c) hereof cease to be Members of the

Bargaining Unit on the date that the transfer becomes effective. Members transferred to an administrative position shall not be dismissed for a period of five (5) years for reasons other than just cause and shall retain for this period the full rights of

Members of this Union, to grieve dismissal for cause. Such Members shall not have their pay decreased as a result of the transfer but they shall receive only the basic percentage increase to salary scale and no increments until the normal salary level for their administrative position has reached their own. For a period of five (5) years from the date of their appointment to the administrative position, the

Members shall have first right of refusal of any academic vacancy within Laurentian for which they are judged by the Vice-President, Academic to be academically competent.

10.10.16 Where a redundancy results from the termination of a program as per paragraph 10.10.3 (a) above and when all transfer provisions have been exhausted, the Employer may lay-off a tenured Member provided that those Members who are at least forty-five (45) years of age, have tenure and in respect of whom the sum of years of seniority from the effective date of tenure plus age equals fifty-five (55) shall be exempt from lay-off.

Costs associated with any arbitration arising out of lay-off shall be distributed in accordance with Article

11.15 – Arbitration Procedure. The usual burden of proof shall apply.

10.10.17 Groups and/or individuals who are selected for redundancy may grieve their selection (under Article 11.10 – Grievance Procedure) on the grounds of bias or procedural error, as well as on the grounds that the criteria for selection have been applied in a

Collective Agreement 2008-11 manner which is discriminatory or is in bad faith.

This right to grieve includes the right to challenge the validity of the redundancy but not the right to challenge the Employer's authority to initiate

Redundancy procedures.

Tenured Members who wish to remain in the employ of the University and who have been offered transfer but do not wish to accept the offer must grieve this transfer within thirty (30) days of receipt of the offer.

If the Arbitration Board concludes that the Members' refusal is well founded, the Members retain their original positions. If the Arbitration Board concludes that the Members' refusal are not well founded or that another suitable transfer is available, then the

Members must accept the transfer within thirty (30) days of receiving a copy of the decision or else the Members' employment shall be terminated. The effective date of notice shall be the date that the arbitrator's report is received by the Members. The

Members shall retain recall and notice of termination rights but shall lose their rights to all severance payments and benefits.

10.10.18 All Members who are on tenured or three (3) year probationary appointments, and whose appointments are terminated pursuant to this Article shall have rights as set out hereafter:

(a) (i) Twelve (12) months' notice in writing or any equivalent combination of notice plus salary followed by

(ii) Six (6) months' salary plus one (1) month's salary for each year as a full-time employee provided that no Member on a three (3) year probationary appointment receives less than nine (9) months' salary and no tenured Member receives less than eighteen (18) months' salary.

All payments under this clause shall be based on the Members' total regular salary including the University's contribution to pension and other benefit plans for their final full academic year of service at the University. In no case shall the number of months' salary paid under this clause exceed the time remaining until the normal retirement age of the Member.

(b) First right of refusal of all academic vacancies within Laurentian University, for which they have academic competence as judged by the

Vice-President, Academic in consultation with the Department/School to which the individual

Collective Agreement 2008-11 is to be appointed for a period of three (3) years for a Member on a three (3) year probationary appointment and five (5) years for a tenured Member from the effective date of termination. Individuals who accept such positions shall return to the University at the rank they held when their appointments were terminated, with full recognition for years of service at Laurentian. Disputes arising out of these recall procedures are referable to the grievance and arbitration process set out in this Collective Agreement.

Individuals who are recalled pursuant to this

Article shall have up to thirty (30) days to accept such recall offer, and shall terminate their alternative employment and take up the offered post, as soon as they are contractually able to do so but in no instance later than six

(6) months after accepting the recall offer.

(c) Reasonable efforts by the Employer to assist a laid-off Member in obtaining suitable alternative employment including the use of professional assistance as well as access to

University resources.

(d) Reasonable access to library, laboratory and computer facilities subject to the agreement of the Dean/University Librarian concerned until suitable alternative employment is secured or for three (3) years in the case of a Member on a three (3) year probationary appointment or for five (5) years in the case of a tenured Member if suitable alternative employment has not been secured.

(e) Eligibility for themselves and their dependants for exemption from tuition and Physical

Education fees until suitable alternative employment is secured or for three (3) years in the case of a Member on a three (3) year probationary appointment or for five (5) years in the case of a tenured Member if suitable alternative employment has not been secured.

10.10.19 Nothing in this Article shall limit the total amount of severance benefits that a tenured Member might privately negotiate with the Employer.

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10.10.20 All grievances submitted under the terms of this

Article shall go directly to arbitration in accordance with Article 11.15 – Arbitration Procedure. Unless stated otherwise in this Article, within fifteen (15) days of receipt of the written notice containing the decision which the Members wish to grieve, the Members must give notice in writing to the Employer of their intention to submit that decision to Arbitration.

ARTICLE 10.15 – FINANCIAL EXIGENCY

10.15.1 The Board of Governors and the Union agree that the first duty of the University is to ensure that its academic priorities remain paramount, particularly with regard to the quality of instruction, library service and research, and the preservation of academic freedom.

10.15.2 For the purposes of this Article, Financial Exigency shall be defined as substantial and recurring deficits, which threaten the long-term solvency of the University as a whole.

10.15.3 Reductions in academic staff for reasons of financial exigency shall occur only in extraordinary circumstances, and only then after efforts to alleviate the financial crisis by economies in all other segments of the budget have been undertaken and after all reasonable means of improving the University's revenues have been exhausted.

10.15.4 Members may be laid off in accordance with this

Article only in the event that a state of financial exigency has been both declared and confirmed pursuant to the procedures contained in this Article.

10.15.5 In the event that the Employer considers that a financial exigency exists, within the meaning of clause 10.15.2 above, it may give notice of such a belief. As of the date of such notice the procedures specified in this Article shall apply, and no new appointments may be made to either the academic or administrative staff complement.

10.15.6 Within two (2) days of giving notice of its belief that a financial exigency exists, the Board of Governors shall forward to the Union all financial documentation relevant to the alleged state of financial exigency.

10.15.7 Within fifteen (15) days of the notice specified in clause 10.15.5 above, the Parties shall establish a Financial Commission which will consider the alleged financial exigency and either (a) confirm it (under whatever conditions it chooses to impose) or (b)

Collective Agreement 2008-11 reject it.

10.15.8 The Financial Commission shall be chosen as is an

Arbitration Board per Article 11.15 – Arbitration

Procedure. It is agreed that in this instance no

Member of the Financial Commission shall be a government official, and the Minister of Labour, if requested to appoint a Chair, shall choose a person who is not in the employ of a government. Decisions of the Financial Commission under this Article shall be final and binding on all Parties. In this regard the

Financial Commission shall be deemed to be an

Arbitration Board.

10.15.9 The onus of proof shall be on the Employer to establish to the satisfaction of the Financial Commission that a state of financial exigency exists within the meaning of this Article.

10.15.10 Within seven (7) days of the choice of a Chair, the

Financial Commission shall meet and invite and consider submissions on the University's financial condition. Inter alia it shall consider:

- (a) Whether the University's financial position (as evidenced from the total budget and not just the academic or salary components thereof) constitutes a bona fide budgetary crisis such that deficits projected by generally accepted accounting principles are expected to continue for more than two (2) fiscal years;
- (b) Whether in view of the primacy of academic goals at the University the reduction of academic staff is a reasonable type of cost saving;
- (c) Whether all reasonable means of achieving cost-saving in other areas of the University budget have been explored and exhausted;
- (d) Whether all reasonable means of improving the University's revenue position have been explored and exhausted;
- (e) Whether every effort has been made to secure further assistance from the provincial government;
- (f) Whether enrolment projections are consistent with a proposed reduction in the academic staff complement;
- (g) Whether all means of reducing the academic staff complement including voluntary early

Collective Agreement 2008-11 retirement, voluntary resignation, voluntary reduced workload, voluntary redeployment and leaves, etc. have been exhausted, and

(h) Whatever other matters it considers relevant.

10.15.11 The Financial Commission will normally be expected to hand down its Report and deliver a copy to the Employer and to the Union within sixty (60) days of its first meeting. If the Commission finds that a state of financial exigency does not exist, no reductions of academic staff for reasons of financial exigency may take place. If the Commission finds that a financial exigency does exist, its Report shall specify the amount of reduction required, if any, in the budgetary allocation to salary and benefits for Members of the

Bargaining Unit. Any reduction in the budgetary allocation for academic salaries and benefits may be made conditional upon the further exploration of alternative cost-saving measures by the University, and the Commission shall remain seized of its jurisdiction in this matter pending the satisfactory exhaustion of all such specified alternatives. Within five (5) days of receipt of the Report of the Financial

Commission, the Parties shall meet and confer with respect to its implications.

10.15.12 Pursuant to the ruling of the Financial Commission, the Board of Governors may reduce the budgetary allocation for salaries and benefits of Members of the

Bargaining Unit but such reduction shall not exceed the amount of the reduction specified by the

Commission. The decision of the Board of

Governors shall be taken and written notice thereof sent to the Financial Commission within two (2) weeks of receipt of the notice mentioned in clause

10.15.11 above.

10.15.13 Within twenty (20) days the Financial Commission shall apportion among the Faculties, Library and similar units, the reduction in the budgetary allocation for salaries and benefits of the Members of the

Bargaining Unit. Whenever possible, such reductions will be divided in a proportionate amount among the Faculties and Library within the University unless there is a clear and substantial reason for doing otherwise.

10.15.14 Within thirty (30) days, the Faculties/Library through their respective Faculty/Library Councils shall apportion the budgetary reduction among the

Departments/Schools within the Faculty/Library and determine which among its Members are to be laid off. Whenever possible such reductions will be divided among the units within a Faculty/Library in a

Collective Agreement 2008-11 proportionate amount unless there is a clear and substantial reason for doing otherwise.

10.15.15 The principal criteria in the termination/lay-off of

Members within a Department, School or similar unit shall be:

(a) The possession of qualifications suitable for the continuing function of the Faculty, School, Department or Library.

(b) Quality of performance in teaching and research or scholarly activity where applicable.

(c) The possession of qualifications suitable for transfer with or without retraining to another academic or administrative position within the University.

(d) Contributions to the wider community.

10.15.16 Within a Department/School, a tenured Member shall not be terminated in preference to a non-tenured Member. For tenured Members, the more senior

Member, in terms of service determined from the date at which tenure at the University became effective shall be retained unless, after applying the above criteria, there is a clear and substantial reason for doing otherwise.

10.15.17 Those Members who are at least forty (40) years of age, have tenure and in respect of whom the sum of years of seniority from the effective date of tenure plus age equals at least fifty-five (55) shall be exempt from lay-off until all other academic staff within the

Faculty/Library and not included in this category have been laid off.

10.15.18 Should the Faculty/Library Council fail to determine within thirty (30) days who among its Members is to be laid off, it shall be the responsibility of the

Deans/University Librarian to apportion the budgetary reduction within their Faculty/Library.

Should the Deans/University Librarian fail to make such a decision within seven (7) days, the Financial Commission shall make the apportionment of the budgetary reduction.

10.15.19 Members who are selected for lay-off under this

Article shall be provided with written notice of the

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Collective Agreement 2008-11 reasons for their selection. Lay-offs under this Article shall not be treated or recorded as dismissals for cause.

10.15.20 After the selection of the Members who are to be laid off, but prior to the implementation of such lay-offs, the Employer shall make every reasonable effort to secure positions elsewhere in the University, including administrative positions, for those Members who are to be laid-off. Members who accept alternative academic employment retain all pre-existing employment rights, including credit for sabbaticals, salaries and pensions. Members who accept alternative employment shall be given the opportunity to retrain for a period of up to one (1) year for their new duties. The Employer shall pay any related tuition fees and full salary to the Member during this retraining period.

10.15.21 Groups and/or individuals who are selected for lay-off by a Faculty/Library Council or Dean/University Librarian, may grieve their selection under Article

11.10 – Grievance Procedure and Article 11.15 –

Arbitration Procedure on the ground of bias or procedural error, as well as on the grounds that the criteria for lay-off have been applied in a manner that is discriminatory or is in bad faith. The right to grieve does not include the right to challenge the validity of the financial exigency.

10.15.22 All tenured and probationary Members whose appointments are terminated pursuant to this Article shall have rights as set out hereafter:

(a) (i) The University shall be obliged to offer twelve (12) months' notice or twelve (12) months' salary in lieu of notice followed by;

(ii) One (1) month's salary for each year as a full-time employee provided that no tenured Member shall receive less than twelve (12) month's salary.

All payments under this clause shall be based on the Members' total salary including the University's contribution to pension and other benefit plans for their final full academic year of service at the University. In no case shall the number of months' salary paid under this clause exceed the time remaining until the normal retirement age of the Member.

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(b) First right of refusal of all academic vacancies within Laurentian University, for which they have academic competence as judged by the

Vice-President, Academic in consultation with the Department/School to which the individual is to be appointed for a period of three (3) years from the effective date of termination.

Individuals who accept such positions shall return to the University at the rank they held when they were laid off, with full recognition for years of service at Laurentian. Disputes arising out of these recall procedures are referable to the Grievance and Arbitration process set out in this Collective Agreement.

Individuals who are recalled pursuant to this

Article shall have up to thirty (30) days to accept such recall offer, and shall terminate their alternative employment and take up the offered post, as soon as they are contractually able to do so but in no instance later than six

(6) months after accepting the recall offer.

(c) Reasonable efforts by the Employer to assist a laid-off Member in obtaining alternative employment including the use of professional assistance as well as access to University resources.

(d) Reasonable access to Library, laboratory and computer facilities subject to the agreement of the Dean/University Librarian concerned until suitable alternative employment is secured or for three (3) years whichever is less.

(e) Eligibility for themselves and their dependants for exemption from tuition and Physical Education fees until suitable alternative employment is secured or for three (3) years, whichever is less.

10.15.23 Notice of academic vacancies shall be deemed to be good and sufficient if they are sent by the Board of Governors to the Member's last known address with a copy to the Union. Any Member who fails to reply within thirty (30) days or who refuses a permanent position offered under this Article shall lose all rights of recall.

10.15.24 A Member accepting a permanent position at Laurentian University will no longer receive severance pay.

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10.15.25 Any vacancy that occurs and that cannot be filled through the recall procedures in this Article will be filled in accordance with the normal hiring practices.

10.15.26 Tenured Members, whose appointments are terminated while they are on leave as in Article 3.2, shall have the same rights as other tenured Members in accordance with the terms of this Article.

10.15.27 Laid off Members who are recalled shall repay any portion of the allowance specified in clause 10.15.22 above which exceeds their entitlement had they continued to occupy their normal position.

10.15.28 The cost of the Financial Commission established under this Article shall be borne by the Employer.

GRIEVANCE AND ARBITRATION

ARTICLE 11.10 – GRIEVANCE PROCEDURE

11.10.1 There shall be no discrimination, harassment or coercion, of any kind, practised against any persons involved in these procedures.

11.10.2 The Union and the Employer agree to make every reasonable effort to settle all grievances in a prompt, just and equitable manner.

11.10.3 Definitions

(a) Grievance: A "grievance" shall mean any difference arising from the interpretation, application, administration or alleged violation of the Collective Agreement, including any question as to whether a matter is arbitrable in accordance with the Labour Relations Act, 1995.

(b) Grievor: The grievor is either the Union which initiates a grievance against the Employer on behalf of a Member or group of Members or itself, or the Employer which initiates a grievance against the Union, an individual Member or a group of Members except as otherwise prohibited in this Collective Agreement.

(c) Individual Grievance: An individual grievance is a grievance initiated by the Union on behalf of an individual Member.

(d) Group Grievance: A group grievance is a grievance initiated by the Union on behalf of a group of Members.

(e) Policy Grievance: A policy grievance is a grievance by a Union which may involve a matter of general policy or of general application of the Collective Agreement.

(f) Union Grievance: A union grievance is a grievance which directly affects the Union.

(g) Employer Grievance: An employer grievance is a grievance initiated by the Employer.

(h) "Working days": Working days shall mean Monday through Friday, excluding

Recognised and other Holidays identified in

Article 7.10 – Recognized and Other Holidays including the customary December – January recess, as well as the months of July and

August.

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11.10.4 The time limits specified in this Article may be extended by mutual agreement by the Parties.

Moreover, an arbitrator shall have the power to waive time limits. The amended time limits must be specified in writing.

11.10.5 Notwithstanding clause 11.10.2 above, a grievor shall have recourse to the grievance procedures set out below if such grievor is convinced that no settlement can be reached by informal means, unless otherwise specified in this Collective Agreement.

11.10.6 All communications required under these procedures shall be in writing and shall be delivered by registered mail or with written proof of receipt.

11.10.7 No technical violation or irregularity occasioned by clerical, typographical or technical error in the written specification of the grievance shall prevent the substance of a grievance from being heard and judged on its merits.

11.10.8 All Parties to a grievance shall be bound by and shall promptly implement all decisions arrived at under the procedures described in this Article.

11.10.9 Applicability of Grievance Procedures

(a) The following decisions will not be subject to grievance:

(i) Non-renewal of term appointments as per Article 5.20 – Appointment and Renewal;

(ii) The award of a merit increment as per Article 8.25 – Merit Increments.

(b) The following decisions will be subject to grievance only in the case of allegations of either violations of academic freedom, significant procedural irregularities or discrimination:

(i) The non-renewal of a probationary appointment when the Vice-President, Academic confirms a negative recommendation of an FPC/FFPC/LPC;

(ii) The denial of a first application for promotion to a particular rank when the Vice-President, Academic confirms a negative recommendation of an FPC/FFPC/LPC (and the denial of a second application for promotion

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(iii) The denial of an early application for tenure when the Vice-President, Academic confirms a negative recommendation of an FPC/FFPC/LPC;

(iv) The decision of the Vice-President, Academic, regarding academic workload as per paragraph 5.40.6 (d) of Article 5.40 – Academic Workload.

(c) Grievances concerning Renewal as per

Article 5.20 – Appointment and Renewal, concerning tenure as per Article 5.60 –

Tenure Evaluation Procedures, and concerning promotion as per Article 5.65 –

Promotion Procedures, shall proceed directly to arbitration as set forth in Article 11.15 – Arbitration Procedure.

(d) Grievances concerning dismissal as per

Article 5.80 – Dismissal Procedures shall proceed directly to Step 2 – Formal Grievance Procedure as set forth in this Article.

11.10.10 Step 1 – Informal Grievance Procedure

The Union and the Employer agree to make reasonable efforts to settle grievances promptly by informal and amicable means. Thus, the grievor shall first attempt to get the matter under question resolved by informal means within thirty (30) working days of the date upon which the grievor had notice of the event or decision giving rise to the grievance.

This would normally involve contacting the

Dean/University Librarian concerned before bringing the matter to the Vice-President, Academic.

However, this does not preclude making the Vice-

President, Academic aware of such a grievance, nor does it preclude a grievance from being addressed to the Vice-President, Academic initially or early on in the process.

11.10.11 Step 2 – Formal Grievance Procedure

(a) The grievor shall present a notice of grievance in writing to the Vice-President,

Academic in the case of a Member, or to the

President of the Union in the case of the

Employer, within thirty (30) working days of the date upon which the grievor had notice of the event or decision giving rise to the grievance. The notice of grievance shall

Collective Agreement 2008-11 specify the matter(s) in dispute, the article(s) alleged to have been violated, and the remedy sought.

(b) In the event of a grievance concerning renewal, tenure or promotion as per paragraph 11.10.9 (c) above, the notice of grievance shall also include the name of the grievor's appointee to the Arbitration Panel.

(c) No later than fifteen (15) working days following the receipt of the grievance, the Employer representative shall meet with the

Union representative. The Parties shall make every reasonable attempt to resolve the grievance.

(d) If the grievance is resolved at this stage, such settlement shall be reduced to writing and countersigned by the Union representative and the Employer representative within fifteen

(15) working days of the meeting at which the settlement was reached.

(e) In the event that the Union representative and the Employer representative cannot resolve the grievance within fifteen (15) working days of the meeting(s) specified in paragraph

11.10.11 (c), the Employer representative shall forward in writing to the Union representative the reasons for denying the grievance.

ARTICLE 11.15 – ARBITRATION PROCEDURE

11.15.1 (a) Failing settlement and/or timely response under the foregoing grievance procedure, any grievance may then be submitted to arbitration as hereinafter provided under its own distinct arbitral procedure. If no written request for arbitration is received within thirty

(30) working days after the decision of the

Vice President, Academic or the Union

President under Step 2 – Formal Grievance

Procedure of the grievance procedure is given, the grievance shall be deemed to have been abandoned.

(b) When either Party requests that any matter be submitted to Arbitration as provided in this Article, it shall make such request in writing addressed to the other Party of this

Collective Agreement, and at the same time appoint a nominee. Within fifteen (15) working days thereafter, the other Party shall appoint its nominee, provided however, that if such Party fails to appoint its nominee as herein required, the Minister of Labour for

Collective Agreement 2008-11

Ontario shall have the power to make such appointment upon application thereto by the Party invoking the arbitration procedure. The two (2) nominees shall attempt to agree upon a chairperson of the Arbitration Board.

If they are unsuccessful in agreeing upon such a chairperson within a period of twenty (20) working days of the appointment of the second nominee, they shall request the Minister of Labour for Ontario to appoint a chairperson.

(c) The time limits specified in this Article may be extended by mutual agreement by the Parties. However, the thirty (30) working day time limit set out in paragraph 11.15.1

(a) above referring a grievance to arbitration shall not be waived and/or extended pursuant to the Labour Relations Act, 1995.

Moreover, an arbitrator shall be bound by this provision.

(d) Saturdays, Sundays, Recognised and other Holidays identified in Article 7.10 –

Recognized and Other Holidays including the customary December – January recess as well as the months of July and August are not to be counted in the time limits set out in this

Article.

11.15.2 No person may be appointed to the Arbitration

Board who has been involved in an attempt to negotiate or settle the grievance.

11.15.3 The Arbitration Board shall not be authorized to make any decisions inconsistent with the provisions of this Collective Agreement, nor to alter, modify, add to, or amend any part of this Collective Agreement.

11.15.4 No matter may be submitted to arbitration which has not been properly carried through all requisite steps of the Grievance Procedure hereinbefore set out unless otherwise agreed to in writing between the Parties.

11.15.5 The proceedings of the Arbitration Board will be expedited by the Parties hereto, and the decision of the majority and, where there is no majority, the decision of the chairperson will be final and binding upon the Parties hereto, and the Employee or Employees concerned.

11.15.6 Each of the Parties hereto will bear the expenses of the nominee appointed by it, and the Parties will share equally the fees and expenses, if any, of the chairperson of the Arbitration Board.

11.15.7 Wherever the term "Arbitration Board" is referred to in this Collective Agreement, the Parties hereto may mutually agree, in writing, to substitute a mutually agreeable arbitrator for the Arbitration Board at the time of reference to arbitration and the other provisions referring to Arbitration Board shall appropriately apply.

STRIKES AND LOCKOUTS

ARTICLE 12.10 – STRIKES AND LOCKOUTS

12.10.1 The University and the Union hereby agree that there shall not be, during the currency of this Collective Agreement, any lockout by the University or any strike by Members of the Union.

12.10.2 A Member shall not be dismissed per Article 5.80 –

Dismissal Procedures or disciplined per Article 5.75 –

Disciplinary Measures for refusing to cross a picket line on campus which has been established in full compliance with existing laws. The Employer may, however, dock such a Member's salary by one three hundred and sixty-fifth (1/365) for each day lost.

VALIDITY, DURATION AND CONTINUANCE OF THE

COLLECTIVE AGREEMENT

ARTICLE 13.10 – VALIDITY OF THE COLLECTIVE
AGREEMENT

13.10.1 In the event of any of the provisions of this Collective Agreement or any practices established hereby being contrary to the provisions of any applicable law hereinafter enacted, this Collective Agreement shall not be deemed to be abrogated, but shall be amended so as to conform with the regulations of any such law.

ARTICLE 13.15 – DURATION AND CONTINUANCE OF THE
COLLECTIVE AGREEMENT

13.15.1 This Collective Agreement shall come into effect upon ratification by the Parties and shall continue in effect to June 30, 2011 and shall continue from year to year thereafter unless either Party gives the other Party notice in writing, not more than one hundred and fifty (150) days but not less than one hundred and twenty (120) days prior to the thirtieth (30th) of June in 2011 or in any year following June 30, 2011, that it desires to amend or terminate this Collective Agreement.

13.15.2 If notice is given as provided in clause 13.15.1 above, the two Parties to this Collective Agreement shall meet within ten (10) days.

13.15.3 During any period of negotiations, this Collective Agreement shall remain in force. If a new Collective Agreement has not been ratified by both Parties by June 30 of the year in which notice has been given as provided for in clause 13.15.1 above, then all the provisions of this Collective Agreement shall continue in force (but these provisions shall not constitute a Collective Agreement) until either:

- (a) A new Collective Agreement has been ratified by both Parties. or
- (b) Following conciliation, a strike or lockout is declared in accordance with the Ontario Labour Relations Act, 1995.

13.15.4 At least ten (10) days before the termination of this Collective Agreement, a separate memorandum which shall continue in force thereafter, shall be signed by the Parties to the effect that in the event of a strike or lockout,

Collective Agreement 2008-11

(a) Members whose ongoing research requires access to University facilities in order to prevent irreparable damage to research facilities (such as loss of live and/or decomposable materials) shall be allowed access to the facilities usually associated with such research. Such access will be limited to maintaining the facilities and shall not be used to continue the research. Such Members shall give notice in writing of their access requirements to the President of the Union and to their Deans/University Librarian. Such notice will normally be given at least ten (10) days before the date of termination of the

Collective Agreement.

(b) The Union will assume the costs of maintaining Members' eligibility in the University's hospital, extended health and dental care plans.

BETWEEN:

Laurentian University Faculty Association "Applicant" v.

Laurentian University of Sudbury "Responding Party"

BEFORE:

Kevin Whitaker, Vice-Chair, and

Board Members J.A. Rundle and P.V. Grasso.

DECISION OF THE BOARD:

October 31, 1995

1. This is an application for combination of bargaining units pursuant to section 7(1) of the Labour Relations Act to which the responding party has consented.

2. The applicant seeks the combination of two bargaining units consisting of employees of the responding party all of whom are represented by the applicant trade union.

3. Having regard to the agreement of the parties dated

October 26, 1995, and the provisions of section 7(1) of the Act, the combination of the units requested is granted. The applicant's bargaining rights now pertain to the following combined bargaining unit:

All members of faculty, including professional librarians, employed by Laurentian University of

Sudbury in the Regional Municipality of Sudbury, save and except administrators at or above the rank of director,

academic staff, at or above the rank of dean, registrar, special assistant to the president, director of academic staff

relations, translators, director of the library, director of graduate studies and research, members of the board of governors,

and athletic coaches required as part of their duties to teach degree credit activity courses.

For the purposes of clarity the parties agree that:

Collective Agreement 2008-11

- 1) The bargaining unit does not include full-time faculty members employed by Laurentian University for a period of not more than one year while on leave from another university, persons employed through the centre for continuing education to conduct instruction at off-campus centres located outside the Regional Municipality of Sudbury or through distance education delivery modes, persons employed to teach courses intended primarily for students who are not registered in a degree credit programme, persons assigned responsibility for teaching portions of courses coordinated by regular faculty members, such as teaching assistants, field consultants in social work, clinical teachers in nursing, laboratory technicians, clinical instructors, or outdoor school instructors.
 - 2) The designation "members of the faculty including librarians" is deemed to include those aforementioned employees of Laurentian University who from time to time may be required to teach outside the City of Sudbury, unless otherwise excluded.
 4. The effective date of this combination of the said bargaining units should be the earlier of (1) the date upon which the parties become bound by a collective agreement covering the current part-time bargaining unit, or (2) the date upon which notice to bargain is given by either party with respect to the renewal of the current collective agreement between the parties covering the full-time bargaining unit.
 5. The expiry date of any first collective agreement covering the current part-time bargaining unit shall be the expiry date of the current collective agreement between the parties in respect of the current full-time bargaining unit, notwithstanding section 41(8) of the Labour Relations Act, unless the parties agree otherwise in writing.
- "KEVIN WHITAKER" for the Board
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[1979 OLRB Designation of the Bargaining Unit (for reference only)]

OLRB CERTIFICATE AND DECISION

THE LABOUR RELATIONS ACT

BEFORE THE ONTARIO LABOUR RELATIONS BOARD

BETWEEN:

Laurentian University Faculty Association "Applicant", -and-

Laurentian University of Sudbury "Respondent".

CERTIFICATE

Upon the application of the applicant and in accordance with the provisions of The Labour

Relations Act, THIS BOARD DOTH CERTIFY

Laurentian University Faculty Association as the bargaining agent of all full-time members of faculty including full-time professional librarians employed by

Laurentian University of Sudbury, Ontario, to whom at least fifty per cent of the salary at the University is paid by the University, save and except President,

Vice-President, Academic, Special Assistant to the

President, Deans, Director of the School of Graduate

Studies, Directeur du Conseil de l'enseignement en français, Director of the Library, part-time members of faculty,

technicians, faculty members employed by

Laurentian University for a period of not more than one year while on leave from another university or other employer and members of the Board of

Governors.

This certificate is to be read subject to the terms of the Board's decision(s) in this matter and, accordingly, by the bargaining unit described herein is to be read subject to any qualifications referred to in the said decision(s) of the Board.

DATED at Toronto this 9th day of July, 1979.

ONTARIO LABOUR RELATIONS BOARD

"D.K. AYNLEY"

Registrar

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BETWEEN:

Laurentian University Faculty Association

(Applicant), -and-

Laurentian University of Sudbury (Respondent), -and-

Group of Employees (Objectors).

BEFORE:

Arthur Haladner, Vice-Chair and

Board Members J.D. Bell and W.F. Rutherford.

APPEARANCE:

C.M. Mitchell, T. Bartley and R. Kari for the applicant;

K.R. Valin for the respondent;

Jean Eugene Havel for the objectors.

DECISION OF THE BOARD:

1. On November 27, 1978 the applicant, Laurentian

University Faculty Association, applied for certification for a unit of employees of Laurentian

University. This hearing was called for the purpose of considering an objection to the conduct of the representation vote taken on April 4, 1979 and for the purpose of hearing representations from the parties on the issue of whether certain persons classified as

"director" should be included or excluded from the bargaining unit.

2. At the hearing the Board indicated that while it regretted the fact that the ballot in this matter had not been printed in both French and English, it was not, in the circumstances, prepared to direct a new vote having regard to the delay and prejudice both to the applicant and to the future course of representation proceedings that such a direction would create. In so ruling, the Board pointed out that the desire for a

French and English ballot had not been communicated until after the vote had been conducted and the results known.

This, despite there having been, prior to the vote, ample opportunity to express that desire. The Board also expressed its opinion that the absence of a French and English ballot did not affect the outcome of the representation vote. In that vote the employees voted 107 to 81 in favour of the applicant.

3. Dealing now with the issue of Director status - the report of the Labour Relations Officer indicates that for the most part recommendations for hiring are made by the school's academic council or by the faculty as a group, and submitted to authorities superior to the director where the decision is made.

Apart from Dean Hilldrup, who made one decision and one effective recommendation - after conducting interviews in South Africa when the senate appointments and promotions committee was not available - the involvement of directors in the hiring process is minimal.

4. Directors' role in evaluation of faculty members is primarily one of co-ordination, i.e., calling for recommendations from other faculty members, the school council or the appointments and promotions committee, and submitting them to higher authorities.

5. Directors submit recommendations on promotions and tenure; however, there was no evidence that their recommendations, if contrary, outweigh those of the faculty as a group. Moreover, these recommendations are for the most part made with the participation of faculty members.

6. Directors' recommendations on salary are limited to whether an increase should be granted. They have no discretion to recommend specific amounts.

7. Directors' role in discipline of faculty members is minimal, being limited to the occasional reprimand - in one of the two examples given after consultation with faculty and the Dean/Director of the Library.

Directors have no authority to discharge or suspend.

8. One director made a sabbatical recommendation which, as far as she knew, was accepted. However, the others had no independent involvement with the process, although one thought he could make a negative recommendation.

9. Directors' role in budget formulation is primarily consultative; in preparing budget recommendations, they consult with the school budget committee or their colleagues, and decisions are made at the Senate level. Directors have no authority to re-allocate funds having to do with salaries.

10. Directors assign work to the secretaries on the support staff and evaluate their performance.

However, the time spent in the performance of these

Collective Agreement 2008-11 functions is minimal, and other faculty members are involved.

11. In Carleton University, (1975) OLRB Rep. June 500, the Board pointed out that there are significant differences between the university model, where decision-making is shared by a peer group, and the industrial model of hierarchic authority, where ultimate power resides above - typically, with the plant manager - and filters down through a management chain to the primary level of supervision - the unit supervisor, or foreman. It stated:

While the Board of Governors is, in a general overall sense, responsible for the business operations of the institution, and the senate for its academic policies, the power of detailed decision-making is diffuse and extends into the institution's basic organizational unit, the department.

Moreover, management-type-decisions are made not only by the Board of Governors, the senate, the president, the senior administrative staff, the deans, but by faculty members as well and in more recent times, students, as members of various committees or boards...Important determinations of general application are made at the higher levels and in this sense, a parallel with the industrial model remains. What is novel is that many important decisions, narrower in scope and having to do with the academic and personnel matters applicable to limited groupings, do originate at the department level, subject only to endorsement at the higher levels.

12. In determining that department chairmen were employees for purposes of the Act and included in the bargaining unit, the Board in Carleton concluded:

In those areas of greatest importance, hiring, tenure, promotion, dismissal - the dominant role is played by the department collectively ... in the more routine areas, while some potential for the exercise of independent discretion exists, it is for the most part narrowly circumscribed. Moreover, in a substantive sense, the decisions in

Collective Agreement 2008-11 these areas are of limited importance

... In our view, the infrequent exercise of authority over the office staff poses no danger of conflict of interest within the unit. It is important to emphasize that the overwhelming proportion of the chairperson's duties have nothing whatever to do with the supervision or control of the department's small clerical staff...

See also University of Windsor, (1977) OLRB

REP. May, 300, where the Board, following Carleton, determined that department heads did not exercise managerial functions for purposes of section 1(3) (b) of the Act and were, therefore, appropriate members of the academic bargaining unit.

13. The Board is of the opinion that the Directors, whose status is in dispute, play a similar role in the decision-making process at Laurentian to that performed by department chairmen in Carleton and department heads in Windsor. While there are some differences in certain isolated areas, the Board is satisfied that their duties and responsibilities are not in any fundamental respect different. The evidence is that they play a part in a process of shared decision-making and do not, in the areas of greatest importance, i.e., hiring, tenure, promotion, and dismissal, play a dominant role which would entail the risk of a conflict of interest. Our conclusion, after considering the evidence, is that the Directors of the School of Engineering, Translators and Interpreters,

Nursing, Social Work, Education and Physical

Education do not exercise managerial functions within the meaning of section 1(3) (b) of The Labour Relations Act and, accordingly, that they are included in the bargaining unit. The Director of the School of Graduate Studies and Director, Conseil de l'enseignement en français are excluded from the bargaining unit by agreement of the parties.

14. Having regard to the foregoing, the Board finds that

All full-time members of faculty including full-time professional librarians employed by Laurentian University of Sudbury at Sudbury,

Ontario, to whom at least fifty per cent of the salary at the University is paid by the University, save and except President, Vice-President, Academic,

Deans, Director of the School of

Graduate Studies, Directeur du

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Conseil de l'enseignement en français,

Director of the Library, part-time members of faculty, technicians, faculty members employed by

Laurentian University for a period of not more than one year while on leave from another university or other employer and members of the Board of Governors constitute a unit of employees of the respondent appropriate for collective bargaining.

CLARITY NOTES

(1) The designation "all full-time faculty including full-time professional librarians employed by

Laurentian University of Sudbury at Sudbury" is deemed to include those aforementioned employees on the payroll of Laurentian

University who from time to time may be requested to teach at various locations outside the City of Sudbury.

(2) "All full-time faculty (professional librarians) shall mean such persons holding an academic rank at present described as instructor, lecturer, assistant professor, associate professor or full professor (general librarian, assistant librarian, associate librarian or full librarian) and whose duties and responsibilities are fifty per cent or more of the full status employees in the same classification in the same unit.

15. A certificate will issue to the applicant.

"ARTHUR HALADNER"

For the Board

9th July, 1979

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BETWEEN:

Laurentian University Faculty Association, "Applicant" and

Laurentian University of Sudbury, "Responding

Party"

CERTIFICATE:

Upon the application of the applicant and in accordance with the provisions of The Labour

Relations Act, THIS BOARD DOETH CERTIFY

Laurentian University Faculty Association as the bargaining agent of all the faculty including part-time professional librarians employed by Laurentian

University of Sudbury in the City of Sudbury, save and except administrators at or above the rank of

Director, Academic Staff, at or above the rank of

Dean, Registrar, Special Assistant to the President,

Manager of Employment and Staff Relations,

Translators, Director of the Library, Members of the

Board of Governors and athletic coaches required as part of their duties to teach degree credit activity courses.

This certificate is to be read subject to the terms of the Board's decision(s) in this matter and, accordingly, the bargaining unit described herein is to be read subject to any qualifications referred to in the said decision(s) of the Board.

DATED AT Toronto, Ontario, this 28th day of March,

1994.

ONTARIO LABOUR RELATIONS BOARD

T.A. INNIS

Registrar

The above description of the bargaining unit is subject to the following qualifications:

CLARITY NOTE:

For the purposes of clarity, the parties agree that the bargaining unit does not include full-time faculty on reduced assignments, persons employed through the

Centre for Continuing Education, persons employed to teach courses primarily for students who are not registered in a degree credit programme, persons not assigned responsibility for teaching one or more degree credit courses such as Teaching Assistants,

Field Consultants in Social Work, Clinical Teachers in

Nursing, technicians, laboratory, clinical or outdoor school instructors in courses coordinated by faculty members.

[Prefacing notes in the Memorandum of Agreement adding clauses to the 1992-95 Collective Agreement concerning employment of Sessional (part-time) faculty (for reference only)]

MEMORANDUM OF AGREEMENT

BETWEEN:

The Laurentian University Faculty Association and
The Board of Governors of Laurentian University of
Sudbury

RE: Terms and Conditions of Employment of the
Sessional (part-time) Bargaining Unit.

Whereas a decision of the Ontario Labour Relations
Board dated 31 October 1995 (a copy of which is attached as an appendix) and the ratification of this
Memorandum of Agreement give effect to a Merger of the previous Full-time Faculty Bargaining Unit and the previous
Sessional Faculty Bargaining Unit, the
1992-1995 Collective Agreement between the above
Parties, subject to the following variations, shall be read as a single Collective Agreement between the
Parties, covering all Members of the new Merged
Bargaining Unit of Full-time and Sessional Members.

This Memorandum of Agreement shall be in force for the period from 1 July 1994 to 31 March 1996, the latter date being
the date to which LUFA 1992-1995 has been extended, pursuant to a notice given under section 35 of the Social Contract
Act (Bill 48).

Sessional Members of the Bargaining Unit shall be covered by the same Collective Agreement articles as Full-time
Members under Sections 0 (The

Agreement), 1 (Relations Between the Union and the
Board), and 8 (Duration of the Agreement) of the

LUFA 1992-95 Collective Agreement, unless otherwise indicated. Sessional Members of the
Bargaining Unit shall also be covered by Articles 2.00

(Rights, Responsibilities and Duties of Academics -
A1 Teaching and A2 Professional Librarianship, only)

2.30 (Personnel Files), 2.40 (Disciplinary Measures),

3.0 (Recognized and Other Holidays), 3.33 (Court

Leaves), and 3.52 (Compassionate Leave).

Additional Articles relevant to Sessional Members only bear number designations not used in LUFA
1992-95.

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All other provisions, those covered by sections 2, 3,

4, 5, 6, and 7, of the LUFA 1992-95 Collective

Agreement shall apply to Sessional Members only when specifically indicated in this Memorandum of Agreement.

(The clauses of the Memorandum of Agreement appear at the appropriate places in the 1996-97 Collective Agreement)

DATED AT Sudbury, Ontario, this 17th day of November, 1995.

For Laurentian University Faculty Association

"R.D. Schell", M.A., D.Phil.

LUFA Chief Steward

"Wendy Jerome", Ph.D.

LUFA President

"Gary MacCoubrey", M.A.

"Leda Culliford", M.A.

For the Board of Governors of Laurentian University of Sudbury

"Hermann Falter", Ph.D.

Director, Academic Staff Relations

"Ron Chrysler", C.A.

Vice-President, Administration

"Geoff Tesson", Ph.D.

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APPENDIX B

LETTER OF UNDERSTANDING

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: Faculty Members employed by Laurentian

University on Campuses Outside of Sudbury.

WHEREAS the University is now engaged in providing jointly-run programs with Georgian
College of Applied Arts and Technology, on multiple campuses;

AND WHEREAS such initiatives are likely to occur with greater frequency;

AND WHEREAS the expansion of the University's programs contributes to the health of the University, and provides
greater opportunities for faculty members;

THEREFORE THE PARTIES AGREE AS

FOLLOWS:

1. All Faculty Members employed by Laurentian

University to teach courses for degree credit shall be included in the Bargaining Unit represented by the Union, if they
would be included in the

Bargaining Unit were they teaching in Sudbury.

Persons affected by this will have departmental status in the academic unit at Laurentian to which their appointment
elsewhere belongs, and that academic unit will be involved in the appropriate tenure and promotion processes according
to the

Collective Agreement. However, the terms of the agreement will be interpreted as site specific, such that, for example,
exigency and seniority clauses will apply to the campus on which the program is being offered.

2. Article 1.30 of the Collective Agreement is hereby amended to read as follows:

"The Board recognizes the Association as the exclusive Bargaining Agent for the Bargaining

Unit(s) defined in the OLRB certificates of July 9,

1979, March 28, 1994, and October 31, 1995

(which are attached as appendices to this

Memorandum of Agreement) and any amendments

Collective Agreement 2008-11 to these certificates, and as defined in the Memorandum of Agreement between the Parties respecting Faculty Members employed by Laurentian University on Campuses Outside of Sudbury.

3. In the event of a closure of an academic unit or program the tenure-stream Members affected by the decision on campuses outside Sudbury shall have the right either of transfer to the same Unit or program at the Sudbury campus with the same rights and privileges as they held at the outside campus or, in the event there are no such positions, of severance equivalent to that provided for in Articles 7.1 or 7.2 as applicable.

DATED AT Sudbury, Ontario, this 19th day of September 2005.

"ANIS FARAH"

Dr. Anis Farah for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

[NOTE: Articles 1.30, 7.1 and 7.2 in the above appendix have been changed to Articles 2.15, 10.10 and 10.15 respectively in the 2008-11 Collective Agreement.]

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APPENDIX C

LAURENTIAN UNIVERSITY FACULTY

SPECIAL VOLUNTARY EARLY RETIREMENT PLAN

1. Laurentian University plans to re-introduce a Special Voluntary Early Retirement Plan for full-time faculty

Members, hereafter called the Member, effective from July 1, 2008. The purpose of this program is to facilitate renewal of faculty. Faculty renewal is expected to have a positive impact on the organization through the revitalization of academic departments and by helping to reduce hiring problems anticipated in the future.

2. The Special Voluntary Early Retirement Plan will provide an early retirement incentive to help make early retirements possible. These programs are separate from the Pension Plan, and are to be funded through savings in the operating budget owing to replacement at lower salary levels.

3. The opportunity for this plan is provided by the fact that this program, to a large degree, would be self-financing and that there will be no or minimum increase in cost to the University.

4. To be eligible for Special Voluntary Early Retirement, the Member must:

(a) be five (5) years or less from the attainment of her/his Normal Retirement Date, and

(b) have completed at least fifteen (15) years of full-time service at Laurentian University as of the proposed date of commencement of

Special Voluntary Early Retirement.

5. On any July 1 (January 1), a Member who is eligible under the requirements described in the previous clause may choose to take Special Voluntary Early

Retirement. In such a case the Member shall apply in writing to the Dean/University Librarian of her/his Faculty/Library by no later than the previous October

1 (April 1).

6. A Member who does not fully meet the eligibility criteria may apply through the Dean/University Librarian of her/his Faculty/Library for individual consideration. Each application will be assessed on its merits. If the proposed early retirement is judged

Collective Agreement 2008-11 to be of benefit to both the Member and the University, the early retirement incentive as set out in this plan will be made available. The University will consider applications from individuals who are up to ten (10) years from attainment of their normal retirement date

7. The granting of a Member's application may, but will not normally be delayed by decision of the University. Such a delay may occur once only and will be for a period of six (6) months to one (1) year.

8. A Member shall be notified by the Vice-President, Academic by December 1 (June 1) in the year that the Member has applied for Special Voluntary Early Retirement if the application has been granted for Special Voluntary Early Retirement to commence the following July 1 (January 1) or is to be delayed for six (6) months or one (1) year. The Member must confirm her/his decision to take Special Voluntary Early Retirement by February 1 (August 1) immediately preceding the July 1 (January 1) when the Special Voluntary Early Retirement period would commence. The Member's confirmation will render the decision final.

9. A Member eligible for Special Voluntary Early Retirement may request, before October 1 (April 1), a statement of the early retirement incentive and benefit costs for the following year. All Members applying for Special Voluntary Early Retirement will automatically receive such a statement. The Member will receive the statement no later than November 1 (May 1). A Member eligible for early retirement shall be entitled to receive a one-time reimbursement of up to four hundred dollars (\$400) for the services of a financial consultant (receipts required).

10. A decision to opt for Special Voluntary Early Retirement is final, and the Member may not return to full-time or part-time employment at Laurentian University unless requested and agreed to by the University.

11. The Special Voluntary Early Retirement Period for the individual Member will be in effect from the commencement date of Special Voluntary Early Retirement and will continue until the earlier of the Member's normal retirement date or death or to a maximum of three (3) years.

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12. During the initial year of Special Voluntary Early

Retirement, the Member shall receive an early retirement incentive of one and three quarter percent (1.75%) of salary (last year of her/his full-time employment) times years or fractions thereof of full- time service at early retirement to a maximum of fifty percent (50%) of the aforementioned salary. (Leave of absence without pay is not included in the calculation of a Member's years of service. Years of service under Article 7.35 – Voluntary Reduced Workload will be prorated according to the percent workload reduction). The Vice-President, Academic may, after discussion with the Member concerned, increase the incentive percentage to address particular concerns, without exceeding the fifty percent (50%) maximum. Any increase in the incentive percentage over the formula amount must be communicated with explanation to the Union.

13. During the subsequent years of Special Voluntary

Early Retirement, the Member shall receive an early retirement incentive increased each year by the percentage increase of the faculty scale.

14. While on Special Voluntary Early Retirement, the

Member may wish to continue to participate in the Laurentian University Retirement Plan. In such case the University's share of contributions will be deducted from the early retirement incentive. The contributions will be based on the salary of the last year of her/his full-time employment escalated annually by the percentage increase of the faculty salary scale. Furthermore, the Member will be eligible for the minimum guaranteed pension based upon the aforementioned escalated salary and years of Special Voluntary Early Retirement of paid pension contributions. In this case the Member will be considered to be on leave with pay and will be required to pay Canada Pension Plan (CPP) and

Employment Insurance (EI) contributions and will not be eligible to the roll-over provisions described in the next clause. The aforementioned is subject to the current Revenue Canada Regulations.

15. If the Member chooses not to continue contributing to the Laurentian University Retirement Plan, then she/he could be treated as though she/he had terminated her/his employment with Laurentian. In that case, the incentive payments could be treated as a retiring allowance so they would be eligible for roll- over to an RRSP up to the legal limit. The allowable roll-over amount may be spread over the years of the

Special Voluntary Early Retirement and the remaining incentive amount would be considered

Collective Agreement 2008-11 income for the sake of calculating the annual RRSP contribution limit. In this case there would be no deductions for CPP and EI and the Employer's cost would be added to the early retirement incentive. The Member could collect her/his pension in addition to the incentive if she/he so desired. If the Member is at least sixty (60) years of age, she/he may be eligible for full or partial CPP benefits, provided she/he has contributed to the plan. For more information, or to get application forms, call the

Income Security Programs Office, which is listed under Human Resources and Labour Canada of the Government of Canada. The aforementioned is subject to the current Revenue Canada Regulations.

16. During the Voluntary Early Retirement period, the benefits will apply as follows:

(a) Members considered to be on leave with pay will retain participation in the Group Life

Insurance, Dependant Group Life, Accidental

Death and Dismemberment, Hospital Care,

Extended Medical (including ManuAssist), the dental plan and the Retirees Health Benefit

Plan. The Long-Term Disability plan cannot be continued. Members may also be exempt from the hospital care and extended medical coverage if they have similar coverage through the group plan of a spouse.

(b) Members no longer considered employees may choose to retain participation in Group

Life Insurance, Dependant Group Life,

Accidental Death and Dismemberment,

Hospital Care, Extended Medical (including

ManuAssist) and the Dental Plan. The Long-

Term Disability plan cannot be continued.

Continued participation in these plans will entitle the Member to receive a subsidy under the Retirees Health Benefit Plan at normal retirement age.

The cost sharing of the premiums for these benefits will be split according to the cost sharing arrangement in this Collective Agreement. The life

Collective Agreement 2008-11 insurance coverage will be based on three (3) times the early retirement incentive up to the maximum of the benefit plan. If improvements in benefits are provided in subsequent Collective Agreements these improvements shall be extended to the retirees on Special Voluntary Early Retirement. Members who go on Special Voluntary Early Retirement will not be eligible for sick leave. The Employer's cost of those benefit plans in which the Member does not retain participation will be added to the early retirement incentive. The Employer's cost will be based on the premium charged by the carrier and will not include the Provincial Sales Tax.

17. Should the Member die during the Special Voluntary

Early Retirement Period, the payment will cease at the end of the month the death occurred. Benefits and Pension contributions will also terminate as of the end of the month of the Member's death.

18. A Member taking Special Voluntary Early Retirement would enjoy all retiree privileges as well as tuition fee waiver.

19. Admission to the Special Voluntary Early Retirement

Plan will be available under this plan for a four (4) year period i.e. from July 1, 2008 to June 30, 2012. If the Laurentian University Retirement Plan is amended to provide for additional early retirement provisions to Laurentian University faculty Employees, the Special Voluntary Retirement Plan will be reviewed at that time.

20. The provisions of this Special Voluntary Early

Retirement Plan shall apply as of the date of approval by the Employer. These provisions may be amended and/or extended for a further period with the agreement of both the Employer and the Union.

Such decision will be made prior to June 30, 2011.

Early-retired Members at the time of amendment or termination of these provisions will not be disadvantaged by such amendment or termination.

21. The Parties agree that any early retirement or severance procedures that are not provided for in this Collective Agreement will be subject to prior approval by the Parties before they are offered to the faculty. The Parties further agree that individual early retirement or severance agreements that are not provided in this Collective Agreement shall be subject to the Union's approval by way of Memorandum of Agreement.

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DATED AT Sudbury, Ontario, this 22nd day of
September, 2008.

“DAVID LEADBEATER”

Dr. David Leadbeater for Laurentian University Faculty Association

“HARLEY D'ENTREMONT”

Dr. Harley d'Entremont for Laurentian University of Sudbury

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APPENDIX D

AGREEMENT BETWEEN

THE BOARD OF GOVERNORS OF LAURENTIAN

UNIVERSITY

AND

LAURENTIAN UNIVERSITY FACULTY ASSOCIATION

PHASED RETIREMENT

1. A program for phased retirement over three (3) years was instituted on July 1, 2006 and continues to be in effect. Members will give notice of their intention to participate in the phased retirement program one (1) year in advance of their proposed commencement date for phased retirement (which shall be a July 1) to facilitate planning within Departments/Schools. Such notice of intent will be irrevocable. Phased retirement will be available to full-time Members (full-time is defined as those with greater than seventy-five percent (75%) appointment), who will first become eligible for phased retirement three (3) years before they are eligible for an unreduced pension (i.e. at age fifty- nine (59)) and will remain eligible until age sixty- three (63). A Member in the phased retirement program (the participant) will be expected to continue the full range of her/his normal pre- program duties as agreed with the Chair and proportionate to her/his percentage appointment over the three (3) year period. Unless the applicant and the Dean/University Librarian agree otherwise, the cumulative appointment over the three (3) year phased retirement period will be at least one hundred and fifty percent (150%) but not more than one hundred and seventy-five percent (175%) of a full-time appointment and will be subject to a minimum percentage appointment in any one year equal to twenty-five percent (25%) of full-time appointment. For phased retirement, the cumulative appointment over the two (2) year phased retirement period will be at least one hundred percent (100%) but not more than one hundred and twenty-five percent (125%) of a full- time appointment and will be subject to a minimum percentage appointment in any one year equal to twenty-five percent (25%) of full-time appointment.
 2. The participant's salary during the three (3) year phased retirement period will be prorated on the basis of the part-time appointment of the participant in each year.
 3. The participant will earn pension benefits based on a full-time appointment and assuming a salary in each year of phased retirement program equal to
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Collective Agreement 2008-11 participant's one hundred percent (100%) nominal salary. The participant's contributions to the pension plan will be based on her/his nominal salary in each year of the phased retirement.

4. Group benefit coverage will continue as though the participant continued to be employed on a full-time appointment throughout the phased retirement program, except as set out in this clause with respect to life insurance, physical and mental leave and Long-Term Disability.

Life insurance coverage (prior to Normal Retirement

Date) shall be based upon the participant's pre- program salary.

The participant shall be covered by the policy on

Physical and Mental Illness leave, and shall be compensated on the basis of her/his actual salary received during the period of phased retirement.

Long-Term Disability benefits will be payable only up to the participant's irrevocable retirement date, or if earlier, the Normal Retirement Date, with such benefits being calculated according to the actual salary during the phased retirement, subject to plan requirements. A participant who is eligible and qualifies for Long-Term Disability benefits during the phased retirement program may opt out of the phased retirement program and retire instead of receiving Long-Term Disability benefits.

5. The participant will also be eligible to receive a

Retiring Allowance equal to seventy-five percent

(75%) of the one hundred percent (100%) nominal salary in effect immediately prior to the commencement of phased retirement, less deductions required by law (the "Retiring

Allowance"). For a two (2) year phased retirement, the Retiring Allowance shall be fifty percent (50%).

The Retiring Allowance will be payable in three (3) equal annual instalments over the phased three (3) year retirement period and two (2) equal annual instalments over the phased two (2) year retirement period, subject to confirmation by the Canada

Revenue Agency satisfactory to the Employer that such payments will qualify for retiring allowance treatment. Should an arrangement in this form not be accepted by Canada Revenue Agency as a

Retiring Allowance, the Employer agrees to work with the Union to make such amendments as are required to satisfy the Canada Revenue Agency.

Otherwise, the Retiring Allowance will be paid in the form of a single lump sum payment at the end of the phased retirement. In the event that a participant dies prior to receiving her/his full entitlement under this section, the balance of the

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Retiring Allowance shall be paid to the participant's estate.

A participant who has opted out of the phased retirement program under clause 4 above shall receive a prorated share of her/his Retiring Allowance.

6. Participants in the phased retirement program will be entitled to full professional development expenditure reimbursement and will be entitled to participate in all programs that are available to Members.

DATED AT Sudbury, Ontario, this 21th day of September 2008.

"DAVID LEADBEATER"

Dr. David Leadbeater for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

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APPENDIX E

LETTER OF UNDERSTANDING

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: JOINT COMMITTEE ON THE PENSION PLAN

THE PARTIES AGREE TO establish a joint committee of four (4) members, two (2) appointed by the Union and two (2) appointed by the

Employer, for the purposes of:

1. Discussing and better understanding the pension plan.
2. Determining if there are opportunities for improving the pension plan, specifically focusing on the following issues:
 - (a) Number of years used for calculating "Best Average Earnings"
 - (b) Indexed inflation protection
 - (c) Contribution levels
 - (d) Pension formula
3. Recommending to the Parties a plan for improving the pension plan.
4. If the Parties agree that there is a need for extraordinary actuarial services, such costs shall be shared equally by the Parties.

The Committee shall meet by January 31, 2009 and report by January 31, 2010.

DATED AT Sudbury, Ontario, this 24th day of
September 2008.

"DAVID LEADBEATER"

Dr. David Leadbeater for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

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APPENDIX F

AMENDED

LETTER OF UNDERSTANDING

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: PENSION AND BENEFITS

THE PARTIES HEREBY AGREE THAT the following changes will be made to the benefit coverage effective November 1, 2002.

Life Insurance: 3 x annual salary to a maximum of
\$300,000.

Vision Care Expenses: maximum of \$300 every two years.

Dental Plan: payment shall be made in accordance with the current rate schedule as established by the
Ontario Dental Association.

THE PARTIES FURTHER AGREE to implement a supplementary pension plan for all Members who retire after July 1, 2002 as proposed by the plan's actuary in his letter dated February 17, 2000.

DATED AT Sudbury, Ontario, this 11th day of
September 2002.

"DR. ANIS FARAH" for

Laurentian University

Faculty Association

"DR. HERMANN FALTER" for

Laurentian University of Sudbury

AMENDED LETTER OF UNDERSTANDING

DATED AT

Sudbury, Ontario, this 4th day of February 2009.

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"DAVID LEADBEATER"

Dr. David Leadbeater for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

[NOTE: The above crossed out language has since been renegotiated and the new language reflecting any changes now appears in Article 8.45 –

Benefits.]

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APPENDIX G

LETTER OF UNDERSTANDING

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: BENEFIT PROGRAM FOR RETIRED

EMPLOYEES

THE PARTIES HEREBY AGREE TO form a committee consisting of two (2) union representatives and two (2) Employer representatives to review the benefit plans that are available to retirees that are offered by various insurance or associations to allow for a seamless transition.

The committee will conclude its findings and produce a report to the Union and the Employer by December 31, 2009.

The Committee will be provided with the latest actuarial valuation of the Retiree Health Benefit Plan (RHBP).

DATED AT Sudbury, Ontario, this 24th day of
September 2008.

“DAVID LEADBEATER”

Dr. David Leadbeater for Laurentian University Faculty Association

“HARLEY D'ENTREMONT”

Dr. Harley d'Entremont for Laurentian University of Sudbury

Committee should continue to review the benefits for retired employees within the parameters of the original mandate with the view of:

(a) finding options to improve the existing benefits plan; and

(b) investigating to what extent benefits of the existing plan can be used to offset costs of improving a spousal benefits plan with a different Employer; the committee will inform the Parties and the retired members of the outcome of the investigation as soon as it has been completed.

DATED AT Sudbury, Ontario, this 23rd day of
September 1999.

"DR. ANIS FARAH" for

Laurentian University

Faculty Association

"DR. HERMANN FALTER" for

Laurentian University of Sudbury

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APPENDIX I

LETTER OF UNDERSTANDING

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: JOINT COMMITTEE TO REVIEW THE STUDENT
COURSE EVALUATION

THE PARTIES HEREBY AGREE THAT:

1. The Union and the Employer will establish a joint committee to review the student course evaluation form and process at Laurentian. In developing its recommendations, the Committee will consider concerns about the existing course evaluation questionnaire and how it is administered, different approaches to course evaluation, and the research literature on course evaluation. The Committee will give special attention to the evaluation of co-taught courses.

2. The Committee will be constituted by January 30, 2009 and will be composed of three (3) members appointed by the Employer, three (3) members appointed by the Union, and a seventh member mutually agreed by both Parties to act as chair.

The Committee will produce a report with recommendations to the Parties by January 2010.

3. The Committee will make reasonable efforts to consult widely with students and faculty.

DATED AT Sudbury, Ontario, this 24th day of

September 2008.

"DAVID LEADBEATER"

Dr. David Leadbeater for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

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APPENDIX J

LETTER OF UNDERSTANDING

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: JOINT COMMITTEE TO STUDY APPREHENSION
OF BIAS

THE PARTIES AGREE TO establish a committee of two (2) representatives chosen by the Union and two (2) representatives chosen by the Employer to provide guidelines for the applications of the concept of "apprehension of bias" in university decision-making and in the context of committees operating under this Collective Agreement. The committee shall be established by January 15, 2009 and make its report to the Parties by March 15, 2009.

DATED AT Sudbury, Ontario, this 15th day of
September 2008.

"DAVID LEADBEATER"

Dr. David Leadbeater for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

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APPENDIX K

LETTER OF UNDERSTANDING

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: JOINT COMMITTEE ON COORDINATORS

THE PARTIES AGREE TO establish a committee of six (6) members, three (3) appointed by the Union and three (3) by the Employer, for the purpose of:

1. Studying the role of coordinators at Laurentian University, including for graduate, undergraduate, French and English programs as well as in the Library. The committee shall consider the role of coordinators in relation to the role of Chairs/Directors and to Members in fulfilling their administrative service responsibilities.
2. Recommending to the Parties a definition for the coordinator role that facilitates program development and the cohesive functioning of the Departments/Schools.
3. Recommending to the Parties a fair and equitable system of teaching/professional library workload reduction for coordinators.

The Committee will meet by January 15, 2009 and report by October 15, 2009.

DATED AT Sudbury, Ontario, this 14th day of
September 2008.

"DAVID LEADBEATER"

Dr. David Leadbeater for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

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APPENDIX L

LETTER OF UNDERSTANDING

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: ASBESTOS

THE PARTIES HEREBY AGREE THAT the

Employer shall post on the Occupational Health and

Safety website a recent report on buildings containing asbestos. There will be a link to the

Material Safety Data Sheets for asbestos. The

Joint Health and Safety Committee shall organize information sessions on the report and health consequences of
asbestos.

DATED AT Sudbury, Ontario, this 21st day of

September 2008.

“DAVID LEADBEATER”

Dr. David Leadbeater for Laurentian University Faculty Association

“HARLEY D'ENTREMONT”

Dr. Harley d'Entremont for Laurentian University of Sudbury

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APPENDIX M

LETTER OF UNDERSTANDING

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: BUILDING AND PLANNING COMMITTEE

THE PARTIES HEREBY AGREE THAT the

University negotiating committee will recommend to the Board of Governors that two (2) LUFA representatives be added to the Building and

Planning Committee.

DATED AT Sudbury, Ontario, this 14th day of

September 2008.

"DAVID LEADBEATER"

Dr. David Leadbeater for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

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APPENDIX N

LETTER OF UNDERSTANDING

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: UNIVERSAL BUS PASS

THE PARTIES HEREBY AGREE THAT a representative of the Union and a representative of the Employer shall meet with a representative of the

City of Greater Sudbury, Transit Operation to explore the possibility of negotiating a low-cost
Universal Bus Pass for all full-time and Sessional
Members.

DATED AT Sudbury, Ontario, this 14th day of
September 2008.

"DAVID LEADBEATER"

Dr. David Leadbeater for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

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APPENDIX O

STANDARD LETTER OF APPOINTMENT

(The actual letter may contain additional information)

DAY/MONTH/YEAR

Dr. XXX

ADDRESS

Dear Dr. XXX

On the recommendation of the Dean of (FACULTY) /

University Librarian and the (DEPARTMENT/SCHOOL) we are pleased to offer you an appointment at Laurentian University.

The terms of the offer are shown on the enclosed form. If they are acceptable, please sign and return one copy.

A copy of the Collective Agreement with the Laurentian

University Faculty Association can be found at the following website: <http://www.lufapul.ca/ColAgree.htm>

This offer is conditional on your being legally entitled to work in

Canada. Please call me if you have any questions concerning your entitlement to work in Canada.

Please note in the enclosed offer the requirement that you furnish proof of educational credentials. All appointments at Laurentian University are conditional upon this requirement being fulfilled. The requirement can be met by you bringing to the Vice-President, Academic the original degree or diploma for photocopying, or by the educational institution submitting directly to my office either a transcript or a certification that the stated degree or diploma has been granted.

This offer remains open until (DATE). If you require more time to consider this offer, please contact me as soon as possible and in any event before the offer expires.

If you have any questions, please do not hesitate to contact me.

Sincerely,

Vice-President, Academic

OFFER OF EMPLOYMENT TO

(Subject to changes in the new Collective Agreement)

DR. XXXX

DATE

1. DEPARTMENT/SCHOOL. This appointment is in the Department/School of XXX.

2. TYPE OF APPOINTMENT. This is a XXX appointment.

3. EFFECTIVE DATE. The effective date of this appointment will be Day/Month/Year. End date if applicable.

4. RANK. This appointment will be at the rank of XXX based on your qualifications and years of experience according to Article 5.10 – Academic Qualifications Guidelines.

5. SALARY. Your starting salary will be XXX per annum based on XXX years of university experience and XXX years of other experience relevant to your discipline as well as other factors affecting faculty recruitment in your field. Your salary, benefits and other provisions will be adjusted according to any new Collective Agreement between the Employer and the Union.

6. LENGTH OF PROBATIONARY PERIOD. The normal probationary period is five (5) academic years in length.

(Because of your previous experience at

Laurentian, the normal probationary period may be reduced by xxx years. Please confirm in writing should you wish to accept that reduction.) You will be considered for tenure in the fifth (5th) academic year

(academic year 20x/20xx) following the effective date of this appointment. If tenure is not granted, your appointment will terminate at the end of that academic year (XXX). If tenure is granted, it will be effective on the first (1st) day of the following academic year (day/month/year).

You may apply and be considered for tenure in the fourth academic year (academic year XXX) following the effective date of this appointment per paragraph

5.60.3 (a) of Article 5.60 – Tenure Evaluation Procedures.

7. RENEWAL. As per clause 5.20.22 of Article 5.20 – Appointment and Renewal, in September 20XX, you

Collective Agreement 2008-11 will undergo an initial contract renewal which if successful will be followed by a further two (2) year probationary appointment.

8. SABBATICAL LEAVE. As per Article 7.25 –

Sabbatical Leaves, you will be eligible to apply for a sabbatical leave of one (1) year to commence after six (6) academic years of service, less XXX years of credit that you have been granted, in a full-time academic capacity for service.

9. RESPONSIBILITIES. Your responsibilities are outlined in Article 5.15 – Rights, Responsibilities and Duties of Academics and will include teaching and academic guidance of students, scholarly activity, and service to the University.

10. BILINGUAL REQUIREMENT. As per Article 3.30 –

Bilingualism, you are required to become passively bilingual as a condition of tenure. If needed, the Employer will provide language training and in any year you take such training you will be relieved of the requirement to participate in university governance beyond the Department/School level.

11. RELEASE TIME. Your normal teaching load will be reduced by one (1) course (six (6) credit equivalent) during your first (1st) year (if applicable).

12. PHYSICAL AND MENTAL ILLNESS. You are eligible for sick leave up to a maximum of six (6) months at full salary from the date of disability due to accident or illness, for each separate disability cause as per

Article 7.55 – Physical and Mental Illness.

13. LONG-TERM DISABILITY. You will be required to join the Long-Term Disability insurance plan which provides benefits after six (6) months of uninterrupted total disability.

14. LIFE INSURANCE INCLUDING ACCIDENTAL

DEATH AND DISMEMBERMENT. You will be required to join the life insurance plan. You may supplement your coverage by purchasing optional life insurance, the premiums for which are fully paid by the Employee.

15. EXTENDED MEDICAL AND DENTAL CARE

PLANS. You will be eligible to join the Extended Medical and Dental Care Plans.

16. PENSION. You are required to join the pension plan effective your date of appointment.

17. VACATION. You will be entitled to an annual vacation of twenty-five (25) days during your first (1st) year and thereafter as per Article 7.15 – Vacation.

18. TUITION FEE EXEMPTION. This policy covers a person employed full-time by the University from the first (1st) day of her/his appointment and her/his spouse and dependent children from the same date.

19. START-UP GRANT. You will be provided with a start- up research/creative activity grant of XXX. These funds must be used and expended in accordance with the University policy on start-up grants.

20. PROFESSIONAL DEVELOPMENT

EXPENDITURES. You will be provided XXX for the first (1st) year for your professional development expenditures and thereafter as per Article 6.45 –

Professional Development Expenditures.

21. MOVING EXPENSES. The Employer will reimburse claims at the rate of one-hundred percent (100%) to a maximum of five-thousand dollars (\$5,000). Moving expenses paid to a new Member constitute a loan made by the University. This loan will be retired when the Member has completed three (3) years of continuous service to the University, each year being equivalent to one-third (1/3) of the reimbursement of the loan.

22. LAURENTIAN UNIVERSITY FACULTY

ASSOCIATION. This appointment is subject to a

Collective Agreement between the Board of

Governors of Laurentian University and the

Laurentian University Faculty Association. The current Collective Agreement is for a term ending

2011. Monthly dues to the Union will be deducted from your salary.

23. PROOF OF STATED EDUCATIONAL

QUALIFICATIONS. It is University policy that all persons appointed to positions of both an academic and non-academic nature, part-time or full-time, furnish proof of their stated educational credentials to the Vice-President, Academic. This offer of employment is conditional upon this requirement being fulfilled by you in respect of your latest degree.

Collective Agreement 2008-11

24. OTHER TERMS. a) Without limiting the generality of the foregoing, this probationary appointment will terminate automatically if you are not granted a tenured appointment. Laurentian University makes no promises concerning the possibility of further or other appointments, including a tenured appointment.

25. CONSISTENCY WITH COLLECTIVE AGREEMENT.

This offer is made pursuant to the Collective Agreement and the Collective Agreement shall prevail in case of any inconsistency between the terms of this Offer and the terms of the Collective Agreement.

Vice-President, Academic Date

I hereby accept the conditions of employment set out in this document.

NAME Date

/nbm c.c.: Dean

Financial Services

Human Resources

Institutional Research

Laurentian University Faculty Association

Payroll and Benefits Centre

DATED AT Sudbury, Ontario, this 21st day of
September 2008.

"DAVID LEADBEATER"

Dr. David Leadbeater for Laurentian University Faculty Association

"HARLEY D'ENTREMONT"

Dr. Harley d'Entremont for Laurentian University of Sudbury

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APPENDIX P

MEMORANDUM OF AGREEMENT

BETWEEN:

THE LAURENTIAN UNIVERSITY FACULTY
ASSOCIATION

AND

LAURENTIAN UNIVERSITY OF SUDBURY

RE: COLLECTIVE AGREEMENT EDITORIAL
COMMITTEE

THE PARTIES HEREBY AGREE TO form a

Collective Agreement Editorial Committee headed by the two (2) chief negotiators or their designates with responsibility to incorporate all new clauses upon which the Parties have agreed, verify the translation of all new material, delete inoperative appendices and provide a comprehensive index with the new 2008-11 Collective Agreement.

DATED AT Sudbury, Ontario, this 24th day of
September 2008.

“DAVID LEADBEATER”

Dr. David Leadbeater for Laurentian University Faculty Association

“HARLEY D'ENTREMONT”

Dr. Harley d'Entremont for Laurentian University of Sudbury

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